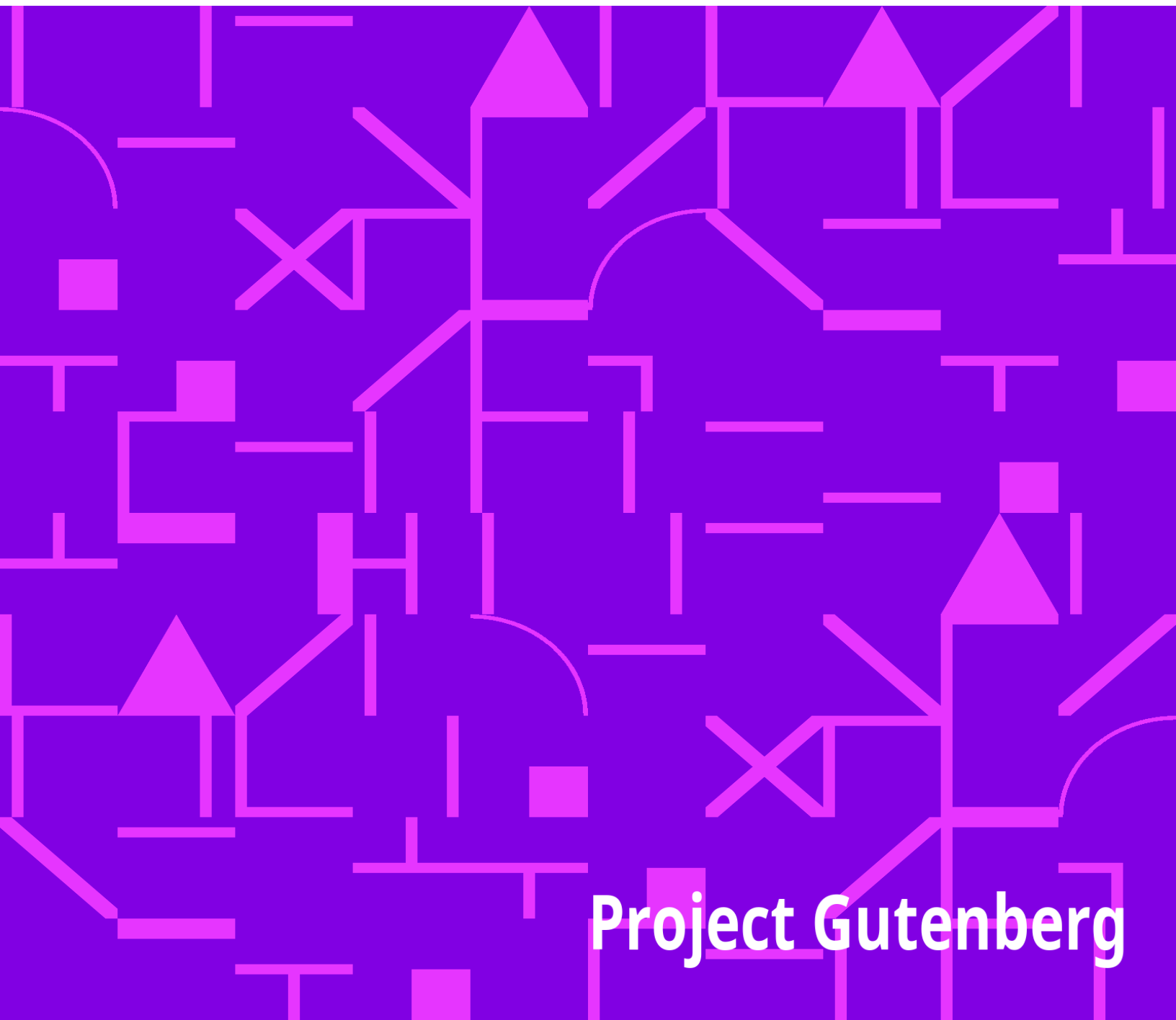


The Atlantic Monthly, Volume 12, No. 72, October, 1863

Various



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THE
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A MAGAZINE OF LITERATURE, ART, AND POLITICS.

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CHARLES LAMB'S UNCOLLECTED WRITINGS.^[1]

SECOND PAPER.

Readers of Lamb's "Life and Letters" remember that before "Mr. H." was written, before Kemble had rejected "John Woodvil," Godwin's tragedy of "Antonio" had been produced at Drury-Lane Theatre, and that Elia was present at the performance thereof. But perhaps they do not know (at least, not many of them) that Elia's essay on "The Artificial Comedy of the Last Century," as originally published in the "London Magazine," contained a full and circumstantial account of the cold and stately manner in which John Kemble performed the part of Antonio in Godwin's unfortunate play. For some reason or other, Lamb did not reprint this part of the article. Admirers of Charles Lamb and admirers of the drama will be pleased—for 'tis a very characteristic bit of writing—with what Elia says of

JOHN KEMBLE AND GODWIN'S TRAGEDY OF "ANTONIO."

"The story of his swallowing opium-pills to keep him lively upon the first night of a certain tragedy we may presume to be a piece of retaliatory pleasantry on the part of the suffering author. But, indeed, John had the art of diffusing a complacent equable dulness (which you knew not where to quarrel with) over a piece which he did not like, beyond any of his contemporaries. John Kemble had made up his mind early that all the good tragedies which could be written had been written, and he resented any new attempt. His shelves were full. The old standards were scope enough for his ambition. He ranged in them absolute, and 'fair in Otway, full in Shakspeare shone.' He succeeded to the old lawful thrones, and did not care to adventure bottomry with a Sir Edward Mortimer, or any casual speculator that offered.

"I remember, too acutely for my peace, the deadly extinguisher which he put upon my friend G.'s 'Antonio' G., satiate with visions of political justice, (possibly not to be realized in our time,) or willing to let the skeptical worldlings see that his anticipations of the future did not preclude a warm sympathy for men as they are and have been, wrote a tragedy. He chose a story, affecting, romantic, Spanish,—the plot simple, without being naked,—the incidents uncommon, without being overstrained. Antonio, who gives the name to the piece, is a sensitive young Castilian, who, in a fit of his country honor, immolates his sister—

"But I must not anticipate the catastrophe. The play, reader, is extant in choice English, and you will employ a spare half-crown not injudiciously in the quest of it.

"The conception was bold, and the *dénouement*—the time and place in which the hero of it existed considered—not much out of keeping; yet it must be confessed that it required a delicacy of handling, both from the author and the performer, so as not much to shock the prejudices of a modern English audience. G., in my opinion, had done his part. John, who was in familiar habits with the philosopher, had undertaken to play Antonio. Great expectations were formed. A philosopher's first play was a new era. The night arrived. I was favored with a seat in an advantageous box, between the author and his friend M.G. sat cheerful and confident. In his friend M.'s looks, who had perused the manuscript, I read some terror. Antonio, in the person of John Philip Kemble, at length appeared, starched out in a ruff which no one could dispute, and in most irreproachable mustachios. John always dressed most provokingly correct on these occasions. The first act swept by, solemn and silent. It went off, as G. assured M., exactly as the opening act of a piece—the *protasis*—should do. The cue of the spectators was to be mute. The characters were but in their introduction. The passions and the incidents would be developed hereafter. Applause hitherto would be impertinent. Silent attention was the effect all-desirable. Poor M. acquiesced,—but in his honest, friendly face I could discern a working which told how much more acceptable the plaudit of a single hand (however misplaced) would have been than all this reasoning. The second act (as in duty bound) rose a little in interest; but still John kept his forces under,—in policy, as G. would have it,—and the audience were most complacently attentive. The *protasis*, in fact, was scarcely unfolded.

The interest would warm in the next act, against which a special incident was provided. M. wiped his cheek, flushed with a friendly perspiration,—'tis M.'s way of showing his zeal,—'from every pore of him a perfume falls.' I honor it above Alexander's. He had once or twice during this act joined his palms in a feeble endeavor to elicit a sound; they emitted a solitary noise without an echo; there was no deep to answer to his deep. G. repeatedly begged him to be quiet. The third act at length brought on the scene which was to warm the piece progressively to the final flaming forth of the catastrophe. A philosophic calm settled upon the clear brow of G., as it approached. The lips of M. quivered. A challenge was held forth upon the stage, and there was promise of a fight. The pit roused themselves on this extraordinary occasion, and, as their manner is, seemed disposed to make a ring,—when suddenly Antonio, who was the challenged, turning the tables upon the hot challenger, Don Gusman, (who, by the way, should have had his sister,) balks his humor, and the pit's reasonable expectation at the same time, with some speeches out of the new philosophy against duelling. The audience were here fairly caught,—their courage was up, and on the alert,—a few blows, *ding dong*, as R——s the dramatist afterwards expressed it to me, might have done the business,—when their most exquisite moral sense was suddenly called in to assist in the mortifying negation of their own pleasure. They could not applaud, for disappointment; they would not condemn, for morality's sake. The interest stood stone-still; and John's manner was not at all calculated to unpetrify it. It was Christmas time, and the atmosphere furnished some pretext for asthmatic affections. One began to cough, his neighbor sympathized with him, till a cough became epidemical. But when, from being half artificial in the pit, the cough got frightfully naturalized among the fictitious persons of the drama, and Antonio himself (albeit it was not set down in the stage-directions) seemed more intent upon relieving his own lungs than the distresses of the author and his friends,—then G. 'first knew fear,' and, mildly turning to M., intimated that he had not been aware that Mr. Kemble labored under a cold, and that the performance might possibly have been postponed with advantage for some nights further,—still keeping the same serene countenance, while M. sweat like a bull.

"It would be invidious to pursue the fates of this ill-starred evening. In vain did the plot thicken in the scenes that followed, in vain the dialogue wax

more passionate and stirring, and the progress of the sentiment point more and more clearly to the arduous development which impended. In vain the action was accelerated, while the acting stood still. From the beginning, John had taken his stand,—had wound himself up to an even tenor of stately declamation, from which no exigence of dialogue or person could make him swerve for an instant. To dream of his rising with the scene (the common trick of tragedians) was preposterous; for from the onset he had planted himself, as upon a terrace, on an eminence vastly above the audience, and he kept that sublime level to the end. He looked from his throne of elevated sentiment upon the under-world of spectators with a most sovran and becoming contempt. There was excellent pathos delivered out to them: an they would receive it, so; an they would not receive it, so. There was no offence against decorum in all this; nothing to condemn, to damn. Not an irreverent symptom of a sound was to be heard. The procession of verbiage stalked on through four and five acts, no one venturing to predict what would come of it, when, towards the winding-up of the latter, Antonio, with an irrelevancy that seemed to stagger Elvira herself,—for she had been coolly arguing the point of honor with him,—suddenly whips out a poniard, and stabs his sister to the heart. The effect was as if a murder had been committed in cold blood. The whole house rose up in clamorous indignation, demanding justice. The feeling rose far above hisses. I believe at that instant, if they could have got him, they would have torn the unfortunate author to pieces. Not that the act itself was so exorbitant, or of a complexion different from what they themselves would have applauded upon another occasion in a Brutus or an Appius,—but, for want of attending to Antonio's *words*, which palpably led to the expectation of no less dire an event, instead of being seduced by his *manner*, which seemed to promise a sleep of a less alarming nature than it was his cue to inflict upon Elvira, they found themselves betrayed into an accompliceship of murder, a perfect misprision of parricide, while they dreamed of nothing less.

"M., I believe, was the only person who suffered acutely from the failure; for G. thenceforward, with a serenity unattainable but by the true philosophy, abandoning a precarious popularity, retired into his fast hold of speculation,—the drama in which the world was to be his tiring-room, and remote posterity his applauding spectators, at once, and actors."

"The least shavings of gold are valuable, men say," says Archbishop Leighton, in his masterly Commentary on Peter; and the veriest trifle from the pen of such a writer as Charles Lamb should be highly prized by all readers that are readers. Therefore I think it would be unwise in me not to print Elia's Postscript to his "Chapter on Ears," and his Answers to Correspondents. Indeed, I do not know but that they contain some of the most racy sentences Lamb ever wrote. At any rate, they do contain some delightful banter and "most ingenious nonsense." In their pleasantries, archness, and good-natured raillery, these two little articles of Elia's remind me of some of Addison's happiest papers in the "Spectator."

Better than anything in Southey's "Doctor" concerning the authorship of that queer, quaint, delightful book are Elia's affected anger and indignation against the author of the "Indicator" for attributing the essays of Elia to their right author. Leigh Hunt must have "laughed consumedly," as he read the P.S. to the "Chapter on Ears." And in his Answers to Correspondents how many delightful changes Elia rings upon the name of the unlucky Peter Bell! How cavalierly he answers "Indagator," and the others, who are so importunate about the true locality of his birth,— "as if, forsooth, Elia were presently about to be passed to his parish "!

P.S. TO THE "CHAPTER ON EARS."

"A writer, whose real name, it seems, is *Boldero*, but who has been entertaining the town for the last twelve months with some very pleasant lucubrations under the assumed signature of *Leigh Hunt*,^[2] in his 'Indicator' of the 31st January last has thought fit to insinuate that I, *Elia*, do not write the little sketches which bear my signature, in this Magazine, but that the true author of them is a Mr. L——b. Observe the critical period at which he has chosen to impute the calumny!—on the very eve of the publication of our last number,—affording no scope for explanation for a full month,—during which time I must needs lie writhing and tossing under the cruel imputation of nonentity.—Good heavens! that a plain man must not be allowed *to be*!

"They call this an age of personality: but surely this spirit of anti-personality (if I may so express it) is something worse.

"Take away my moral reputation,—I may live to discredit that calumny. Injure my literary fame,—I may write that up again. But when a gentleman is robbed of his identity, where is he?

"Other murderers stab but at our existence, a frail and perishing trifle at the best. But here is an assassin who aims at our very essence,—who not only forbids us *to be* any longer, but *to have been* at all. Let our ancestors look to it.

"Is the parish register nothing? Is the house in Princes Street, Cavendish Square, where we saw the light six-and-forty years ago, nothing? Were our progenitors from stately Genoa, where we flourished four centuries back, before the barbarous name of Boldero^[3] was known to a European mouth, nothing? Was the goodly scion of our name, transplanted into England in the reign of the seventh Henry, nothing? Are the archives of the steelyard, in succeeding reigns, (if haply they survive the fury of our envious enemies,) showing that we flourished in prime repute, as merchants, down to the period of the Commonwealth, nothing?

"'Why, then the world, and all that's in't is nothing,
The covering sky is nothing, Bohemia nothing.'

"I am ashamed that this trifling writer should have power to move me so.

"ELIA."

"ELIA TO HIS CORRESPONDENTS.

"A correspondent, who writes himself Peter Ball, or Bell,—for his handwriting is as ragged as his manners,—admonishes me of the old saying, that some people (under a courteous periphrasis I slur his less ceremonious epithet) had need have good memories. In my 'Old Benchers of the Inner Temple,' I have delivered myself, and truly, a Templar born. Bell clamors

upon this, and thinketh that he hath caught a fox. It seems that in a former paper, retorting upon a weekly scribbler who had called my good identity in question, (see P.S. to my 'Chapter on Ears,') I profess myself a native of some spot near Cavendish Square, deducing my remoter origin from Italy. But who does not see, except this tinkling cymbal, that in that idle fiction of Genoese ancestry I was answering a fool according to his folly,—that Elia there expresseth himself ironically, as to an approved slanderer, who hath no right to the truth, and can be no fit recipient of it? Such a one it is usual to leave to his delusions,—or, leading him from error still to contradictory error, to plunge him (as we say) deeper in the mire, and give him line till he suspend himself. No understanding reader could be imposed upon by such obvious rodомontade to suspect me for an alien, or believe me other than English.

"To a second correspondent, who signs himself 'A Wiltshire Man,' and claims me for a countryman upon the strength of an equivocal phrase in my 'Christ's Hospital,' a more mannerly reply is due. Passing over the Genoese fable, which Bell makes such a ring about, he nicely detects a more subtle discrepancy, which Bell was too obtuse to strike upon. Referring to the passage, I must confess that the term 'native town,' applied to Calne, *primâ facie* seems to bear out the construction which my friendly correspondent is willing to put upon it. The context, too, I am afraid, a little favors it. But where the words of an author, taken literally, compared with some other passage in his writings, admitted to be authentic, involve a palpable contradiction, it hath been the custom of the ingenuous commentator to smooth the difficulty by the supposition that in the one case an allegorical or tropical sense was chiefly intended. So by the word 'native' I may be supposed to mean a town where I might have been born,—or where it might be desirable that I should have been born, as being situate in wholesome air, upon a dry, chalky soil, in which I delight,—or a town with the inhabitants of which I passed some weeks, a summer or two ago, so agreeably, that they and it became in a manner native to me. Without some such latitude of interpretation in the present case, I see not how we can avoid falling into a gross error in physics, as to conceive that a gentleman may be born in two places, from which all modern and ancient testimony is alike abhorrent. Bacchus cometh the nearest to it, whom I remember Ovid to have honored with the epithet 'twice-born.'^[4] But not to mention that he is so called (we

conceive) in reference to the places *whence* rather than the places *where* he was delivered,—for by either birth he may probably be challenged for a Theban,—in a strict way of speaking, he was a *filius femoris* by no means in the same sense as he had been before a *filius alvi*, for that latter was but a secondary and tralatitious way of being born, and he but a denizen of the second house of his geniture. Thus much by way of explanation was thought due to the courteous 'Wiltshire Man.'

"To 'Indagator,' 'Investigator,' 'Incertus,' and the rest of the pack, that are so importunate about the true localities of his birth,—as if, forsooth, Elia were presently about to be passed to his parish,—to all such church-warden critics he answereth, that, any explanation here given notwithstanding, he hath not so fixed his nativity (like a rusty vane) to one dull spot, but that, if he seeth occasion, or the argument shall demand it, he will be born again, in future papers, in whatever place, and at whatever period, shall seem good unto him,—

""Modò me Thebis, modò Athenis.'

"ELIA."

Lamb excels as a critic. His article on Hogarth is a masterly specimen of acute and subtle criticism. Hazlitt says it ought to be read by every lover of Hogarth and English genius. His paper on "The Tragedies of Shakspeare, considered with Reference to their Fitness for Stage-Representation," is, in the opinion of good judges, the noblest criticism ever written. The brief, "matterful" notes to his Specimens of the Old English Dramatists are the very quintessence of criticism,—the flower and fruit of years of thoughtful reading of the old English drama. Nay, even his incidental allusions to his favorite old poets and prose-writers are worth whole pages of ordinary criticism.

Therefore I do not see what reason or excuse Talfourd could have for not publishing the critical paper on De Foe's Secondary Novels, which Lamb contributed to Walter Wilson's Life of De Foe. The author of "Robinson

Crusoe" was a great favorite with Lamb, and his criticism of "Colonel Jack," "Moll Flanders," etc., was written *con amore*, and is, perhaps, the very best thing ever said about those remarkable works. Those who have read Lamb's letter to Wilson, dated December, 1822, and therefore know how admirably he could write of the author of the best and most popular book for boys ever written, will be right glad to read his

ESTIMATE OF DE FOE'S SECONDARY NOVELS.

"It has happened not seldom that one work of some author has so transcendently surpassed in execution the rest of his compositions, that the world has agreed to pass a sentence of dismissal upon the latter, and to consign them to total neglect and oblivion. It has done wisely in this, not to suffer the contemplation of excellencies of a lower standard to abate or stand in the way of the pleasure it has agreed to receive from the masterpiece.

"Again, it has happened, that, from no inferior merit of execution in the rest, but from superior good fortune in the choice of its subject, some single work shall have been suffered to eclipse and cast into shade the deserts of its less fortunate brethren. This has been done with more or less injustice in the case of the popular allegory of Bunyan, in which the beautiful and Scriptural image of a pilgrim or wayfarer, (we are all such upon earth,) addressing itself intelligibly and feelingly to the bosoms of all, has silenced, and made almost to be forgotten, the more awful and scarcely less tender beauties of the 'Holy War made by Shaddai upon Diabolus,' of the same author,—a romance less happy in its subject, but surely well worthy of a secondary immortality. But in no instance has this excluding partiality been exerted with more unfairness than against what may be termed the secondary novels or romances of De Foe.

"While all ages and descriptions of people hang delighted over the 'Adventures of Robinson Crusoe,' and shall continue to do so, we trust, while the world lasts, how few comparatively will bear to be told that there exist other fictitious narratives by the same writer,—four of them at least of

no inferior interest, except what results from a less felicitous choice of situation! 'Roxana,' 'Singleton,' 'Moll Flanders,' 'Colonel Jack,' are all genuine offspring of the same father. They bear the veritable impress of De Foe. An unpractised midwife that would not swear to the nose, lip, forehead, and eye of every one of them! They are in their way as full of incident, and some of them every bit as romantic; only they want the uninhabited island, and the charm that has bewitched the world, of the striking solitary situation.

"But are there no solitudes out of the cave and the desert? or cannot the heart in the midst of crowds feel frightfully alone? Singleton on the world of waters, prowling about with pirates less merciful than the creatures of any howling wilderness,—is he not alone, with the faces of men about him, but without a guide that can conduct him through the mists of educational and habitual ignorance, or a fellow-heart that can interpret to him the new-born yearnings and aspirations of unpractised penitence? Or when the boy Colonel Jack, in the loneliness of the heart, (the worst solitude,) goes to hide his ill-purchased treasure in the hollow tree by night, and miraculously loses, and miraculously finds it again—whom hath he there to sympathize with him? or of what sort are his associates?

"The narrative manner of De Foe has a naturalness about it beyond that of any other novel or romance writer. His fictions have all the air of true stories. It is impossible to believe, while you are reading them, that a real person is not narrating to you everywhere nothing but what really happened to himself. To this the extreme *homeliness* of their style mainly contributes. We use the word in its best and heartiest sense,—that which comes *home* to the reader. The narrators everywhere are chosen from low life, or have had their origin in it; therefore they tell their own tales, (Mr. Coleridge has anticipated us in this remark,) as persons in their degree are observed to do, with infinite repetition, and an overacted exactness, lest the hearer should not have minded, or have forgotten, some things that had been told before. Hence the emphatic sentences marked in the good old (but deserted) Italic type; and hence, too, the frequent interposition of the reminding old colloquial parenthesis, 'I say,' 'Mind,' and the like, when the story-teller repeats what, to a practised reader, might appear to have been sufficiently insisted upon before: which made an ingenious critic observe, that his works, in this kind, were excellent reading for the kitchen. And, in truth, the

heroes and heroines of De Foe can never again hope to be popular with a much higher class of readers than that of the servant-maid or the sailor. Crusoe keeps its rank only by tough prescription; Singleton, the pirate—Colonel Jack, the thief,—Moll Flanders, both thief and harlot,—Roxana, harlot and something worse,—would be startling ingredients in the bill-of-fare of modern literary delicacies. But, then, what pirates, what thieves, and what harlots is *the thief*, *the harlot*, and *the pirate* of De Foe? We would not hesitate to say, that in no other book of fiction, where the lives of such characters are described, is guilt and delinquency made less seductive, or the suffering made more closely to follow the commission, or the penitence more earnest or more bleeding, or the intervening flashes of religious visitation upon the rude and uninstructed soul more meltingly and fearfully painted. They, in this, come near to the tenderness of Bunyan; while the livelier pictures and incidents in them, as in Hogarth or in Fielding, tend to diminish that fastidiousness to the concerns and pursuits of common life which an unrestrained passion for the ideal and the sentimental is in danger of producing."

Lamb, in a letter to one of his correspondents, says, after speaking of his recent contributions to the "London Magazine,"—"In the next number I shall figure as a theologian, and have attacked my late brethren, the Unitarians. What Jack-Pudding tricks I shall play next I know not; I am almost at the end of my tether." Talfourd, of course, does not publish the article, or even give its title, which is, "Unitarian Protests." Those who would see how well or how ill Elia figures as a theologian should read

"UNITARIAN PROTESTS: IN A LETTER TO A FRIEND OF THAT PERSUASION NEWLY MARRIED.

"Dear M——,—Though none of your acquaintance can with greater sincerity congratulate you upon this happy conjuncture than myself, one of the oldest of them, it was with pain I found you, after the ceremony,

depositing in the vestry-room what is called a Protest. I thought you superior to this little sophistry. What! after submitting to the service of the Church of England,—after consenting to receive a boon from her, in the person of your amiable consort,—was it consistent with sense, or common good manners, to turn round upon her, and flatly taunt her with false worship? This language is a little of the strongest in your books and from your pulpits, though there it may well enough be excused from religious zeal and the native warmth of Non-Conformity. But at the altar,—the Church-of-England altar,—adopting her forms, and complying with her requisitions to the letter,—to be consistent, together with the practice, I fear, you must drop the language of dissent. You are no longer sturdy Non-Cons; you are there Occasional Conformists. You submit to accept the privileges communicated by a form of words exceptionable, and perhaps justly, in your view; but so submitting, you have no right to quarrel with the ritual which you have just condescended to owe an obligation to. They do not force you into their churches. You come voluntarily, knowing the terms. You marry in the name of the Trinity. There is no evading this by pretending that you take the formula with your own interpretation (and so long as you can do this, where is the necessity of protesting?): for the meaning of a vow is to be settled by the sense of the imposer, not by any forced construction of the taker: else might all vows, and oaths too, be eluded with impunity. You marry, then, essentially as Trinitarians; and the altar no sooner satisfied than, hey, presto! with the celerity of a juggler, you shift habits, and proceed pure Unitarians again in the vestry. You cheat the Church out of a wife, and go home smiling in your sleeves that you have so cunningly despoiled the Egyptians. In plain English, the Church has married you in the name of so and so, assuming that you took the words in her sense; but you outwitted her; you assented to them in your sense only, and took from her what, upon a right understanding, she would have declined giving you.

"This is the fair construction to be put upon all Unitarian marriages, as at present contracted; and so long as you Unitarians could salve your consciences with the *équivoque*, I do not see why the Established Church should have troubled herself at all about the matter. But the Protesters necessarily see further. They have some glimmerings of the deception; they apprehend a flaw somewhere; they would fain be honest, and yet they must marry notwithstanding; for honesty's sake, they are fain to dehonestate

themselves a little. Let me try the very words of your own Protest, to see what confessions we can pick out of them.

"'As Unitarians, therefore, we' (you and your newly espoused bride) 'most solemnly protest against the service,' (which yourselves have just demanded,) 'because we are thereby called upon, not only tacitly to acquiesce, but to profess a belief, in a doctrine which is a dogma, as we believe, totally unfounded.' But do you profess that belief during the ceremony? or are you only called upon for the profession, but do not make it? If the latter, then you fall in with the rest of your more consistent brethren, who waive the Protest; if the former, then, I fear, your Protest cannot save you.

"Hard and grievous it is, that, in any case, an institution so broad and general as the union of man and wife should be so cramped and straitened by the hands of an imposing hierarchy, that, to plight troth to a lovely woman, a man must be necessitated to compromise his truth and faith to Heaven; but so it must be, so long as you choose to marry by the forms of the church over which that hierarchy presides.

"'Therefore,' say you, 'we protest.' O poor and much fallen word, Protest! It was not so that the first heroic reformers protested. They departed out of Babylon once for good and all; they came not back for an occasional contact with her altars—a dallying, and then a protesting against dalliance; they stood not shuffling in the porch, with a Popish foot within, and its lame Lutheran fellow without, halting betwixt. These were the true Protestants. You are—Protesters.

"Besides the inconsistency of this proceeding, I must think it a piece of impertinence, unseasonable at least, and out of place, to obtrude these papers upon the officiating clergyman,—to offer to a public functionary an instrument which by the tenor of his function he is not obliged to accept, but, rather, he is called upon to reject. Is it done in his clerical capacity? He has no power of redressing the grievance. It is to take the benefit of his ministry, and then insult him. If in his capacity of fellow-Christian only, what are your scruples to him, so long as you yourselves are able to get over them, and do get over them by the very fact of coming to require his services? The thing you call a Protest might with just as good a reason be

presented to the church-warden for the time being, to the parish-clerk, or the pew-opener.

"The Parliament alone can redress your grievance, if any. Yet I see not how with any grace your people can petition for relief, so long as, by the very fact of your coming to church to be married, they do *bonâ fide* and strictly relieve themselves. The Upper House, in particular, is not unused to these same things called Protests, among themselves. But how would this honorable body stare to find a noble Lord conceding a measure, and in the next breath, by a solemn Protest, disowning it! A Protest there is a reason given for non-compliance, not a subterfuge for an equivocal occasional compliance. It was reasonable in the primitive Christians to avert from their persons, by whatever lawful means, the compulsory eating of meats which had been offered unto idols. I dare say the Roman Prefects and Exarchates had plenty of petitioning in their days. But what would a Festus or Agrippa have replied to a petition to that effect, presented to him by some evasive Laodicean, with the very meat between his teeth, which he had been chewing voluntarily rather than abide the penalty? Relief for tender consciences means nothing, where the conscience has previously relieved itself,—that is, has complied with the injunctions which it seeks preposterously to be rid of. Relief for conscience there is properly none, but what by better information makes an act appear innocent and lawful with which the previous conscience was not satisfied to comply. All else is but relief from penalties, from scandal incurred by a complying practice, where the conscience itself is not fully satisfied.

"But, say you, we have hard measure: the Quakers are indulged with the liberty denied to us. They are; and dearly have they earned it. You have come in (as a sect, at least) in the cool of the evening, at the eleventh hour. The Quaker character was hardened in the fires of persecution in the seventeenth century,—not quite to the stake and fagot, but little short of that: they grew up and thrived against noisome prisons, cruel beatings, whippings, stockings. They have since endured a century or two of scoffs, contempts; they have been a by-word, and a nay-word; they have stood unmoved: and the consequence of long conscientious resistance on one part is invariably, in the end, remission on the other. The legislature, that denied you the tolerance, which I do not know that at that time you even asked, gave them the liberty which, without granting, they would have assumed.

No penalties could have driven them into the churches. This is the consequence of entire measures. Had the early Quakers consented to take oaths, leaving a Protest with the clerk of the court against them in the same breath with which they had taken them, do you in your conscience think that they would have been indulged at this day in their exclusive privilege of affirming? Let your people go on for a century or so, marrying in your own fashion, and I will warrant them, before the end of it, the legislature will be willing to concede to them more than they at present demand.

"Either the institution of marriage depends not for its validity upon hypocritical compliances with the ritual of an alien church, and then I do not see why you cannot marry among yourselves, as the Quakers, without their indulgence, would have been doing to this day,—or it does depend upon such ritual compliance, and then in your Protests you offend against a divine ordinance. I have read in the Essex-Street Liturgy a form for the celebration of marriage. Why is this become a dead letter? Oh! it has never been legalized: that is to say, in the law's eye it is no marriage. But do you take upon you to say, in the view of the gospel it would be none? Would your own people, at least, look upon a couple so paired to be none? But the case of dowries, alimonies, inheritances, etc., which depend for their validity upon the ceremonial of the church by law established,—are these nothing? That our children are not legally *Filii Nullius*,—is this nothing? I answer, Nothing; to the preservation of a good conscience, nothing; to a consistent Christianity, less than nothing. Sad worldly thorns they are indeed, and stumbling-blocks well worthy to be set out of the way by a legislature calling itself Christian; but not likely to be removed in a hurry by any shrewd legislators who perceive that the petitioning complainants have not so much as bruised a shin in the resistance, but, prudently declining the briers and the prickles, nestle quietly down in the smooth two-sided velvet of a Protesting Occasional Conformity.

"I am, dear Sir,

"With much respect, yours, etc.,

"ELIA."

Lamb once said, of all the lies he ever put off,—and he put off a good many,—indeed, he valued himself on being "a matter-of-lie man," believing truth to be too precious to be wasted upon everybody,—of all the lies he ever put off, he valued his "Memoir of Liston" the most. "It is," he confessed to Miss Hutchinson, "from top to toe, every paragraph, pure invention, and has passed for gospel,—has been republished in the newspapers, and in the penny play-bills of the night, as an authentic account." And yet, notwithstanding its incidents are all imaginary, its facts all fictions, is not Lamb's "Memoir of Liston" a truer and more trustworthy work than any of the productions of those contemptible biographers—unfortunately not yet extinct—so admirably ridiculed in the thirty-fifth number of the "Freeholder"? In fact, is not this "lying Life of Liston" a very clever satire on those biographers who, like the monkish historians mentioned by Fuller, in his "Church History of Britain," swell the bowels of their books with empty wind, in default of sufficient solid food to fill them,—who, according to Addison, ascribe to the unfortunate persons whose lives they pretend to write works which they never wrote and actions which they never performed, celebrate virtues which they were never famous for and excuse faults which they were never guilty of? And does not Lamb, in this work, very happily ridicule the pedantry and conceit of certain grave and dignified biographers whose works are to be found in most gentlemen's libraries?

Therefore, as a piece of most admirable fooling, as a bit of harmless, good-natured pleantry, as a specimen of pleasant satire, of subtle irony, this "Memoir of Listen" is well worthy of a place in all editions of Charles Lamb's writings.

"BIOGRAPHICAL MEMOIR OF MR. LISTON.

"The subject of our Memoir is lineally descended from Johan de L'Estonne, (see 'Domesday Book,' where he is so written,) who came in with the Conqueror, and had lands awarded him at Lupton Magna, in Kent. His particular merits or services Fabian, whose authority I chiefly follow, has forgotten, or perhaps thought it immaterial, to specify. Fuller thinks that he was standard-bearer to Hugo de Agmondesham, a powerful Norman baron,

who was slain by the hand of Harold himself at the fatal Battle of Hastings. Be this as it may, we find a family of that name flourishing some centuries later in that county. John Delliston, Knight, was high sheriff for Kent, according to Fabian, *quinto Henrici Sexti*; and we trace the lineal branch flourishing downwards,—the orthography varying, according to the unsettled usage of the times, from Delleston to Leston or Liston, between which it seems to have alternated, till, in the latter end of the reign of James I., it finally settled into the determinate and pleasing dissyllabic arrangement which it still retains. Aminadab Liston, the eldest male representative of the family of that day, was of the strictest order of Puritans. Mr. Foss, of Pall Mall, has obligingly communicated to me an undoubted tract of his, which bears the initials only, A.L., and is entitled, 'The Grinning Glass: or Actor's Mirrour, wherein the vituperative Visnomy of vicious Players for the Scene is as virtuously reflected back upon their mimetic Monstrosities as it has viciously (hitherto) vitiated with its vile Vanities her Votarists.' A strange title, but bearing the impress of those absurdities with which the title-pages of that pamphlet-spawning age abounded. The work bears date 1617. It preceded the 'Histriomastix' by fifteen years; and as it went before it in time, so it comes not far short of it in virulence. It is amusing to find an ancestor of Listen's thus bespattering the players at the commencement of the seventeenth century:—

""Thinketh He,' (the actor,) 'with his costive countenances, to wry a sorrowing soul out of her anguish, or by defacing the divine denotement of destinate dignity (daignely described in the face humane and no other) to reinstamp the Paradice-plotted similitude with a novel and naughty approximation (not in the first intention) to those abhorred and ugly God-forbidden correspondences, with flouting Apes' jeering gibberings, and Babion babbling-like, to hoot out of countenance all modest measure, as if our sins were not sufficing to stoop our backs without He wresting and crooking his members to mistimed mirth (rather malice) in deformed fashion, leering when he should learn, prating for praying, goggling his eyes, (better upturned for grace,) whereas in Paradice (if we can go thus high for His profession) that devilish Serpent appeareth his undoubted Predecessor, first induing a mask like some roguish

roistering Roscius (I spit at them all) to beguile with Stage shows the gaping Woman, whose Sex hath still chiefly upheld these Mysteries, and are voiced to be the chief Stage-haunters, where, as I am told, the custom is commonly to mumble (between acts) apples, not ambiguously derived from that pernicious Pippin, (worse in effect than the Apples of Discord,) whereas sometimes the hissing sounds of displeasure, as I hear, do lively reintonate that snake-taking-leave, and diabolical goings off, in Paradise.'

"The Puritanic effervescence of the early Presbyterians appears to have abated with time, and the opinions of the more immediate ancestors of our subject to have subsided at length into a strain of moderate Calvinism. Still a tincture of the old leaven was to be expected among the posterity of A.L.

"Our hero was the only son of Habakkuk Liston, settled as an anabaptist minister upon the patrimonial soil of his ancestors. A regular certificate appears, thus entered in the Church-Book at Lupton Magna:—'*Johannes, filius Habakkuk et Rebecccæ Liston, Dissentientium, natus quinto Decembri, 1780, baptizatus sexto Februarii sequentis; Sponsoribus J. et W. Woollaston, unâ cum Maria Merryweather.*' The singularity of an Anabaptist minister conforming to the child-rites of the Church would have tempted me to doubt the authenticity of this entry, had I not been obliged with the actual sight of it, by the favor of Mr. Minns, the intelligent and worthy parish-clerk of Lupton. Possibly some expectation in point of worldly advantages from some of the sponsors might have induced this unseemly deviation, as it must have appeared, from the practice and principles of that generally rigid sect. The term *Dissentientium* was possibly intended by the orthodox clergyman as a slur upon the supposed inconsistency. What, or of what nature, the expectations we have hinted at may have been, we have now no means of ascertaining. Of the Woollastons no trace is now discoverable in the village. The name of Merryweather occurs over the front of a grocer's shop at the western extremity of Lupton.

"Of the infant Liston we find no events recorded before his fourth year, in which a severe attack of the measles bid fair to have robbed the rising generation of a fund of innocent entertainment. He had it of the confluent kind, as it is called, and the child's life was for a week or two despaired of.

His recovery he always attributes (under Heaven) to the humane interference of one Doctor Wilhelm Richter, a German empiric, who, in this extremity, prescribed a copious diet of *sauer-kraut*, which the child was observed to reach at with avidity, when other food repelled him; and from this change of diet his restoration was rapid and complete. We have often heard him name the circumstance with gratitude; and it is not altogether surprising that a relish for this kind of aliment, so abhorrent and harsh to common English palates, has accompanied him through life. When any of Mr. Listen's intimates invite him to supper, he never fails of finding, nearest to his knife and fork, a dish of *sauer-kraut*.

"At the age of nine we find our subject under the tuition of the Rev. Mr. Goodenough, (his father's health not permitting him probably to instruct him himself,) by whom he was inducted into a competent portion of Latin and Greek, with some mathematics, till the death of Mr. Goodenough, in his own seventieth, and Master Liston's eleventh year, put a stop for the present to his classical progress.

"We have heard our hero, with emotions which do his heart honor, describe the awful circumstances attending the decease of this worthy old gentleman. It seems they had been walking out together, master and pupil, in a fine sunset, to the distance of three-quarters of a mile west of Lupton, when a sudden curiosity took Mr. Goodenough to look down upon a chasm, where a shaft had been lately sunk in a mining speculation (then projecting, but abandoned soon after, as not answering the promised success, by Sir Ralph Shepperton, Knight, and member for the county). The old clergyman leaning over, either with incaution or sudden giddiness, (probably a mixture of both,) suddenly lost his footing, and, to use Mr. Listen's phrase, disappeared, and was doubtless broken into a thousand pieces. The sound of his head, etc., dashing successively upon the projecting masses of the chasm, had such an effect upon the child that a serious sickness ensued, and even for many years after his recovery he was not once seen so much as to smile.

"The joint death of both his parents, which happened not many months after this disastrous accident, and were probably (one or both of them) accelerated by it, threw our youth upon the protection of his maternal great-aunt, Mrs. Sittingbourn. Of this aunt we have never heard him speak but

with expressions amounting almost to reverence. To the influence of her early counsels and manners he has always attributed the firmness with which, in maturer years, thrown upon a way of life commonly not the best adapted to gravity and self-retirement, he has been able to maintain a serious character, untinctured with the levities incident to his profession. Ann Sittingbourn (we have seen her portrait by Hudson) was stately, stiff, tall, with a cast of features strikingly resembling the subject of this memoir. Her estate in Kent was spacious and well-wooded; the house, one of those venerable old mansions which are so impressive in childhood, and so hardly forgotten in succeeding years. In the venerable solitudes of Charnwood, among thick shades of the oak and beech, (this last his favorite tree,) the young Listen cultivated those contemplative habits which have never entirely deserted him in after-years. Here he was commonly in the summer months to be met with, with a book in his hand,—not a play-book,—meditating. Boyle's 'Reflections' was at one time the darling volume, which in its turn was superseded by Young's 'Night Thoughts,' which has continued its hold upon him through life. He carries it always about him; and it is no uncommon thing for him to be seen, in the refreshing intervals of his occupation, leaning against a side-scene, in a sort of Herbert-of-Cherbury posture, turning over a pocket-edition of his favorite author.

"But the solitudes of Charnwood were not destined always to obscure the path of our young hero. The premature death of Mrs. Sittingbourn, at the age of seventy, occasioned by incautious burning of a pot of charcoal in her sleeping-chamber, left him in his nineteenth year nearly without resources. That the stage at all should have presented itself as an eligible scope for his talents, and, in particular, that he should have chosen a line so foreign to what appears to have been his turn of mind, may require some explanation.

"At Charnwood, then, we behold him thoughtful, grave, ascetic. From his cradle averse to flesh-meats and strong drink; abstemious even beyond the genius of the place, and almost in spite of the remonstrances of his great-aunt, who, though strict, was not rigid; water was his habitual drink, and his food little beyond the mast and beech-nuts of his favorite groves. It is a medical fact, that this kind of diet, however favorable to the contemplative powers of the primitive hermits, etc., is but ill adapted to the less robust minds and bodies of a later generation. Hypochondria almost constantly ensues. It was so in the case of the young Liston. He was subject to sighs,

and had visions. Those arid beech-nuts, distilled by a complexion naturally adust, mounted into an occiput already prepared to kindle by long seclusion and the fervor of strict Calvinistic notions. In the glooms of Charnwood he was assailed by illusions similar in kind to those which are related of the famous Anthony of Padua. Wild antic faces would ever and anon protrude themselves upon his sensorium. Whether he shut his eyes or kept them open, the same illusions operated. The darker and more profound were his cogitations, the droller and more whimsical became the apparitions. They buzzed about him thick as flies, flapping at him, flouting him, hooting in his ear, yet with such comic appendages, that what at first was his bane became at length his solace; and he desired no better society than that of his merry phantasmata. We shall presently find in what way this remarkable phenomenon influenced his future destiny.

"On the death of Mrs. Sittingbourn, we find him received into the family of Mr. Willoughby, an eminent Turkey merchant, resident in Birchin Lane, London. We lose a little while here the chain of his history,—by what inducements this gentleman was determined to make him an inmate of his house. Probably he had had some personal kindness for Mrs. Sittingbourn formerly; but however it was, the young man was here treated more like a son than a clerk, though he was nominally but the latter. Different avocations, the change of scene, with that alternation of business and recreation which in its greatest perfection is to be had only in London, appear to have weaned him in a short time from the hypochondriacal affections which had beset him at Charnwood.

"In the three years which followed his removal to Birchin Lane, we find him making more than one voyage to the Levant, as chief factor for Mr. Willoughby at the Porte. We could easily fill our biography with the pleasant passages which we have heard him relate as having happened to him at Constantinople, such as his having been taken up on suspicion of a design of penetrating the seraglio, etc.; but, with the deepest conviction of this gentleman's own veracity, we think that some of the stories are of that whimsical, and others of that romantic nature, which, however diverting, would be out of place in a narrative of this kind, which aims not only at strict truth, but at avoiding the very appearance of the contrary.

"We will now bring him over the seas again, and suppose him in the counting-house in Birchin Lane, his protector satisfied with the returns of his factorage, and all going on so smoothly that we may expect to find Mr. Liston at last an opulent merchant upon 'Change, as it is called. But see the turns of destiny! Upon a summer's excursion into Norfolk, in the year 1801, the accidental sight of pretty Sally Parker, as she was called, (then in the Norwich company,) diverted his inclinations at once from commerce; and he became, in the language of commonplace biography, stage-struck. Happy for the lovers of mirth was it that our hero took this turn; he might else have been to this hour that unentertaining character, a plodding London merchant.

"We accordingly find him shortly after making his *début*, as it is called, upon the Norwich boards, in the season of that year, being then in the twenty-second year of his age. Having a natural bent to tragedy, he chose the part of Pyrrhus in the 'Distressed Mother,' to Sally Parker's Hermione. We find him afterwards as Barnwell, Altamont, Chamont, etc.; but, as if Nature had destined him to the sock, an unavoidable infirmity absolutely incapacitated him for tragedy. His person, at this latter period of which I have been speaking, was graceful, and even commanding; his countenance set to gravity; he had the power of arresting the attention of an audience at first sight almost beyond any other tragic actor. But he could not hold it. To understand this obstacle, we must go back a few years to those appalling reveries at Charnwood. Those illusions, which had vanished before the dissipation of a less recluse life and more free society, now in his solitary tragic studies, and amid the intense calls upon feeling incident to tragic acting, came back upon him with tenfold vividness. In the midst of some most pathetic passage, the parting of Jaffier with his dying friend, for instance, he would suddenly be surprised with a fit of violent horse-laughter. While the spectators were all sobbing before him with emotion, suddenly one of those grotesque faces would peep out upon him, and he could not resist the impulse. A timely excuse once or twice served his purpose; but no audiences could be expected to bear repeatedly this violation of the continuity of feeling. He describes them (the illusions) as so many demons haunting him, and paralyzing every effect. Even now, I am told, he cannot recite the famous soliloquy in 'Hamlet,' even in private, without immoderate bursts of laughter. However, what he had not force of

reason sufficient to overcome he had good sense enough to turn into emolument, and determined to make a commodity of his distemper. He prudently exchanged the buskin for the sock, and the illusions instantly ceased; or, if they occurred for a short season, by their very cooperation added a zest to his comic vein,—some of his most catching faces being (as he expresses it) little more than transcripts and copies of those extraordinary phantasmata.

"We have now drawn out our hero's existence to the period when he was about to meet for the first time the sympathies of a London audience. The particulars of his success since have been too much before our eyes to render a circumstantial detail of them expedient. I shall only mention, that Mr. Willoughby, his resentments having had time to subside, is at present one of the fastest friends of his old renegado factor; and that Mr. Listen's hopes of Miss Parker vanishing along with his unsuccessful suit to Melpomene, in the autumn of 1811 he married his present lady, by whom he has been blest with one son, Philip, and two daughters, Ann and Angustina."

"Ask anybody you meet," writes Lamb to Miss Wordsworth, then visiting some friends in Cambridge, "who is the biggest woman in Cambridge, and I'll hold a wager they'll say Mrs. ——. She broke down two benches in Trinity Gardens,—one on the confines of St. John's, which occasioned a litigation between the societies as to repairing it. In warm weather she retires into an ice-cellar, (literally,) and dates from a hot Thursday some twenty years back. She sits in a room with opposite doors and windows, to let in a thorough draft, which gives her slenderer friends toothaches. She is to be seen in the market every morning at ten, cheapening fowls, which I observe the Cambridge poulterers are not sufficiently careful to stump."

On the person thus briefly sketched Elia wrote an article for the "London Magazine." As it is not to be found in the standard editions of its author's works, we herewith present it to our readers. They will find it to be a clever specimen of Lamb's peculiar and delightful humor. In truth, it is one of the very best things he ever conjured up. We observe he has changed the

locality of the stout woman, and places her in Oxford, instead of Cambridge.

"THE GENTLE GIANTESS.

"The widow Blacket, of Oxford, is the largest female I ever had the pleasure of beholding. There may be her parallel upon the earth, but surely I never saw it. I take her to be lineally descended from the maid's aunt of Brainford, who caused Master Ford such uneasiness. She hath Atlantean shoulders; and as she stoopeth in her gait,—with as few offences to answer for in her own particular as any of Eve's daughters,—her back seems broad enough to bear the blame of all the peccadilloes that have been committed since Adam. She girdeth her waist—or what she is pleased to esteem as such—nearly up to her shoulders, from beneath which that huge dorsal expanse, in mountainous declivity, emergeth. Respect for her alone preventeth the idle boys, who follow her about in shoals, whenever she cometh abroad, from getting up and riding. But her presence infallibly commands a reverence. She is, indeed, as the Americans would express it, something awful. Her person is a burden to herself, no less than to the ground which bears her.

"To her mighty bone she hath a pinguity withal which makes the depth of winter to her the most desirable season. Her distress in the warmer solstice is pitiable. During the months of July and August she usually renteth a cool cellar, where ices are kept, whereinto she descendeth when Sirius rageth. She dates from a hot Thursday, some twenty-five years ago. Her apartment in summer is pervious to the four winds. Two doors in north and south direction, and two windows fronting the rising and the setting sun, never closed, from every cardinal point catch the contributory breezes. She loves to enjoy what she calls a quadruple draught. That must be a shrewd zephyr that can escape her. I owe a painful face-ache, which oppresses me at this moment, to a cold caught, sitting by her, one day in last July, at this receipt of coolness. Her fan in ordinary resembleth a banner spread, which she keepeth continually on the alert to detect the least breeze.

"She possesseth an active and gadding mind, totally incommensurate with her person. No one delighteth more than herself in country exercises and pastimes. I have passed many an agreeable holiday with her in her favorite park at Woodstock. She performs her part in these delightful ambulatory excursions by the aid of a portable garden-chair. She setteth out with you at a fair foot-gallop, which she keepeth up till you are both well breathed, and then she reposeth for a few seconds. Then she is up again for a hundred paces or so, and again resteth,—her movement, on these sprightly occasions, being something between walking and flying. Her great weight seemeth to propel her forward, ostrich-fashion. In this kind of relieved marching I have traversed with her many scores of acres on those well-wooded and well-watered domains.

"Her delight at Oxford is in the public walks and gardens, where, when the weather is not too oppressive, she passeth much of her valuable time. There is a bench at Maudlin, or rather, situated between the frontiers of that and ——'s College,—some litigation, latterly, about repairs, has vested the property of it finally in ——'s,—where at the hour of noon she is ordinarily to be found sitting,—so she calls it by courtesy,—but, in fact, pressing and breaking of it down with her enormous settlement; as both those Foundations, who, however, are good-natured enough to wink at it, have found, I believe, to their cost. Here she taketh the fresh air, principally at vacation times, when the walks are freest from interruption of the younger fry of students. Here she passeth her idle hours, not idly, but generally accompanied with a book,—blest, if she can but intercept some resident Fellow, (as usually there are some of that brood left behind at these periods,) or stray Master of Arts, (to most of whom she is better known than their dinner-bell,) with whom she may confer upon any curious topic of literature. I have seen these shy gownsmen, who truly set but a very slight value upon female conversation, cast a hawk's eye upon her from the length of Maudlin Grove, and warily glide off into another walk,—true monks as they are, and ungently neglecting the delicacies of her polished converse, for their own perverse and uncommunicating solitariness!

"Within doors her principal diversion is music, vocal and instrumental, in both which she is no mean professor. Her voice is wonderfully fine; but, till I got used to it, I confess it staggered me. It is for all the world like that of a piping bulfinch, while from her size and stature you would expect notes to

drown the deep organ. The shake, which most fine singers reserve for the close or cadence, by some unaccountable flexibility, or tremulousness of pipe, she carrieth quite through the composition; so that her time, to a common air or ballad, keeps double motion, like the earth,—running the primary circuit of the tune, and still revolving upon its own axis. The effect, as I said before, when you are used to it, is as agreeable as it is altogether new and surprising.

"The spacious apartment of her outward frame lodgeth a soul in all respects disproportionate. Of more than mortal make, she evinceth withal a trembling sensibility, a yielding infirmity of purpose, a quick susceptibility to reproach, and all the train of diffident and blushing virtues, which for their habitation usually seek out a feeble frame, an attenuated and meagre constitution. With more than man's bulk, her humors and occupations are eminently feminine. She sighs,—being six foot high. She languisheth,—being two feet wide. She worketh slender sprigs upon the delicate muslin,—her fingers being capable of moulding a Colossus. She sippeth her wine out of her glass daintily,—her capacity being that of a tun of Heidelberg. She goeth mincingly with those feet of hers,—whose solidity need not fear the black ox's pressure.

"Softest and largest of thy sex, adieu! By what parting attribute may I salute thee?—last and best of the Titanesses!—Ogress, fed with milk instead of blood!—not least, or least handsome, among Oxford's stately structures!—Oxford, who, in its dearest time of vacation, can never properly be said to be empty, having thee to fill it!"

MY PALACE.

Wound round and round within his mystic veil
The poet hid a noble truth;
The Soul's Art-Palace then he named the tale
Of those far days in youth.

I sought that palace on its haughty height,
And came to know its starry joys,
Its sudden blackness, and the withering blight
Of all its mortal toys.

At length the soul took lesson from her past,
And found a vale wherein to dwell,
With no Arcadian visions overcast
Or history to tell.

My fellows tended wandering flocks and herds,
Or tilled and nursed their scanty corn;
Little they heeded life that grew to words,
Yet gave no man their scorn.

Like them I wrought my task and took its gain,
That one might serve their homely need,
When skies were dark, and every cloud a pain,
And there were mouths to feed.

Thus labored day by day these unskilled hands,
Whose only master was a willing heart,
Till barren space smiled into garden-lands
Where roses shone apart.

Half faint with toil from morn to set of sun,
One night I watched the shadows creep
With stealthy footstep, when the day was done,

Toward my encastled steep.

The palace gleamed upon my dazzled sight,—
From long estrangement grown more fair:
I sank and dreamed my feet were mounting light
Over each golden stair.

Once more there came the voice of waters low
On cooling breezes perfume-fed:
It seemed I followed a grand leader, slow
Through marble galleries led.

Then sad I wakened in the vale, but found
The stately guide still drew me on:
Her name was Charity; her voice a sound
Of pure compassion.

She said,—"Beside thee every day I stood
To keep false memories aloof;
To-night I sorrowed for thy labor rude,
And put thee to the proof.

"Ascend again to yon high palace-towers,
With brothers share its plenitude,
And gather up with all thy princely powers
Joys to infinitude."

"Ay me!" I cried, "bid me not go afar,
While yet these little children call,
Lest life grow pallid as the morning star
In that cold shining hall!

"All shall be theirs: my lot is here below
To minister the goods I hold,
While suffering ones shall watch the torrent flow
In waves of amber gold.

"There childhood shall be laid on gleaming beds,

A saintly-eyed prophetic band,
And tinted oriels flame above their heads
To picture the new land.

"And dusky men shall press the snowy lawn,
Shall feel those tears that ease all pain,
Then wake to greet the free earth's noble dawn
And turn to rest again.

"There tired soldiers wash their bleeding feet,
Who gave for us their ripening youth
To earn pure freedom, dared all danger meet,
Content to die for truth.

"There, in the sleepless watch the organ's tone
Shall bear them on its swelling wing
To dreamful space, while star-fires one by one
In vibrant chorus sing."

Sudden there came a thought,—Thou hast no home,
No shaded haunt, or mansion wide,
No refuge after toil in which to roam,
Where silence may abide.

And then I saw a palace broad as earth,
Built beautiful of land and seas,—
Its eastern gate shone in the morning's birth,
The west o'ertopped the trees.

Free as wild waves upon an autumn day,
A world of brothers through its space
Might wander up and down, and sunbeams play
Even on Sorrow's face.

Here in the broad sunned silence of the noon
Peace waiteth to salute the worn,
And ever crowneth with her tender boon
Those who have nobly borne.

Like shafted light dropped in a sunset sea,
The radiant pillars of my home
Send from their glowing swift mortality
Great voices crying, "Come!"

THE DEACON'S HOLOCAUST.

I

A First-class old lady is the most precious social possession of a New-England town. I have been in places where this office of Select Woman had languished for want of a proper incumbent,—that is, where the feminine element was always supplicatory, never authoritative. In such a place you may find the Select Men as vulgar and unclean as are some of the more pretentious politicians of State or nation; the variety-store sands its sugar quite up to the city-standard; and the parson is as timid a timeserver as the Bishop of Babylon. No rich local tone and character are to be found in such a place.

This deplorable state of things had never existed in Foxden. When strangers took a carriage at the depot and asked to be shown whatever was noteworthy in the town, they were driven to a many-gabled house shaded by a majestic oak, and informed that there lived Mrs. Widesworth, the grand-daughter of Twynintuft, the famous elocutionist. They were also assured that the oak was no other than the Twynintuft Oak, celebrated in the well-known sonnet of a distinguished American poet. Moreover, they were instructed that the room just to the right of the porch was a study added by Twynintuft himself in the year '87, and that the shattered shed in the background was originally an elocutionary laboratory which had seen the forming of many Congressional orators.

In so confident a way was this information imparted, that visitors were compelled to receive it in all humbleness, and as a matter of course. They could only feign that Twynintuft had been a household word from their tenderest infancy, and that they have made pilgrimage to Foxden to gaze upon the earthly abiding-place of this remarkable man. Accordingly, young ladies sent their best respects from the hotel, and "Would dear Mrs. Widesworth spare them a few leaves from her grandfather's oak?" And simple young gentlemen, with a morbid passion for notorieties and moral sentiments, forwarded little books, bound in sheepskin heavily gilt,

inscribed, "World-Thoughts of My Country's Gifted Minds," and "Mrs. Widesworth is requested to write any maxim which her experience of life may have suggested on page 209 of this volume, just between the remarks of the Living Skeleton and the autograph of the Idiot Albino."

If invited to visit any one of consideration in Foxden, you would no sooner have deposited your travelling-bag and subsided into the arm-chair than you would perceive a curious nervous twitching about the features of your host, which would finally culminate in these, accents of patronizing triumph:—"My dear Sir, I shall be glad to take you across the street to pay your respects to Mrs. Widesworth!" Every householder quivered with anxiety until this rite had been solemnly performed.

Mrs. Widesworth, the actual, was a plump, well-to-do widow, of threescore years. She lived among her fellow-creatures, but not of them,—and that in a sense far more comfortable than Byronic misanthropy could imagine. She managed to keep all the tumult and competition of this rough world just outside the little whitewashed fence which inclosed her premises. No solitary saint of the Middle Ages floated in a more lofty independence of the foolish heresies of vulgar humanity. The mission of woman must, of necessity, be identical with the mission of Mrs. Widesworth,—and this was, to bestow a mellow patronage upon all creation. That whatever is right, and that this is the best possible of worlds, were to Mrs. Widesworth propositions which her perfect health and unmitigated prosperity continually proved. That, in a theological point of view, everything was wrong, she considered an esoteric condiment to add piquancy to the loaves and fishes which Providence had set before her.

Concerning the eminent Twynintuft, it may be remarked that he had devoted a long life to elocution, and produced a bulky manual full of illustrative quavers. And as it happened that his work was the first of the sort published in America, it obtained a pretty general circulation in schools and colleges, and was even patronisingly noticed in a British Review,—at that time the apotheosis of our native authorship. But, alas for the perishable nature of literary productions! "Twynintuft on the Human Voice" had long been superseded, and lay comfortably buried in that cemetery of dead textbooks from which there is no resurrection. Yet, as he had once been one of the notables of Foxden, the inhabitants of the town indulged

themselves in the soothing fiction that his memory was still verdant among men, and did pious homage to his representative.

Until the correspondence of Colonel Prowley had drawn Miss Hurribattle to Foxden, Mrs. Widesworth reigned by divine right. All quilting-bees and charitable fairs seemed but manifestations of her pervading vitality. Every social detail was submitted to her arbitrament. She hovered over the gossips of the town like Fate in a Greek tragedy,—but it was a reformed Fate, with a wholesome respect for family and condition.

An entertainment widely famous as "Mrs. Widesworth's Semiannual Singing-School" brought forth every spring and fall the entire strength of this excellent lady. The origin of this festivity was of ancient date. The early settlers in Foxden, while holding decided opinions concerning the mischief of church-organs, were unusually tolerant of vocal music. They doubted not that a preached gospel might be worthily seconded by a vigorous psalmody. Weekly meetings of the young men and maidens were allowed for practice, and the pot of beans, surmounted by its crisp coronal of pork, closed the evening in simple conviviality. This singing-school had descended through the generations, and in solemn rotation visited the families of all church-members. Under the fostering care of Mrs. Widesworth, the occasion grew to a musical festival of considerable importance. When the meeting was at her house, there were invited many citizens of distinction from the neighboring towns; also, there was summoned all that was lively, pretty, or profound in Foxden. From three in the afternoon until nine in the evening the old house broke out into singing, chatting, love-making, and sermonizing in rich variety. The ancient bean-pot gave place to a tea-table loaded with everything which might be baked or fried or stewed. Upon that day people in wise foresight made but slender dinners. The hostess was known to possess a culinary experience of no ordinary scope, and the air of the house was heavy with the delicate incense of waffles and dough-nuts. When the evening happened to be mild, and that comfortable estate of fulness whose adjectives the Latin Grammar tells us require the ablative had been attained, there was more music, secular, but highly decorous, beneath the rustling boughs of the oak. Then the merriment grew hearty, and mocked the sombre night. In vain the crickets chirped their shrill jeer at fallen humanity; the crackling leaves whispered,—but no more audibly than

to the painted Indians who once danced beneath the tree which the unborn Twynintuft was to monopolize.

Perhaps you think Mrs. Widesworth a kind-hearted, charitable, respectable old lady,—in short, a model citizeness! Many Foxden people thought so, until, in the fulness of time, they were drugged with iconoclastic logic, ghastly and fierce. Then this worthy person suddenly loomed before them as a patron and upholder of every social abuse. She was a trampler upon the rights of her sex, and deeply involved in the guilt of baby-selling at Charleston. Above all, she was a *Moderate Drinker*, (half a glass of Sherry with her dinner, you know,) and, as such, could be proved to be the bulwark of the bar-room, and directly responsible for the ruin of the most talented graduates of Harvard College. The brutalities of every wife-beating drunkard just landed upon our shores might be logically credited to Mrs. Widesworth, and to those *respectable* (with great sarcasm) *church-members* (sarcasm more intense) who countenanced the moderate use of intoxicating drinks.

For now there had come upon Foxden that political, sanitary, anti-everything revival, which, in those days, thrilled through our river-towns and took the place of the theological revival, which the churches seemed too feeble to produce. And—but this is addressed only to simple souls who think that Cæsar crossed the Rubicon, and Luther instituted the Reformation—the settlement of Miss Patience Hurribattle in a Foxden boarding-house produced the social upheaval which shook the place. Of course, the enlightened reader of the "Atlantic" is well aware that the mighty personages of history may be philosophically bejuggled out of all claim to the admiration or reprobation of men. What did they do but react on the society which created them?—what were they but the average tendencies of an age clad in petticoats or top-boots, as the case might be? So let it be written, that the great Cosmos-machine had ground itself to the precise point which necessitated a reformatory tumult in Foxden, and it mattered little who happened to be there to patronize it.

For several previous years Miss Hurribattle had borne about her an uncomfortable turbulence of heroic effort. She had gradually accustomed herself to regard our crooked humanity as something capable of being caught up and reformed by a rapacious philanthropist. She had reached a

mental condition to which the time was as thoroughly out of joint as it ever appeared to Hamlet, although, unlike that impracticable character, she took great comfort in the belief that she was especially born to set it right. The choice varieties of *men* know that truth as it is and truth as it appears to them are very different matters. But, thank Heaven, the feminine nature is bound by no such doleful barrier! The man who thinks is limited; the woman who feels may expand indefinitely. Miss Hurribattle's mission was to attract the world's capital of unemployed sentiment, and to set it to work in the mills of society. Let it be said of this woman, that, without wealth of talent or any exact culture, she possessed the sweetest accompaniments of the highest masculine genius,—enthusiasm and simplicity.

The questioning spirit gradually took form in various radical clubs and associations. Pleasing themselves with shining symbols, and complimenting each other with antique titles of nobility, a large majority of the Foxden shop-keepers enlisted in the sacred crusade. This new physical revival, like the old religious revivals, soon got into the schools, and processions of children, fluttering many-colored ribbons, paraded the streets. There was an Anti-Spirit League and an Anti-Tea-and-Coffee League; also an Anti-Tobacco League was in hopeful process of formation. And soon professional reformers of most destructive character were attracted to the place, and, having once attached themselves, hung like leeches upon the community. The celebrated Mrs. Romulus, and the great socialist, Mr. Stellato, snuffing their victims afar off, left their work unfinished in towns of less importance, and hurried to Foxden. Shrewd wasps were these, bent upon getting up beehives of cooperative activity. Less and less grew the stanch garrison who must defend the conservative citadel against the daring hordes. Nevertheless, some boldly stood out, and showed a spirit—or shall it be said an obstinacy?—which cowed unpractised assailants. Deacon Greenlaw had not yet been persuaded to burn his cider-mill,—although committees of matrons had visited him to ascertain when he proposed to do so,—although beves of children had been dressed in white and set upon Mrs. Greenlaw,—although Mr. Stellato, as Chief of the Progressive Gladiators, had called in person to demand a public destruction of that accursed instrument for the ruin of men. The Deacon defied the moral sentiment of the town. Doctor Dastick sturdily maintained that tea and coffee were not injurious, and had got hold of the preventing-waste-of-

tissue theory in respect to more potent beverages. The old-fashioned hospitable soul of Colonel Prowley took cognizance of the fact that the Odes of Horace made no unkindly mention of ripe Falernian, and that the most admirable heroes of Plutarch do not appear to have been teetotalers. Mrs. Widesworth, good lady, rode like a cork upon the deep unrest of society: she thought the whole business infidel as well as absurd, and, so thinking, did not trouble herself much about it. Mr. Clifton had preached a sermon in which he took the ground that morality could be best promoted by regulating, instead of extirpating, human propensities.

Then the rising tide of reform beat heavily upon the church-doors. By stiff, inexorable logic, those clergymen who refused to join the popular charge against the outworks of Evil were declared to be in intimate alliance with its very Essence. Although the Bible, as a whole, was held in little regard by the leading reformers, they were wonderfully expert in plucking out texts here and there, and dove-tailing them into scaffolding to sustain their platform. The grand denunciations of Jeremiah were shown to have been shot point-blank at our poor little New-England meeting-houses. It was *their* fasts and *their* new moons which the prophet (his prophetic claims were here generously admitted) aimed at. Some churches stood the shock of the angry elements. But many young ministers were borne away before the storm, and carried their side-aisles and galleries along with them. What! had a theological *simulacrum* of Satan excited their fathers to doughty deeds,—and should they hold back, when challenged to meet him in proper person, hand to hand? Thus persuading themselves, these ardent divines caught up bitter words which had drifted out of the dictionary, and laid about them with a spirit not wholly removed from the old ecclesiastical rancor which would kill where it could not convince. And taking it for granted that it is the mission of the intellect to rectify what is wrong in the world, fruition seemed to answer their efforts. Society was put to its purgation in very plausible fashion. Songs about Temperance and various desirable perfections of the outward man were shouted in bar-rooms hired for the purpose at considerable expense. Then there was dimly seen a further "progress," of which certain movers of the people were the warm advocates. Having got the machinery well to work, might it not be twitched and pulled to effect a wider purification? It began to be hinted that the use of wine in the sacred offices of religion could not be countenanced, if its employment

elsewhere were the monster iniquity it was shown to be. That philosophical friend of humanity, Mr. Stellato, began to denounce the consumers of animal food with every unpleasant illustration the shambles could be made to supply. In very select companies of sympathizers, as well as in the Graduating Circle of Progressive Gladiators, it was known that Mrs. Romulus maintained a hideous doctrine subversive of that sacrament of the family which raises the life of man above the life of the wolf and ape.

Yet of the views and endeavors of the great mass of these earnest people we may speak only with honor and gratitude. Much good work done in that distant year of grace remains with us to-day. Who is more practical than the idealist? If I read history aright, it is only the white-heat of fanaticism which brands a true word into the tough hide of society. A supreme pursuit of one virtue by the few can alone neutralize a supreme devotion by the many to the opposite vice. Let us rejoice that some men and women are under the necessity of thinking no good thought which they do not attempt to utilize at all hazards. Also, it is well not to repine overmuch because many conscientious citizens cannot induce a concentration of vision which directs all feeling, hissing-hot, into one channel. They save us from the intolerable monotony of a whole world of heroes, and leave you and me, good reader, in blessed freedom to demand the theoretically right and ignore the practically expedient.

To the beginnings of this angry perturbation the Reverend Charles Clifton had returned, after abandoning the Vannelle manuscript under circumstances detailed in the last number of this magazine. To one in his position of mind it was of the highest importance to come upon some work that he was fitted to do. It was his unhappy destiny to be placed just where such power as he had could accomplish nothing. Timid by nature, a cautious lover of compromise, self-baffled in a brilliant flutter for truth, what had he to do in a vulgar conflict of opinion, in a common, healthy play of free thought and speech? Peering off into immensity until he had become utterly adrift in theology, the minister found himself too feeble to stand upon the moral basis of some practical creed. His regular parish duties afforded but slender occupation; he had the gift of speaking extemporaneously, or from such notes as might be made upon the back of a letter half an hour before church; he was not called upon to do more catechizing or visiting than was agreeable to his mood. He accordingly

yielded to an indolence of disposition which detained his vanishing illusions, and indulged in such studies as served to prolong the barren contemplation which had wasted his youth. My knowledge of the secret committed for eighty years to the Mather Safe made me the only person to whom Clifton could freely write. At some private inconvenience, I admitted a tolerably full intercourse with my new correspondent. He declared that the sympathy of a man in active affairs was invaluable to a solitary student like himself: he hoped, so he said, to see through my eyes the facts of life. It was not difficult to discern the cause of the sad indecision which afflicted him. To state the case roughly, he had too much knowledge for his will. Busy people reason by instinct with sufficient accuracy, but with this man no conviction was for five minutes free from the probe of a metaphysical argument. Yet from glimpses I had obtained of that overwhelming System of Things elaborated by the two Vannelles, I could understand the condition in which its partial apprehension had left Clifton. The more I considered certain statements, authoritatively made in the portion of the manuscript I had dared to read, the firmer grew my belief that years of concentrated thought and fervent speculation had indeed illuminated, to these men, dim outlines of most august truths,—truths which some possible, although very distant, advancement of physical science might inductively realize. But I had made out to dismiss the matter, with the consideration that whatever it concerned me to know could be tied to no one method of pursuit,—and, so reflecting, returned contentedly to the multiplex concerns with which I was then occupied. Clifton, on the contrary, having always struggled loftily along the same narrow sunbeam, was utterly unable to accept such available knowledge of a principle as is sufficient to direct our activity,—he must ever soar skyward to gaze upon the origin of its authority, until, entangled in a web of contradictions, he fell impotent to earth.

Week by week, in my city-home, through letters from the minister and Colonel Prowley, I had been kept informed of the progress of that wild ferment going on in Foxden. At length the contentious spirit there evoked seemed ready to summon to trial all ancient and reputable things. My friends of the protesting minority were surely to be credited with good Puritan pluck; though there was also something admirable in the vigor which had marshalled a party for their discomfiture. I began to think it my duty to visit Clifton; moreover, I was curious to see the town at the height

of its effervescence. A note from Mrs. Widesworth supplied me with the needed excuse. The singing-school was to hold its semiannual meeting at her house on Thursday next; would I not come down for a day and meet many old friends?

II.

The fragrance of perfected harvests pervaded Foxden. The air was full of those sweet remembrances of summer which are better than her radiant presence. The sky overhead was flooded with rich autumnal sunshine. Far to the north lay glimmering a heavy bank of clouds. There might be rain before night.

I entered the familiar parsonage and inquired for its occupant. He had walked to the end of the garden with Miss Hurribattle, who had been with him for some hours. I was at liberty to await his return in a depressing theological lumber-room, called the study. The First Church had liberally supplied its former ministers with the current literature of their craft. Current literature! are not the words a mockery? could they ever have applied to those printed petrifications? One would sooner look for vitality among the frozen denizens of the Morgue on St. Bernard! Yet I doubt if these stately authors, wrapped in the cerements of their prosiness, may reasonably reproach a forgetful world. They ministered to the wants of *their* present, and by so doing were privileged to fashion a future which they might not enter and possess. Complain indeed! Why, their progeny had a good ten, twenty, or fifty years' life of it, as the case might be,—and here about us are men of greater enterprise and grasp doomed to work off paragraphs that perish on the day of printing. Well, no earnest soul can fail to modify the character of his age, and thus of all ages. So, if our generation demands ministry in newspapers instead of folios, a man may still win an honest immortality without the biography and the bother of it.

I looked up from the books to see the clergyman part with Miss Hurribattle at the gate, and then turn his steps towards the house.

There was something like embarrassment as we exchanged greetings, yet there was hardly time to mark this before it had passed.

"Ah, Heaven!" exclaimed Clifton, passionately, "how I envy that woman's faith in the omnipotence of a trifle! Suppose you or I can attain a judicial largeness of view, is it any compensation for that intense glow of the sympathies as they crowd into one specious channel? Why this man's yearning after intellectual satisfaction, when we only want a little fragment of truth to hang our sentiments upon?"

There was bitterness in the tone in which Clifton spoke. It hinted of the living death of a proud, disappointed man, who has renounced his youth of high motives and warm ideas, who has learned to condemn his boyish ambition to do some great thing for the world. Truly it is better to consume in the flame of a fierce sectarianism than to permit the spirit of youth to die when the gray hairs come.

"Nay, Sir," said I, "it is for you to be heartily thankful for this exuberant enthusiasm which has come to town. The complaint of the day is, that the doctrines of Christianity have either dissolved into abstractions or hardened into formalisms; and here you have a crop of fresh insights to direct aright, and to keep from degenerating into fanatical clamor."

"But how satisfy or control these crazy people who begin by ignoring the creeping pace of Time? Why, here is Miss Hurribattle, who has been these two hours beating into me, as with logical sledge-hammers, that it is my duty to denounce Deacon Greenlaw from the pulpit. The argument, to her mind, is overwhelming, as thus: Intoxicating fluids cause the breaking of all the commandments; cider, if one drinks enough of it, is intoxicating; Deacon Greenlaw presses apples, and sells the juice; he therefore upholds and encourages the aforesaid commandment-breaking;—it is the business of the pulpit to denounce sinners persisting in their sin, therefore, etc., etc.,—you perceive the conclusion. In short, if I do not instantly take the ruts of their narrow logic, and go about pounding into some and propounding unto others their pet scheme of regeneration,—why, I am a wolf in the sheep-fold, the Antichrist of prophecy, and I know not what other accursed thing. And here is truly the alternative,—to stagnate in a lifeless church, or to join these ravers in their breakneck leap at the Millennium."

"There is a noble element in this one-sided pertinacity," I suggested, "and a wise man might humor and use it for the best ends. Instead of attempting to

pull these hopeful people back into the church, cannot you urge the church forward to comprehend their position? This impulse,—fanatical as some of its manifestations doubtless are,—might it not be constrained, or at least directed?"

"Never by me!" exclaimed Clifton, haughtily. "I should have to commit myself to all the wild Saturnalia of their moralities before it would be possible to acquire any power over them."

"But surely you might go as far as any one in the advocacy of Temperance."

"Temperance! Why, you forget that I must denounce Temperance as the deadliest of sins, and proclaim Abstinence to be the only virtue. There is a grand State Convention of Progressive Gladiators at present in session in Foxden; all the neighboring towns have sent delegates. Well, it was only yesterday afternoon that Stellato, in behalf of one of the committees, denounced the clergy of New England as gross flesh-eaters who had made themselves incapable of perceiving any spiritual truth. And I happen to know that Mrs. Romulus so successfully manipulated Chepunic, not a hundred miles up the river, that before leaving that town she publicly delivered her lecture entitled, 'Marriage a Barbarism,' and professed to have discovered something far higher and holier than the chain of wedlock."

"I am sure that Miss Patience Hurribattle is ignorant of any such tendency in these new doctrines," I exclaimed, indignantly.

"Doubtless she is," assented Clifton. "There is a hopeful, simple-hearted gleam in her eye, a fine simplicity in her speech, which betokens enthusiasm of a purely religious type. But she is banded with those who would use religion only as a fiery stimulant to the intellect, never as a balm to the heart."

A crunching upon the gravel-walk. A man and a woman were hurrying up to the parsonage. The woman short, sharp, lean; the man unctious and foxy,—yet also representing a chronic state of gelatinous bewilderment. The Great Socialists,—I knew them at once.

"Triumph! triumph!" cried Mr. Stellato, bursting into the study. "Deacon Greenlaw has been converted at last! He will make a holocaust of his cider-mill!"

"He will signalize his submission to the Gladiators by a great Act of Faith!" exclaimed Mrs. Romulus. "His cider-mill will be publicly burned this afternoon at five o'clock. All the delegate Gladiators will march in procession to the ground. Invitations have been sent to the Order of Frugivorous Brothers, the Infants' Anti-Tobacco League,"—

"Two drops of the oil of tobacco will kill a tomcat of the largest proportions," murmured Mr. Stellato, in choral parenthesis.

—"the Principal and Patients of the Lilac-Hill Water-Cure, the Children of the Public Schools, the Millennial Choir, and Progressive Citizens generally," said Mrs. Romulus, finishing her sentence.

"It is the afternoon of Mrs. Widesworth's semiannual supper to the singing-school," hissed Mr. Stellato, maliciously. "The Deacon's cider-mill stands on the hill just before Mrs. Widesworth's house: the procession may be expected to pass before her windows about four o'clock; it will then make the circuit of the town, and reach the top of the hill a little before five, when the exercises will commence."

Some petulant reply seemed ready to spring from the lips of the clergyman, but he checked it, and said,—

"You will have more water than fire: those clouds drifting up over the river mean rain."

"Only wine-bibbers and flesh-eaters are affected by the weather!" responded Stellato, with great contempt. "Sunshine and storm are alike wholesome to the purified seekers for truth!"

"But there is no time to lose," cried Mrs. Romulus. "We have come to ask you, as pastor of the first church in this place, to make the prayer before the torch is applied. You will doubtless decline; but we shall then be able to assure the people that the Gladiators are rejected by an apostate church, which has been cordially invited to become their fellow-worker."

"You had really better think of it," urged Stellato, in a seductive whisper. "The fact is, there is a great excitement, and we are getting on famously. We are bound to carry the county at the next election, and in a year or two we shall sweep the State. We have already enrolled some of the best members

of your parish, and you see the Deacon is added to the list. Influential men who join us now will be well provided for when we come into power. We want funds to carry on the cause. Think how much you might do with such men as Prowley and Dastick! Ah, those abominable old sinners, it would be a charity to get something out of them to repair a little of the mischief they have done in the world."

I protested at the way in which these gentlemen were mentioned: they were friends of mine, and highly esteemed citizens.

"Sir, they are *Moderate Drinkers*," said Mrs. Romulus, with an emphasis which claimed the settlement of the whole question. "The Gladiators are full of pity for the poor lost inebriate. They propose to convert their bar-keeping brothers by a course of moral suasion. But they will ever proscribe and defy those relentless Moderate Drinkers who admit the wine-cup into their families, and—and—why, Sir, did you ever see the stomach of a Moderate Drinker?"

I never had.

"Mr. Stellato has one fourteen times the size of life, colored after Nature by a progressive artist. It is a fearful sight!"

I did not question it.

"Once more, there is not a moment to spare," said Mrs. Romulus, turning suddenly upon the clergyman. "The question is, Shall we put you upon our Order of Exercises?"

"It would not sound badly," insinuated Stellato, perusing the document in imagination: "Chant, by the Choir; Recitation of Original Verses, by Jane Romulus; Prayer, by the Reverend Charles Clifton"—

"Stop!" cried the clergyman. "I decline all connection with this business. I have no sympathy with its promoters, and I will never cower before the mob-tyranny they evoke. If I have yet any influence in the First Church, it shall be used in solemnly counselling all youths and maidens of the congregation to report themselves at Mrs. Widesworth's singing-school. The feverish paroxysms of these public meetings are doubtless more stimulating than the humble duties of home, or the modest pleasures at which a lady of

Mrs. Widesworth's character is willing to preside; but it is not the wholesome activity which a wise man may promote. And I know that to the children of our public schools such excitement is far more fatal than the cup they never coveted: their minds should be nurtured in moderation and simplicity, even as their bodies are best nourished upon bread and milk."

"Bread and milk!" echoed Mrs. Romulus in shrill falsetto; "say rather loaves of plaster and alum crumbed into bowls of chalk-mixture! This is the sort of bread and milk furnished by your barbarous civilization! But the beginning of the end of this priestridden world has at length come. A new era is dawning upon earth. Much-oppressed Woman asserts her entire freedom; she insists upon her passional independence, and demands harmonial development. She is going to get it, too! Stellato, come along!"

We watched them up the gravel-walk, and then off upon the dusty road.

The minister meditated in silence, as one who had the gift of penetrating beyond his fellows into the mystery of sin. Now he was distrustful: the time might soon come when he would be desperate. I think he almost longed for the power to become a proselyte to any active communion, even if it proposed but a new whitewashing of the sepulchre which hides the corruptions of society. Notwithstanding the vigorous words he had spoken, I knew him for one who could never take hearty satisfaction in denouncing any form of Error, because always fated to discern behind it the muffled figure of Truth. More than most men he felt the pressure of an awful fact which weighs upon such as are gifted with any fine apprehension of these worlds of spirit and matter,—namely, the impossibility of drawing anywhere in Nature those definite lines of demarcation which the mind craves to limit and fortify its feeble beliefs. If the boundaries of the animal and vegetable kingdoms are hopelessly interlaced, it is only an image of the confusion in which our blackest sins are shaded off into the sunlight of virtue.

"But why am I here?" exclaimed Clifton, suddenly starting to his feet. "I can at least swim a few desperate strokes against this current, before sinking beneath it forever! I can do something to save a few ardent maidens from this whirling water of Reform!"

"And yet," he continued, after a pause, "yet many, perhaps most of these wretched people, drained dry by their one idea, are devoted with absolute singleness of purpose to the pursuit of an honest thing. Let us consider whom and what we may be found fighting against. If these subverters do not altogether prove the truth of their own opinions, do they not at least demonstrate the error of those who totally oppose them? Here is Miss Hurribattle,—who will not acknowledge her noble contempt for the accidental and the transitory? I believe that woman desires Truth as earnestly as men desire wealth or reputation!"

"It is so, indeed," I assented. "Her large nature will assimilate whatever grandeur of idea may be found among this acid folk. After a little time she will reproduce in saintly form whatever gives its real vitality to this movement."

"Never!" said the clergyman; "they will put upon her the strait-jacket of their system, and carry her off to doom."

Soon after this we went in different ways through the town.

I called upon Mrs. Widesworth, who had a culinary engagement, and could not appear, and then walked to the top of the hill, where a number of the faithful were heaping tar-barrels and shavings about the solitary cider-mill. Regarding their operations from a little distance stood Deacon Greenlaw; his face wore an expression of grim humor, underlaid by a shrewd intelligence of the true position of affairs.

"They are making lively preparations for your holocaust," said I.

"Well, 't isn't exactly that long word neither," replied the Deacon. Fact is, I just looked it out in the dictionary, and there they call it 'a whole burnt-offering'; but it won't mean all that with me, I can tell you!"

"But, my dear Sir, surely you mean to go under the Juggernaut handsomely, and not squirm in the process?"

The Deacon indulged in an interrogative whistle, and jerked his thumb in the direction of a corn-barn which stood near the base of the hill.

I requested explanation.

"The floor of that corn-barn," observed its proprietor, "is covered with husks about four foot deep. Under those husks is my patent screw and a lot of cider-fixins. That old mill's a rattle-trap, any way. There's a place at the other end of the orchard a sight more handy for a new one. So, when folks get to reading their Bible without leaving out the marriage in Cana, why"—

"Then you have been badgered into this," I said, seeing that the Deacon was not disposed to finish his sentence.

"Well, they've been pecking at me pretty hard; and when Mis' Greenlaw and the girls went over, of course I couldn't hold out. I kept telling 'em that the Lord gave us apples, and I didn't believe He cared whether we eat 'em or drank 'em. But you see I had to knock under."

I questioned if it was going to rain, after all; for the clouds were scudding off to the east.

"They're just following the bend of the river," asserted the Deacon, elevating his chin to bring them within range, and giving them a significant nod, as if to recall an appointment. "These apple-trees will be dripping well before night. I know the weather-signs in Foxden. It is going to rain,—and, what's more, when it does rain, it'll rain artichokes,—and, what's more than that, I don't care if it does!"

III.

A wretched fragment of the singing-class met at the house of Mrs. Widesworth. Professor Owlsdarck had kindly come over from Wrexford to help fill up the rooms; but the pressure of his ponderous attainments seemed only to compress yet more that handful of miscellaneous miseries in the front-parlor. Eight or ten elderly people, one or two undergraduates at home for the college-vacation,—these were the guests. The precautions of Mrs. Romulus had not been taken in vain,—there could be no singing: none, unless—but I trust that this evil suggestion occurred to nobody—we were so lost to shame as to call upon the college-boys to supply the place of our absent psalmody with some of those Bacchanalian choruses with which they were doubtless too familiar. We felt rather wicked. We knew that we were stigmatized by that terrible compound, "*Pro-Rum*"; we were held up as the respectable abettors of drunkenness, the *dilettanti* patrons of pot-

houses, the cold-blooded connoisseurs in wife-beating and *delirium tremens*. That we really appeared all this to many honest, enthusiastic people could not be doubted.

Certain perplexing questions, which had fifty times been answered and dismissed, were ever returning to worry the general consciousness of the company:—Is it not best to scourge one's self along with a popular enthusiasm, when, by many excellent methods, it would sweep society to a definite good? Are not the ardors of the imagination better working-powers than the cold judgments of the reason? Should we ever be carping at controlling principles, when much of their present manifestation seems full of active worthiness? Above all, have we not listened to contemptible fallacies of self-indulgence and indolence, and then cheated ourselves into believing them the sober testimonies of conscience?

That some such melancholic refinements were restless in the brains of many I have no doubt. Probably only Mrs. Widesworth and the undergraduates were wholly undisturbed by them. Yet, in spite of this secret uneasiness, there was common to the company a stiff recognition of its own virtue, which seemed to impart a certain queer rigidity to the bodily presence of the guests. Dr. Dastick, for the first and only time in my remembrance, appeared with his trousers bound with straps to the bottoms of his boots. Colonel Prowley had thrust his neck into a stock of extraordinary stiffness, which seemed to proceed from some antique coat-of-mail worn beneath the waistcoat. The collar and cuffs of Miss Prowley were wonderful in their dimensions, and fairly creaked with the starch. The clergyman, indeed, wore his dress and manners in relaxed and even slouchy fashion; but this seemed not due to lightness of heart, but only to weariness of mind. I knew that something had caused him to feel acutely the limitations of his office. One might attribute such feelings to the bass-viol player in an orchestra, who, in whatever whirl of harmony, is permitted to scrape out only a few gruff notes. But there was dear Mrs. Widesworth, so deliciously drugged by the anodynes of Authority that she could shake the chains of custom till they jingled like sleigh-bells.

"Come, come," said this good lady; "why, you all seem to be following the advice of my grandfather Twynintuft,—which was, to let the mind muddle after dinner. He thought it strengthened the voice,—gave it *timber*, as he

called it. But, ah, dear! in these days so little attention is paid to elocution that it's of no consequence whatever!"

"I have endeavored, Madam," said Professor Owlsdarck, with great precision of utterance, "I have endeavored to impress upon my scholars that Socratic wisdom which condemned books as silent: a testimony, as I take it, of great importance to those who would perfect the instrument of oral instruction."

"There is no great elocutionist at the present day," said Mrs. Widesworth with pious regret.

"And little could we profit by him, if there were," rejoined the Principal of the Wrexford Academy. "For, in the present excited condition of our river-towns, men do not strive to copy the moderate virtues of the Ancients, but only to exaggerate their heathenish extispicy."

"Ah, very true, very true," sighed Mrs. Widesworth; "only I forget what that last word means."

"Extispicy," defined the Professor, "is properly the observation of entrails and divination thereby."

"Yet more is to be learned from bones," said Dr. Dastick, decidedly. "I hold that the performances of Cuvier alone are conclusive upon that point."

Colonel Prowley looked doubtful: it would hardly do to question thus lightly the wisdom of Antiquity.

Here Professor Owlsdarck experienced a queer twitching about the corners of his mouth,—an affection which since his poetical address before the Wrexford Trustees had occasionally troubled him.

"At any rate, Colonel," he observed, "we can agree, that, whatever amount of wisdom the Ancients may have shown in observing the digestive apparatus of animals, it certainly exceeded that of our modern philosophers, who are always contemplating their own."

"Truly, I believe you are right," responded Colonel Prowley. "There is my dear friend Miss Hurribattle, who is always coming to me with some new cure for people who are perfectly well. At one time Mrs. Romulus told her

that everybody should live on fruits which ripen at least six feet above-ground,—all roots having an earthy and degrading tendency. The last recipe for the salvation of society is, to take a little gravel with our meals, like birds."

Dr. Dastick partly closed his eyes, and said, with some effort,—

"I think that men are befooled with these new explanations of sin and its bitter fruits because the pulpit has done talking of the abiding sinfulness of our inherited nature. When I was a boy, the minister offered us the good old remedies of Baptismal Regeneration or Prevenient Grace, instead of bidding us drench our flesh with water or crack our bones with gymnastics."

At that moment Mr. Clifton turned towards me a half-startled, half-triumphant look. I felt that the idea had been working in his mind, but that he had used another's lips for its utterance. Under undetermined conditions certain minds are capable of employing a physical organization alien to themselves. If I had doubted this before, a foreign influence in my own person would have made it clear at that moment. For I felt a reply uttered from my lips which came not from my consciousness.

"The moral, perhaps, is, that the pendulum has reached the other extremity of the arc of oscillation, and that neither spiritual nor physical regeneration can walk in the fetters of a system."

Some one called out that the procession was passing. All crowded to the windows.

A few musical instruments. Plenty of ribbons and rosettes; also, emblems of mysterious device. Banners inscribed with moral texts. Miss Hurribattle. The school-children in white. Members of the School-Committee in demi-toilet. More banners. Mr. Stellato, as chief of the Gladiators, covered with a pasteboard helmet, and bearing a shield inscribed "TRUTH." (N.B. The inscription in German text by the school-children.) The Progressive Guard with javelins,—*papier-maché* tips gummed over with shiny paper. A Transparency,—at least it could be used as such in lecturing emergencies,—representing the interesting medical illustration to which Mrs. Romulus had alluded in the morning. The choir singing a progressive anthem,

accompanied by extravagant gestures. Other banners waved in cadence with progressive stanzas. Mrs. Romulus and the Lilac-Hill Water-Cure Establishment. Progressive citizens generally; these in various stages of exaltation, and cheering fervently.

"The old infectious hysteria of religious revivals, limited by fresh air and gentle exercise, is it not, Dr. Dastick?"

The Doctor answered my inquiry with a non-committal "humph" of the most professional sort.

"Plato tells us that the Greek Rhapsodists could not recite Homer without falling into convulsions," said Professor Owlsdarck.

"That is very remarkable," said Colonel Prowley, deeply impressed.

"I had no idea that these youths and maidens could justify their eccentric proceedings by so high an authority," observed his sister.

The brother objected. He thought that the same effects could not rightly be attributed to a modern song-writer and the Blind Old Poet.

"Blind Old Poet!" exclaimed one of the undergraduates, very thoughtlessly. "Why, my dear Colonel Prowley, you are blinder than ever he was! Don't you know that recent scholarship has demonstrated Homer to be nobody in particular? The 'Iliad' and 'Odyssey' are mere agglomerations of the poetical effusions of a variety of persons; and doubtless all of them could see as well as you and I can."

It was distressing to mark the grief and indignation which suddenly clouded the countenance of my old friend. Was not the last noticeable publication in post-classical literature the "Rasselas" of Dr. Johnson? Had not all those well-disposed people who hailed it as the brightest combination of literary and moral excellence which a mere modern could produce,—had they not lived and died in respectable allegiance to the Homeric personality? To say nothing of a mystical admiration of the Greek hexameters which he could not construe, Colonel Prowley was a diligent reader of Pope's sonorous travesty. He felt like some simple believer in the divine right of kings, when the mob have broken into the palace, and stand in no awe of the stucco and red velvet. Yes, of course I admire original minds,—but then I love those

which are not original. And truly there was a stately echo about the old gentleman which always went to my heart.

"Our friend spoke incautiously," I said. "I make no doubt that Professor Owlsdarck will tell us that the preponderant evidence is in favor of Homer the individual, notwithstanding a few troublesome objections."

"He was buried," replied the Professor, "perhaps at Smyrna, perhaps at Cos, perhaps at neither. It is not easy to decide what ancient city may rightly claim his bones."

"He should have shown a sense of their value by writing some verses about them," urged Dr. Dastick. "There was Shakspeare, whose genius culminated in those important osteological observations inscribed upon his tombstone!"

At this point the undergraduate murmured something about "Wolf's Prolegomena," which was lost in a dull rumble of thunder,—as if some giant outside the house had taken up the title and was gruffly repeating it.

And now the storm was coming.

The sky darkened rapidly.

The atmosphere lay thick and yellow.

Where was the procession? Would it not be necessary to omit the triumphal progress through the town, and come to the hill at once?

Windy whiffs—fledgling stormlets—practised in the branches of the Twynintuft oak. The great tree lunged and croaked at them. Suddenly the lilac-bushes were fanned into fantastic shapes. The sumach perked its red *pompon* like a holiday soldier, and then flung skyward its crimson battle-flag. The wind blustered among the fallen leaves, and slammed a loose blind or two. It grew darker,—still darker.

The procession, at last,—a straggling remnant of it,—was seen pushing up the hill. A remnant indeed! The children, and those having charge of them, had withdrawn. The Committee-men had sought shelter. The Progressive Guard was decimated. Every moment men and women were falling out of rank and hurrying away.

It was a little group that at length collected about the cider-mill. Little at first,—less every instant. It would be necessary to abridge the exercises. We saw Mrs. Romulus mount a barrel and harangue the seceders with furious gesticulation. A book was passed up to her, and she apparently gave out some hymn or ode suitable to the occasion. Alas! there remained no choir to give it vocal expression.

A hurricane-gust struck the town, and drove clouds of dust along the street. Perhaps it was five minutes before the hill was again visible. Then there stood by the Deacon's cider-mill three figures. Mr. Stellato waved a torch about his head, and flung it into the combustibles. A sheet of flame shot madly up. Mrs. Romulus seized one of the abandoned banners and flourished it in triumph.

Again the Twynintuft oak ground its great branches together, and threw them heavenward for relief. The relief came. The dry agony of Nature burst in a flood of tears.

The rain came beating down. It came with a sudden plunge upon the earth, drenching all things. And then, the sharp, curt rattle of hail.

"Come to the middle of the room, the lightning is straight above us!"

We crouched together as the thunder crashed over the house. Rain,—nothing but rain. No ever-varying light and shade, as in common squalls. One great cascade poured down its awful monotony.

A bursting noise at the door. There stood before us Mrs. Romulus, Miss Hurribattle, and Mr. Stellato. Soaked, dripping, reeking,—take your choice of adjectives, or look into Worcester for better. The ladies might have passed for transcendental relatives of Fouqué's Undine. Stellato, with his hair and face bedaubed with a glutinous substance into which his helmet had been resolved, did not strongly resemble one's idea of a Progressive Gladiator. Truly, a deplorable contrast between that late triumphant march before the house, and this present estate of the leaders, so reduced, so pitiable!

"Oh, dear, dear, what can I do for you?" cried good Mrs. Widesworth, forgetting all resentment in a gracious gush of sympathy.

"Only wine-bibbers and flesh-eaters are affected by the weather," murmured the clergyman, in bitter quotation, "Storm and sunshine are alike wholesome to the purified seekers for truth."

"Seekers for truth!" echoed Professor Owlsdarck; "one would say that our friends must have been seeking it in its native well."

"As a medical man," said Dr. Dastick, "I shall direct Mrs. Widesworth to provide some dry garments for her unexpected guests. Also, I think it my duty to mention that a glass of hot brandy-and-water would be but common prudence."

"The first part of your advice shall be complied with," assented our hostess,—"that is, if I can find anything to put on to them. As to the last suggestion,—I have, to be sure, a decanter of fine old Cognac in the closet, but it would be almost an insult to offer it."

"The pledge has its important exceptions," observed Mr. Stellato, shivering perceptibly. "Except when prescribed by a medical attendant,—I believe I quote the exact language, Mrs. Romulus,—and Dr. Dastick has a diploma."

"Come up-stairs, then," said Mrs. Widesworth, taking the decanter from the closet; "you will all catch your deaths of cold, if you stay another minute."

When the three patrons of Progress again appeared among us, they really seemed to have accomplished their transference to an unconventional and pastoral era. The ladies were quite lost in the spacious habits provided for them. Likewise, they were curiously swathed in shawls and scarfs of various make and texture, and might be considered representatives of any age, past, present, or future, to which the beholder might take a fancy. Mr. Stellato had been got into the only article of male attire which the establishment afforded. This was an ancient dressing-gown, very small in the arms, and narrow in the back: it had belonged to Twynintuft himself, who was six feet two, and as thin as a bean-pole. The thickly wadded skirts swept the ground, or clung heavily about the lower limbs. The garment combined every disadvantage of a Roman toga and a fashionable swallow-tail.

Mrs. Romulus and Mr. Stellato, who had not scrupled to avail themselves of the Doctor's prescription, were still noisily progressive. They at once led a

moral charge against Professor Owlsdarck and Colonel Prowley.

Miss Hurribattle, refusing such warmth as might be administered internally, was pale and chilly. She separated herself from her companions, and crossed the room to where I stood. Her face was radiant with devout simplicity. To a soul so pure and brave and feminine may I never be guilty of applying a hard and technical criticism! He is little to be envied who reads Don Quixote's assault upon the windmills as a chapter of mad buffoonery. An ideal knight, without fear or reproach, subject to disaster and ridicule, august from his faith in God and the manly consecration of his life,—is he not rather the type of a Christian sanity? No doubt, such a character seems altogether mad to you, my friend, who pass the window as I write these words. You have huckstered away opportunity just upon the edge of indictable knavery; your ambition has been to be well with the wealth and sleek respectability of the day, to make your son begin life the sordid worldling that you end it, to marry your daughter to the richest fool,—and this you call sanity and common sense! Is it not some Devil's subtlety that deludes you? If Man is an immortal soul, to be saved or damned forever, then he only is sane who welcomes privation, toil, contempt, for a spiritual idea. "Attacking windmills!" you say. That is, they seem so to you. But it may be that your brother's clearer eye and practised intelligence show them the giants which they truly are. But, be they giants or windmills, mark you this: his life illustrates some grade of manly worthiness which the world would be poorer without, while to himself the gain of an unselfish activity is a certain blessedness. I hold it, then, of small matter, that, for a time, Miss Hurribattle mistook two charlatans, three-fifths knavery, the rest fanaticism, for honest workers in the Lord's vineyard. Far better such over-faith than the fatal languor which seemed to terminate Clifton's too close scrutiny of life. A buoyant and never-failing enthusiasm is the divine requital of faithful service. "The reward of virtue is perpetual drunkenness!" exclaims the half mythic Musæus; "*Crucem hanc inebriari*," the Church has responded. It has a flavor as of Paradise when a woman brims over with some fine excitement,—and that among godless, unrepentant men.

"The storm has not prevented the accomplishment of our purpose," said Miss Hurribattle, pleasantly; "we have this day made our protest against the most dangerous form of evil."

"One of the most obvious forms, certainly," I replied; "we might not quite agree about its being the most dangerous."

"I must demand all those republican virtues which should be the fruit of our New-England liberty,—I must be strictly consistent."

I jestingly pleaded the familiar proverb about fools and dead men, and observed that there was great obscurity surrounding the real sources of evil in our social life.

"I once thought as you do," said the lady; "but, from my constant association with philosophical minds like those of Mrs. Romulus and Mr. Stellato, much has been made clear to me. They have devoted their lives to the study of modern civilization, and are skilful in the nice adaptation of remedies to all public disorders."

"How long have you known these two persons?" I asked.

"They came to Foxden about a month ago. I had then organized the Temperance movement among the school-children, and devised a scheme for furnishing employment to drunkards who would make an effort to reform. But these more worthy guides of humanity soon reduced matters to first principles. They showed that all Moderate Drinkers and the Church which sustains them must be exposed and denounced. They have done a great work, as you see. Only a few people in Foxden have dared to stand against them. Deacon Greenlaw, one of the most obstinate cases, has just yielded to their persevering treatment."

The rain at length stopped.

Many persons who had appeared in the procession straggled in, looking rather sheepish. The singing, indeed, had failed; but the supper was in prospect.

Stellato was at high-pressure, and ready to lead his adventurous Gladiators into the very camp of the enemy. Mrs. Romulus, wholly above the prejudices of the toilet, would stay and bear him company.

Miss Hurribattle, not having cast out that "clothes-devil" against which the old theologians used to warn her sex, wished to return to her boarding-

house. It being by this time dark, or nearly so, I offered to see her home. Mr. Clifton volunteered to accompany us.

"The Deacon's cider-mill is smoking after all this drenching!" exclaimed Mrs. Widesworth.

"The torches of the Bacchantes, when flung into the Tiber, were said still to burn," observed Professor Owlsdarck, after rummaging about a little for an historical parallel. "And here we seem to find a point where the modern enthusiasm for water and the ancient fervor for wine tend to like results."

Colonel Prowley was peculiarly interested,—so much so, indeed, that he shook hands with us absently. Mrs. Widesworth was profuse in entreaties, and then in hearty farewells.

We walked up the street.

A spring freshness was in that autumn evening. The air was purified by the storm, as society is purified after a tempestuous feeling has blown through it.

I think that both of her companions felt abased by the vivid faith which sparkled in Miss Hurribattle's conversation. We were both rebuked by her life-effort for what was high and positive and real. The clergyman, examining the depths of his own sensitive spirit, felt keener contempt for that theoretical good-will, that indefinite feeling of profound desire, which might not be concentrated upon any reality. And it came over me, how mean was the thirst and struggle for a merely professional eminence which filled my common days. As in a mental *mirage*, which loomed above the thickening twilight, I saw how our paths diverged, and whither each must surely tend. No doubtful way was hers, the single-hearted woman of lofty aims, of restless feminine activity, of holy impatience with sin. She might, indeed, miss the clue which guides through the labyrinth; but then her life would teach mankind even better than she designed. On the other hand,—supposing the position attained which too constantly occupied my own thoughts,—there was an admiration of men, a market-salutation from reputable Commonplace, a seat in a fashionable church, a final lubrication with a fat obituary,—and then? But it was no part of my design to invite the reader into the inner chambers of my own personality, and I forbear.

After a half-mile walk, we left Miss Hurribattle, and turned our steps towards the parsonage.

"I sometimes feel that her instinct reasons more accurately than my poor logic," said Clifton, bitterly; "yet it is a hard necessity to sacrifice our individual faculties of comparison and judgment for the working-power of a fervid organization!"

"No doubt it is a matter for serious question," I replied. "For, as soon as we grow out of our languid and feeble maladies, we grow into the violent inflammatory disorders which troubled our forefathers. The doctors will tell you that this is true of our bodies; and surely the soul's physician may pursue the analogy."

"I can no longer hope to heal any man's soul," exclaimed the clergyman; "it is enough if my own be not wholly lost. I shall to-morrow formally resign the sacred office of teacher in this place. With the final renunciation of the great purpose which once swayed my life, I must renounce every symbol less profound, less poetic. I must make my boast of an intellect which will never let any affection pass the line of demonstrable truth. I once knew how grand it was to stand alone in the world of an inward faith; but now I have renounced all belief in an ideal human being inclosed in this poor body whom it was my business to liberate."

As we stopped at the broad path leading to the parsonage, I ventured to say a few words which I will not set down.

More and more I was drawn towards the high and intense life of the woman in whom all that was wrong seemed but an excess of virtue. I could have besought some fanatical warlike spirit to take possession of Clifton and make him capable of hate, and so, perhaps, of love. Anything to arouse this personator of our human mutability, this vacillator between doing and letting alone!

The wild future of the minister I did not anticipate. Hereafter it may possibly be written, to show such lessons as it has. But on that autumn night he walked up the gray pathway a broken man. The spiritual part was dead; he had lost faith in the invisible. He walked as one in a funeral procession, —ever doomed to follow a dead idea.

THE UNITED STATES ARMORY.

The United States Armory at Springfield, Massachusetts, is the largest, best appointed, and altogether the most productive establishment for the manufacture of small arms in the world,—those belonging to the Austrian Government at Vienna, and to the British at Enfield, being greatly inferior both in size and appointments; while the quality of the guns manufactured here is very superior to that at either of those important establishments. Indeed, the Springfield rifled musket is justly regarded as the most perfect arm of its kind which has ever been produced. To attain this desirable point of excellence has required the skill and perseverance of the best mechanical minds which this country—always prolific in inventive genius—has produced during a period of more than half a century. It would be impossible to estimate the value of these works during the existence of the present Rebellion; but some idea may be formed of their usefulness from the fact that twenty-five thousand rifled muskets of the most approved pattern are manufactured at this establishment every month, and the number will soon be increased to thirty thousand. There are at the present time one hundred and seventy-five thousand of these muskets in the arsenal, awaiting the orders of the War Department, and the works are daily turning out enough to arm an entire regiment.

When the Rebels fired upon Fort Sumter, the armory was making about one thousand muskets per month, and three months afterwards the increase amounted only to three thousand, so little preparation had been made by the Government of Mr. Buchanan to meet the great struggle which Southern demagogues were precipitating upon us. Indeed, the number of muskets manufactured during the last year of his administration was less by several thousand than these works turned out during the year 1815; while, during this same period, the residents of streets leading to the railway-station witnessed the extraordinary spectacle of a daily procession of wagons laden with boxes of Government arms on their way to Southern arsenals!

Twenty-six hundred workmen are now constantly employed,—the establishment being run day and night,—and none but the most expert and

industrious artisans are to be found among them.

The original site of this armory was occupied during the Revolution as a military recruiting-post, afterwards as a depot for military stores, and then as a place for repairing arms. The first shops were on Main Street, and among them was a laboratory for cartridges and various kinds of fireworks. The oldest record in the armory relates to the work done in this laboratory during the month of April, 1778, showing that about forty men were then engaged in the business. Not far from the date of this document the works were removed to the hill, where, enlarged and perfected, they are legitimately the object of admiration and pride. The act establishing the armory was passed by Congress in April, 1794.

The arsenal, storehouse, offices, and principal manufacturing buildings are situated on Springfield Hill, and overlook the Connecticut valley at a commanding elevation. The heavier operations of the armory are carried on in another part of the city, about a mile distant, in buildings known as the water-shops. These are situated upon a small stream which flows into the Connecticut River at this point.

The armory-grounds on the hill cover an area of seventy-two acres, and are surrounded, with the exception of a small square detached from the main grounds, by an ornamental iron fence, nine feet in height. These grounds are exceedingly beautiful, and present every variety of landscape. A beautiful slope to the south and west, covered with luxuriant verdure, and crowned with groves of deciduous trees and evergreens, affords the eye peculiar gratification. The grounds combine also the useful with the ornamental, supplying hay enough to feed a score of horses belonging to the establishment.

There are fifteen buildings used in the manufacture of muskets at the works on the hill, and about the same number occupied as residences by the various officers and head-clerks of the armory. Some of the buildings are spacious and elegant in their construction, particularly the quarters of the commanding officer, and the arsenal, and are arranged in a picturesque and symmetrical manner within the square. The grounds are shaded by ornamental trees, and the dwellings are adorned with gardens and shrubbery. Broad and neatly kept walks, some gravelled and others paved,

bordered by finely clipped hedges, extend across the green or along the line of the buildings, opening charming vistas in every direction. Four venerable pieces of artillery, all betokening great age, if not service, standing in the centre of the square, furnish the only outward and visible show of the military character of this immense establishment.

The principal building, as regards size and architectural beauty, is the arsenal, which is two hundred feet long by seventy wide, and three stories high,—each story being sufficiently capacious to contain one hundred thousand muskets. The muskets, when stored in this arsenal, are arranged in racks, set up for the purpose, along the immense halls, where they stand upright in rows of glittering steel, and so closely resemble the pipes of an organ that the propriety of Longfellow's simile suggests itself at once to every observer:—

"This is the arsenal. From floor to ceiling,
Like a huge organ, rise the burnished arms;
But from their silent pipes no anthem pealing
Startles the villages with strange alarms."

Unhappily, the last two lines of this beautiful stanza no longer appropriately describe the quiet and peaceful condition of these then harmless arms,—one hundred and fifty thousand of them having been literally stolen from this arsenal by Floyd during the last year of his secretaryship at Washington, and sent South in anticipation and furtherance of the Rebellion, and the remainder issued to the loyal troops raised for the defence of the Union. Thus these grim messengers of death, of whom the poet so sweetly sings, have forced

"The cries of agony, the endless groan,"

from Northern and Southern warriors alike, and rung the

"loud lament and dismal Miserere"

within the homes of every part of our once happy and peaceful land.

The arsenal has another charm for visitors besides the beauty of the burnished arms within, in the magnificent panorama of the surrounding

country seen from the summit of the tower. This tower, which occupies the middle of the front of the building, is about ninety feet high by thirty square, affording space upon the top for a large party of visitors. Nothing can be imagined more enchanting than the view presented from this point during the spring and summer months. At your feet are the beautiful armory-grounds, mingling with the treeskirted streets of the city; while beyond, the broad and luxuriant valley of the Connecticut is spread out to view, with its numerous villages, fields, groves, bridges, and railways, and the whole landscape framed by blue mountain-ranges, among which Mounts Tom and Holyoke rise in towering majesty.

The arsenal is used for the storage of the muskets during the interval that elapses from the finishing of them to the time when they are sent away to the various permanent arsenals established by Government in different parts of the country, or issued to the troops. This edifice was constructed about a dozen years ago, and has, until recently, been designated as the new arsenal, there being two or three other buildings which were formerly used for the storage of finished muskets, called the old arsenals, but which, since the Rebellion, have been relieved of their contents and supplied with machinery for the manufacture of arms. A portion of the new arsenal is now used for finishing barrels and assembling muskets, and other parts for storing ordnance-supplies.

The storehouse, offices, and workshops are extensive buildings,—the former being eight hundred feet long, and one of the latter six hundred feet long and thirty-two feet wide.

In a description of the armory printed in 1817, the grounds are described as a perfectly level, elevated plat, situated about half a mile east of the village, from which there is a gradual ascent, flanked on the north by a deep ravine and on the south by a less considerable one, with an extensive plain spreading in the rear, the adjoining parts being uncovered, fronting on the brow of the declivity, and commanding an extensive and beautifully variegated landscape. At the present time, the armory is not only in the city, but the streets at the north, south, and east of the grounds are as thickly inhabited as any other portion of the town. There has, however, been an increase in the population of Springfield since 1817, from two to twenty-six thousand souls. A larger number of workmen are employed within the

armory-grounds at the present time than the entire population of the place amounted to fifty years ago.

The water-shops formerly occupied three different sites, being denominated the upper, middle, and lower water-shops, on a stream called Mill River, which exhibits, in a distance of less than half a mile, four or five of the most charming waterfalls to be seen in the State. In 1817 these works comprised five workshops, twenty-eight forges, ten trip-hammers, eighteen water-wheels, nine coal-houses, three stores, and five dwellings.

These buildings were all constructed in the most substantial manner, of stone and brick, and yet remain in an excellent state of preservation. The trouble and expense attending the transportation of the various parts of the musket from one series of shops to another, however, rendered it desirable to assemble them all in one place, and the location of the upper shops was decided upon as the most advantageous. About eight years ago the work of constructing the new shops was begun. Extensive excavations were made for a new dam, the bed of the stream was changed, the sides being laid for a distance of half a mile with freestone, and the basin raised five feet above its former level. Some idea of the magnitude of these works may be formed from the fact that over one million dollars was expended upon the foundations alone, before a brick was laid in the superstructure.

A beautiful and extensive series of buildings has since been erected upon these foundations, covering an area of about two acres, in which the forging, boring, welding, rolling, grinding, swaging, and polishing are done for the entire establishment. The buildings are, for the most part, two stories high, and yet so immense are the operations carried on here that numerous temporary sheds have been erected about the grounds, in which machinery is placed in order to increase the facilities, which, when the works were constructed, were supposed to be sufficient for all time to come.

Since the construction of the new dam, the water has a fall of thirty-four feet. Three immense turbine water-wheels, having a united power equal to three hundred horse, were put in when the consolidated works were first constructed here, which it was supposed would prove amply sufficient for all emergencies; but, since the breaking out of the Rebellion, and the marvellous enlargement of these works, it has been found necessary to put

in a steam-engine of two hundred horse-power, to act in conjunction with the water-wheels.

Having thus given a general description of the exterior of the establishment, let us now enter the works and witness the entire operations of manufacturing the musket, *seriatim*.

The first operation is the formation of the barrel. Formerly these were made from plates of iron called scalps, about two feet long and three inches wide, which were heated to a white-heat and then rolled up over an iron rod, and the edges being lapped were welded together, so as to form a tube of the requisite dimensions,—the solid rod serving to preserve the cavity within of the proper form. This welding was performed by tilt-hammers, which were carried by the water-wheels. Underneath the hammer was an anvil containing a die, the upper surface of which, as well as the under surface of a similar die inserted in the hammer, formed a semicylindrical groove, producing, when the two surfaces came together, a complete cylindrical cavity of the proper size to receive the barrel to be forged. The workman, after heating a small portion of the barrel in his forge, placed it in its bed upon the anvil, and set his hammer in motion, turning the barrel round and round continually under the blows. Only a small portion of the seam is closed by this process at one heat, eleven being required to complete the work. To effect by this operation a perfect junction of the iron, so that it should be continuous and homogeneous throughout, without the least flaw, seam, or crevice, required unremitting attention, as well as great experience and skill. The welders formerly received twelve cents for each barrel welded by them, but if, in proving the barrels, any of them burst, through the fault of the welders, they were charged one dollar for each barrel which failed to stand the test. This method has now, however, been abandoned, and a much more economical and rapid process adopted in its place. Instead of plates of two feet in length, those of one foot are now used. These are bent around an iron rod as before; but in place of the anvil and tilt-hammer, they are run through rolling-machines, analogous in some respects to those by which railway-iron is made. The scalps are first heated, in the blaze of a bituminous coal furnace, to a white-heat,—to a point just as near the melting as can be attained without actually dropping apart,—and then passed between three sets of rollers, each of which elongates the barrel, reduces its diameter, and assists in forcing it to assume the proper size and

taper. The metal by this process is firmly compacted, becoming wholly homogeneous through its entire length.

This operation of rolling the barrel is not only a very important and valuable one, but very difficult of acquisition, the knowledge appertaining to its practical working having been wholly confined to one person in this country previously to the breaking out of the Rebellion. The invention is English, and has been used in this country but a few years. Only one set of rollers was used at this armory until the present emergency demanded more. About half a dozen years ago the superintendent of the works here sent to England and obtained a set of rollers, and a workman to operate it, bargaining with him to remain one year at a stipulated salary. At the expiration of the time engaged for, the workman demanded, instead of a salary, to be paid eleven cents for each barrel rolled by him. As he had allowed no one to learn the art of rolling the barrel in the mean time, his demand was acceded to; but after the breaking out of the Rebellion four additional rolling-mills were imported, and of course new men had to be taught, or imported, to work them. The art is now no longer a secret. There are forty men employed, day and night, running the rolling-mills, but, instead of twelve cents, which was paid for welding, they now receive but four cents for rolling a barrel, with the same contingency of a dollar forfeiture for each one that bursts. Four persons are employed at each mill, namely: the foreman, who sees to the heating of the scalps and barrels; the straightener, who straightens the barrel after it passes through the roller; the catcher, who stands behind the roller to catch the barrel when it has passed through; and the fireman. The rollers weigh two tons apiece, and the five sets turn out one thousand barrels per day, one per cent. of which burst in the proving-house.

The barrel when rolled is left much larger in the circumference, and smaller in the bore, than it is intended to be when finished, in order to allow for the loss of metal in the various finishing-operations. When it passes into the roller, the scalp weighs ten pounds; when it comes from the roller, the barrel weighs a little over seven; when completed, it weighs but four and a half: so that more than one half of the metal originally used is lost in the forging, or cut away by the subsequent processes.

The first of these latter is the boring-out of the interior by machines called boring-banks, of which the water-shops contain a large number, in constant operation day and night. These machines consist of square, solid frames of iron, in which the barrel is fixed, and bored out by a succession of operations performed by augers. These augers are square bars of steel, highly polished, and ground very sharp at the edges, and terminating in long, stout rods to enable them to pass through the barrel. The barrels are fixed very firmly in the boring-banks, the shank of the auger inserted into the centre of a wheel placed at one end of the bank, and a slow rotary motion given to the auger, together with a still slower progressive motion at the same time. By this means the auger gradually enters the hollow of the barrel, and enlarges the cavity as it advances. After it has passed through, another auger, a trifle larger, is substituted in its place, and thus the calibre of the barrel is gradually enlarged to nearly the required size. Formerly, six borings were given to each barrel, but at the present time only four are permitted, aside from the rifling, which is a distinct operation, performed at the works on the till, and will be described hereafter.

After the boring of the barrel, it is placed in a lathe, and the outside turned down to the proper size. The piece is supported in the lathe by means of mandrels inserted into the two ends, and there it slowly revolves, bringing all parts of its surface successively under the action of a tool fixed firmly in the right position for cutting the work to its proper form. The barrel has a slow progressive as well as rotary motion during this process, and the tool advances or recedes very regularly and gradually, forming the proper taper from the breech to the muzzle, but the main work is performed by the rotation of the barrel. In the boring, it is the tool which revolves, the piece remaining at rest; but in the turning, the barrel must take its part in action, being required to revolve against the tool, while the tool itself remains fixed in its position in the rest.

A curious and interesting part of the operation of manufacturing muskets is the straightening of the barrel. This straightening takes place continually in every stage of the work, from the time the barrel first emerges from the chaotic mass produced by heating the scalp, until it reaches the assembling-room, where the various parts of the musket are put together. As you enter the boring and turning rooms, you are struck with surprise at observing hundreds of workmen standing with musket-barrels in their hands, one end

held up to their eyes, and the other pointing to some one of the innumerable windows of the apartment. Watching them a few moments, however, you will observe, that, after looking through the barrel for half a minute, and turning it around in their fingers, they lay it down upon a small anvil standing at their side, and strike upon it a gentle blow with a hammer, and then raise it again to the eye. This is the process of straightening.

In former times, a very slender line, a hair or some similar substance, was passed through the barrel. This line was then drawn tight, and the workman, looking through, turned the barrel round so as to bring the line into coincidence successively with every portion of the inner surface. If there existed any concavity in any part of this surface, the line would show it by the distance which would there appear between the line itself and its reflection in the metal. This method has not, however, been in use for over thirty years. It gave place to a system which, with slight modification, is still in practice. This method consisted in placing a small mirror upon the floor near the anvil of the straightener, which reflected a diagonal line drawn across a pane of glass in a window. The workman then placed the barrel of the musket upon a rest in such a position that the reflected line in the mirror could be again reflected, through the bore of the barrel, to his eye,—the inner surface of the barrel being in a brilliantly polished condition from the boring. When the barrel is placed at the proper angle, which practice enables the person performing this duty to accomplish at once, there are two parallel shadows thrown upon opposite sides of the inner surface, which by another deflection can be made to come to a point at the lower end. The appearance which these shadows assume determines the question whether the barrel is straight or not, and if not, where it requires straightening. Although this method is so easy and plain to the experienced workman, to the uninitiated it is perfectly incomprehensible, the bore of the barrel presenting to his eye only a succession of concentric rings, forming a spectacle of dazzling brilliancy, and leaving the reflected line in as profound a mystery after the observation as before.

At present, the mirror is discarded, and the workman holds the barrel up directly to the pane of glass, which is furnished with a transparent slate, having two parallel lines drawn across it. The only purpose subserved by the mirror was that of rendering the operation of holding the barrel less tiresome, it being easier to keep the end of the musket presented to the line

pointing downwards than upwards. Formerly, this means of detecting the faults, or want of straightness in the barrel, was, like the working of the rolling-mill, the secret of one man, and he would impart it to no one for love or money. He was watched with the most intense interest, but no clue could be obtained to his secret. They gazed into the barrel for hours, but what he saw they could not see. Finally, some fortunate individual stumbled upon the wonderful secret,—discovered the marvellous lines,—and ever since it has been common property in the shop. Each workman is obliged to correct his own work, and afterwards it is passed into the hands of the inspector, who returns it to the workman, if faulty, or stamps his approval, if correct. The next process is that of grinding, for the purpose of removing the marks left upon the surface by the tool in turning, and of still further perfecting its form. For this operation immense grindstones, carried by machinery, are used, which rotate with great rapidity,—usually, about four hundred times in a minute. These stones are covered with large, movable wooden cases, to keep the water from flying about the room, or over the workmen.

An iron rod is inserted into the bore of the barrel, and is fitted very closely. The rod is furnished with a handle, which is used by the workman for holding the barrel against the stone, and for turning it continually while he is grinding it, and thus bringing the action of the stone upon every part, and so finishing the work in a true cylindrical form. In the act of grinding, the workman inserts the barrel into a small hole in the case in front of the stone, and then presses it hard against the surface of the stone by means of an iron lever which is behind him, and which he moves by the pressure of his back. The work is very rapidly and smoothly done.

There are twelve sets of stones in the grinding-room in constant operation day and night. These stones, when set up, are about eight feet in diameter, and are used to within twelve inches of the centre. They last about ten days.

The operation of grinding was formerly regarded as a very dangerous one, from the liability of the stones to burst in consequence of their enormous weight and the velocity with which they revolve; but, about twenty years since, a new method of clamping the stone was adopted, by means of which the danger of bursting is much diminished. The last explosion which took place in this department occurred about nine years ago. The operation of

grinding, however, is objectionable also from the very unhealthy nature of the work. Immense quantities of fine dust fill the air, and the premises are always drenched with water, making the atmosphere damp and unwholesome.

In former times, it was customary to grind bayonets as well as barrels; but the former are now milled instead, thus making an important saving in expense, as well as gain in the health of the establishment. No mode, however, has yet been devised for dispensing with the operation of grinding the barrel; but the injury to the health, in this case, is much less than in the other.

When the barrels are nearly finished, they are proved by an actual test with powder and ball. To this purpose a building at the water-shops, called the proving-house, is specially devoted. It is very strongly built, being wholly constructed of timber, in order to enable it to resist the force of the explosion within, and contains openings in the roof and at the eaves for the escape of the smoke, a very large number of barrels being proved at once.

The barrels are subjected to two provings. In the first, they are loaded with a double charge of powder and two balls, thus subjecting them to a far greater strain than they can ever be exposed to in actual service. In the second proving, only the ordinary charge is used.

The interior of the proving-house is very happily arranged for the purpose to which it is put. On the right-hand end of the building as you enter, and extending across it, is a platform of cast-iron, containing grooves in which the muskets are placed when loaded. A train of gunpowder is then laid on the back side of this platform, connecting with each barrel, and passing out through a hole in the side of the building near the door. A bank of clay is piled up on the opposite side of the room, into which the balls are thrown. Only one fatal accident has occurred at the armory during the last two years, and this occurred in the proving-house. When the muskets are brought in, they are placed upright in frames, which, when full, are laid down upon the platform. Five barrels are placed in a frame, and these five exploded while the man was putting them in the proper position for laying them down, and ten balls were plunged into him. No satisfactory explanation could ever be obtained of the cause of the premature explosion.

About one per cent. of the barrels burst under this trial, although under the old process of welding there was a loss of nearly two per cent., or one in sixty.

The pieces that fail are all carefully examined, to ascertain whether the giving-way was owing to a defect in the rolling, or to some flaw or other bad quality in the iron. The appearance of the rent made by the bursting will always determine this point. The loss of those which failed from bad rolling is then charged to the operative by whom the work was done, at a dollar for each one so failing. The name of the maker of each is known by the stamp which he put upon it at the time when it passed through his hands. As the workman gets but four cents for rolling a barrel, he loses the work done upon twenty-five for each one that fails through his negligence. The justice of this rule will be apparent, when it is taken into account that that amount of cost has been expended upon the barrel prior and subsequent to the work done by the roller, all of which has been lost through his remissness. Besides, he is paid so liberally for his work, that he can well afford to stand the loss. This system of accountability runs through the entire work, and tends greatly to the promotion of care and fidelity in the various departments of labor.

There are forty-nine pieces used in making up a musket, which have to be formed and finished separately; only two of these, the sight and cone-seat, are permanently attached to any other part, so that the musket can, at any time, be separated into forty-seven parts, by simply turning screws and opening springs. Most of these parts are struck in dies, and then finished by milling and filing. The process of this manufacture is called swaging,—the forming of irregular shapes in iron by means of dies, one of which is inserted in an anvil in a cavity made for the purpose, and the other placed above it, in a trip-hammer, or in a machine operated in a manner analogous to that of a pile-driver, called a drop. Cavities are cut in the faces of the dies, so that, when they are brought together, with the end of a flat bar of iron, out of which the article is to be formed, inserted between them, the iron is made to assume the form of the cavities, by means of blows of the trip-hammer, or of the drop, upon the upper die. About one hundred and fifty operations upon the various pieces used in the construction of the musket are performed by these dies. Some of the pieces are struck out by one operation of the drop, while others, as the butt-plate, require as many as

three, and others a still larger number. The hammer is first forged, and then put twice through the drop. Four men are kept constantly at work forging hammers in the rough, while but two are required to put them through the two operations under the swaging-machine. Sometimes, however, the work presses upon the droppers, and they have the alternative either to work double time—that is, night and day—or to allow other hands to work with them; and as they work by the piece, and are anxious to earn as much as possible each month, they will frequently work night and day for several consecutive days. I have known instances where workmen have worked from Monday until Thursday, night and day, without any intermission, excepting the hour and a half at the morning change of hands, one hour at noon, one at tea-time, and half an hour at midnight,—four hours out of the twenty-four. By this means they will sometimes earn as much as one hundred and fifty dollars per month, although this would be an extraordinary case. The average pay in the dropping-department is about three dollars per day.

There are twenty-four simple and seven compound dropping-machines in constant operation. Some of the pieces are pressed into shape under these drops when cold,—this being the case with the triggers, which were found to use up the dies too rapidly when they were swaged while heated; but, as a general rule, the swaging is done while the piece is at a red or white heat. The operations of the various dropping-machines are exceedingly interesting, and the amount of labor they save is perfectly marvellous.

A large number of men are kept constantly at work making dies for the various pieces required.

When the pieces come out of the swaging-machines, they have more or less of surplus metal about them, which is cut off or trimmed by passing them through machines designed for this purpose.

The bayonet-blade is first forged under a trip-hammer, and then rolled to the proper shape, by an operation similar to the barrel-rolling. The socket is forged separately, and afterwards welded to the blade under a trip-hammer. It is then passed twice under the drop, then milled and polished, when it is ready for use. The ramrod is cut from steel rods about the size required. It is then ground in the same manner as the barrel, and the hammer is swaged on

by two operations under the drop. The screw-cutting and polishing are very simple, and executed with great rapidity.

The cone-seating, like every other part of the work done upon the musket, is very interesting. The barrel, after it comes from the rolling-mill, is placed in a forge and heated to a white-heat. A small square block of iron, cut under a trip-hammer to the proper size, is also heated to a white-heat, and then welded to the barrel by half a dozen strokes under the trip-hammer,—the whole operation occupying less time than is required to describe it. An iron rod is meanwhile inserted within the barrel to maintain the continuity of the bore.

The sights are struck in dies, and placed upon the barrel in slots cut for the purpose. They are then brazed upon the barrel, pieces of brass wire, half an inch long, being used for this purpose. Three men are employed in brazing on the sights for the establishment.

The rolling, forging, and swaging rooms are all connected, and form, as it were, one extended apartment. In this are placed hundreds of forges, furnaces, trip-hammers, rolling-mills, dropping-machines, and trimming-machines,—besides scores of sledge-hammers, wielded by stalwart arms. The noise here is so great that no effort of the voice avails to make itself heard, and I doubt if even the loudest thunder would make any appreciable addition to the general clangor. Small iron carts, filled with hot iron, are incessantly whirling around you; red-hot sparks, or melting drops of iron, are flying about the room in all directions; the air is hot to suffocation, and sulphurous from the burning of bituminous coal; while hundreds of swarthy faces, begrimed with grease and dirt, are dripping with sweat: so that you can scarce avoid the suspicion that you have at last stumbled into the infernal regions, and are constantly wondering why some of Pluto's imps do not seize you and plunge you into some horrible furnace, or chop you up under a trip-hammer.

Having survived the examination of this department, you follow your guide from the forging-room down a winding flight of iron steps to the water-wheels, which are situated forty feet under ground. These wheels are so arranged that they can be run together or separately; they are generally run together, and in connection with the immense low-pressure engine.

After the barrels are bored, turned, milled, and straightened, they are next to be polished. For this purpose they are placed in upright frames, each frame containing five barrels. The polishing is done by means of hard, wooden rubbers, provided with a plentiful supply of lard-oil and emery. The rubbers are placed horizontally, with their grooved ends pressing by means of springs against the barrels, which are drawn between them by a very regular and rapid vertical motion. The barrels are also turned around slowly and continuously by a lateral movement, which insures a uniform polish. They are allowed to remain in the first polishing-machines fifteen minutes, and are then placed in a similar machine and go through a second polishing, differing from the first simply in the absence of the pulverized emery,—oil only being used upon the rubbers during this finishing operation. The musket is now completed, with the exception of the rifling, and some slight polishing to be done by hand at the muzzle and breech.

Two polishing-machines are used for ramrods, similar in construction to those above described,—ten rods being polished at once. The bayonet is polished upon emery-wheels. These wheels are made of wood bound with leather, upon which there is placed a sizing composed of glue and pulverized emery. The polishing by this process is very rapid.

The number of workmen employed at the water-shops is ten hundred and forty. The last time the writer had occasion to visit them was upon the recurrence of an important occasion to the workmen employed there, namely, pay-day. A temporary wooden structure has been erected contiguous to the shops for the purpose of paying-off, and upon this occasion it bore, from time to time, various placards, announcing which shop was being paid, according as the paymaster arrived in succession at the various departments. Within the densely thronged shops, and amidst the deafening noise of hundreds of trip-hammers, perambulated a herald, with bell in hand, and placard raised upon a pole, upon which was painted a huge capital letter, thus designating, in alphabetical order, the names of the workmen whose turn had arrived to affix their signatures to rolls for a month's work, and receive in exchange a sheaf of Uncle Sam's greenbacks.

The works at the water-shops are surrounded by a high wooden fence, and guarded by a small force of watchmen armed with muskets. Should occasion require, however, a force of five thousand men, armed with the

best of small arms, could be mustered at once from among the workmen in the armory and the citizens of the town. Ammunition of all kinds is stored within the establishment, sufficient for all emergencies.

I stated the number of pieces used in the construction of a musket to be forty-nine; but this conveys no idea of the number of separate operations which are performed upon it. The latter amount to over four hundred, no two of which are by the same hand. Indeed, so distinct are the various processes by which the grand result is obtained, that an artisan employed upon one part of a musket may have no knowledge of the process by which another part is fabricated. This, in fact, is the case to a very large extent. Many persons employed upon particular parts of the work in this establishment have never even seen other parts manufactured, and in general the workmen understand only the process of making the portions upon which they are engaged. The different parts are of various grades in respect to character and price, and are regularly rated, and the work done upon them is paid for by the piece. It will scarcely be expected that I should describe all the processes included in the four hundred separate operations performed in the manufacture of the musket, and I shall therefore content myself with alluding to a few of the most important or curious among them.

The gun-barrel, after it arrives at the works on the hill from the water-shops, is taken to the old armory buildings to be rifled. For this purpose it is placed in a horizontal position in an iron frame, and held there very firmly. The instruments which perform the rifling are short steel cutters placed within three apertures situated near the end of an iron tube which is carried through the bore of the barrel by a slow rotary and progressive motion. The cutters are narrow bars of steel, having upon one side three diagonal protuberances of about one-sixteenth of an inch in height and half an inch in width, ground to a very sharp edge at the top. It is these which produce the rifling. The three cutters, when inserted within the iron cylinder, form upon their inner surface a small cavity which decreases towards the top. Into this is inserted a small iron rod attached to the machine and revolving with it, but so controlled by a connecting cog-wheel that the rod is pressed at every revolution a little farther into the cavity between the cutters. The effect of this operation is to increase the pressure of the cutters upon the inner surface of the barrel, and thus gradually deepen the corrugations produced by the rifling. The rods make twelve revolutions in a minute, and it

occupies thirty minutes to rifle a barrel. There are twenty-seven of these rifling-machines in constant operation day and night. This process is the last which takes place within the barrel, and it leaves the bore in a highly polished and brilliant condition.

Among the innumerable machines which arrest the attention of the visitor by the beauty and grace of their operations is the broaching-machine. This is designed to cut out and polish the inner surface of the bands which encompass the barrel and stock. These bands are irregular in shape, and cannot, therefore, be bored out as the barrel is. When they emerge from the drop, or swaging-machine, they are somewhat rough both interiorly and exteriorly, and then undergo a series of operations which leave them in a highly finished condition. The first of these is called broaching. A cavity is made under a huge press in which the band is placed. The broach consists of a steel tool about ten inches in length, and of the exact diameter and form of the interior of the band, and is armed upon its entire length with concentric rings composed of very short and sharp knives. The broach, being placed over the cavity of the band, is slowly subjected to the pressure of the two-ten press, and is thus forced completely through the band, cutting it out as smoothly and easily as if it were composed of lead. The bands are then milled upon the outside by a process called profiling, drilled for the rings, placed upon mandrels to insure the exact shape required, filed, polished, case-hardened, and thus finished.

The hammer passes through a great number of processes before it is completed. It is first forged, then dropped, trimmed, punched, drifted, milled, turned, filed, and lastly case-hardened.

The cone, although one of the smallest pieces in the musket, is yet one of the most important, and requires a great many separate operations in its manufacture. It is first struck in a die, then clamp-milled,—passing through a machine having clamps which hold short knives that shave the entire outer surface of this very irregular-shaped piece; then the thread is cut upon the screw, and both ends are drilled,—this process alone requiring fourteen separate operations. It is then squared at the base and case-hardened.

All the various portions of the lock are made by machines which perform their multitudinous operations with the most wonderful skill, precision, and

grace; but it would be impossible to convey to the reader by a simple description upon paper the various processes by which these results are obtained.

Every portion of the musket is subjected to tests different in character, but equally strict and rigid in respect to the qualities which they are intended to prove. The bayonet is very carefully gauged and measured in every part, in order that it may prove of precisely the proper form and dimensions. A weight is hung to the point of it to try its temper, and it is sprung by the strength of the inspector, with the point set into a block of lead fastened to the floor, to prove its elasticity. If it is tempered too high, it breaks; and if too low, it bends. In either case it is condemned, and the workman through whose fault the failure has resulted is charged with the loss.

The most interesting process, perhaps, in the manufacture of the musket is the operation of stocking. This is done in the old arsenal-building, which, with the exception of one floor, is wholly devoted to this purpose.

The wood from which the stocks are made is the black walnut. This was formerly obtained in Pennsylvania, and was kept on hand in the storehouse in large quantities for the purpose of having it properly seasoned. During the last two years, however, Ohio and Canada have furnished the greater part.

The wood is sawn into a rough semblance of the musket-stock before it is sent to the armory. It then passes through seventeen different machines, emerging from the last perfectly formed and finished.

A gun-stock is, perhaps, as irregular a shape as the ingenuity of man could devise, and as well calculated to bid defiance to every attempt at applying machinery to the work of fashioning it. The difficulties, however, insurmountable as they would seem, have all been overcome, and every part of the stock is formed, and every perforation, groove, cavity, and socket is cut in it, by machines that do their work with such perfection as to awaken in all who witness the process a feeling of astonishment and delight.

The general principle on which this machinery operates may perhaps be made intelligible to the reader by description; but the great charm in these processes consists in the high perfection and finish of the machines, the

smoothness, grace, and rapidity of their motions, and in the seemingly miraculous character of the performances which they execute.

The entire action of the various machines is regulated and guided by patterns, which are models in iron of the various parts of the stock which it is intended to form.

The first machine in the stocking-room cuts the sides of the stock to the proper form for turning. The second saws off the butt-end, and cuts a diagonal line at the breech. The third is armed with two circular saws, which cut the upper part of the stock to the form of the finished arm. An iron pattern of the stock is placed in the machine directly under the stock to be turned, upon which rests a guide-wheel, corresponding in size and shape to the two saws above. The whole is then made to revolve very rapidly, the guide-wheel controlling the action of the cutters, the result being an exact wooden counterpart of the iron pattern. The fourth machine forms the butt of the stock in the same manner. The next simply planes three or four places upon the sides of the stock, for the purpose of affording the subsequent machines certain fixed and accurate points for holding it in the frames. This operation is called spotting. The next machine performs six separate operations, namely, grooving for the barrel, breechpin, and tang, heading-down, milling, and finish-grooving. These various operations complete the stock for the exact fitting-in of the barrel. The next machine planes the top, bottom, and sides of the stock, and the succeeding two are occupied in shaping and bedding for the butt-plates. The next machine is designed for fitting in the lock, and is the most wonderful of all. It contains two bits and three cutters pendent from a movable steel frame situated above the stock. These cutters, or borers, are made to revolve with immense velocity, and are susceptible of various other motions at the pleasure of the workman. The inevitable iron pattern—the exact counterpart of the cavity which is designed to be made for the reception of the lock—is situated in close proximity to the stock, and a guide in the form of the borer is inserted within the pattern, and controls the movements of the borer. This is ejected by causing the tool to revolve by means of small machinery within the frame, while the frame and all within it move together, in the vertical and lateral motions. All that the workman has to do is to bring the guide down into the pattern and move it about the circumference and through the centre of it, the cutting tool imitating precisely the motions of the guide, entering

the wood and cutting its way In the most perfect manner and with incredible rapidity, forming an exact duplicate of the cavity in the pattern. It is on this principle, substantially, that all the machines of the stocking-shop are constructed,—every process, of course, requiring its own peculiar mechanism. The next machine cuts for the guards and bores for the side-screws of the lock, and the two succeeding cut places for bands and tips. The next operation is called the second turning, finishing the stock in a very smooth and elegant manner. The next machine grooves for the ramrod, and the following and last in this department is designed for boring for the ramrod from the point where the groove terminates. This latter work has always been done by hand until the past winter, and there is as yet but one machine for the purpose in operation at the armory, which, running night and day, is able to bore only six hundred stocks. The remainder have still to be done by hand, until more machines are constructed.

The history of the Springfield armory would be incomplete without some allusion to the inventor of the machinery for turning irregular forms adapted to the manufacture of gun-stocks. This was the invention of Thomas Blanchard, then a citizen of Springfield and now of Boston,—whose reputation as a mechanic has since become world-wide,—and was first introduced into the armory about the year 1820. Before this the stocks were all worked and fitted by hand; but the marvellous ingenuity of this machinery made a complete revolution in this department, and contributed to a very large increase in the rapidity and economy of gun-making all over the world.

The same invention has been applied to other branches of manufacture, such as shoe-lasts, axe-helves, etc.; and Mr. Blanchard has successfully used it in multiplying copies of marble statuary with a degree of accuracy and beauty which is truly wonderful.

Eight years ago the English Government obtained permission of the then Secretary of War—Jefferson Davis—to make draughts of this entire establishment for the purpose of obtaining duplicate machinery for the works at Enfield, and copies of the most novel and important parts of the machinery were manufactured for them in the neighboring town of Chicopee; an American machinist being employed to superintend their operation at Enfield.

These works were the especial favorites of the late Prince Albert, who took great pleasure in exhibiting them to his Continental visitors; but no portion of the works received so much attention from him as that occupied by the stocking-machines. In this department he would frequently spend hours, watching the operations of these incomparable machines with the greatest interest and pleasure.

As all of these ingenious and valuable machines are American inventions, and nearly all of them designed by the various expert artisans who have been employed at the armory during the last half-century, it would seem proper and desirable that their peculiar construction should have remained a secret within our national works, and, at any rate, not been freely given to a rival government like that of Great Britain, who might use the arms manufactured by American machinery against the very nation that furnished it. It is probable, however, that the arch-traitor who thus furnished the governments of Europe with draughts of these valuable works had then in contemplation the monstrous rebellion which now desolates our beautiful land, and took this means of weakening us by the universal dissemination of the valuable secrets whereby we were enabled to surpass the rest of the world in the rapidity of construction, and the beauty and executive power of our rifled musket.

When the several parts are finished, they are taken to an apartment in the arsenal to be put together. This operation is called assembling the musket. There are a large number of workmen whose occupations are confined to the putting together of the various parts of the musket,—each one having some distinct part to attend to. Thus, one man puts the various parts of the lock together, while another screws the lock into the stock. Another is occupied in putting on the bayonet, and so on. Each workman has the parts upon which he is employed before him on his bench, arranged in compartments, in regular order, and puts them together with marvellous dexterity. The component parts of the musket are all made according to one exact pattern, and thus, when taken up at random, are sure to come properly together. There is no special fitting required in each individual case. Any barrel will fit any stock, and a screw designed for a particular plate or band will enter the proper hole in any plate or band of a hundred thousand. There are many advantages resulting from this exact conformity to an established pattern in the components of the musket, such as greater facility and

economy in manufacturing them, and greater convenience in service,—spare screws, locks, bands, springs, etc., being easily furnished in quantities, and sent to any part of the country where needed, so that, when any part of a soldier's gun becomes injured or broken, its place can be immediately supplied by a new piece, which is sure to fit as perfectly into the vacancy as the original occupant. Each soldier to whom a musket is served is provided also with a little tool, which, though very simple in its construction, enables him to separate his gun into its forty-seven parts with the greatest facility.

The most costly of the various parts of the musket is the barrel, which, when completed, is estimated at three dollars. From this the parts descend gradually to a little wire called the ramrod-spring-wire, the value of which is only one mill.

A complete percussion-musket weighs within a small fraction of ten pounds.

Besides the finished muskets fabricated here, there are many parts of foreign arms duplicated at these works, for the use of our armies in the field,—the most numerous of which are parts for the Enfield rifle, and for a German musket manufactured from machinery made after our patterns and models.

In the arsenal there is a case of foreign arms, containing specimens from nearly every nation in Europe. None among them, however, equal our own in style or finish, while all of them—excepting the Enfield rifle—are very inferior in every respect. The French arm comes next to the English in point of excellence, while the Austrian is the poorest of all.

There are three steam-engines in operation at the works on the hill, one connected with the stocking-department, and two with the other operations carried on here.

Twenty-five thousand dollars' worth of oil is used yearly in lubricating the machinery, and the various pieces of iron and steel, as they are being turned, bored, milled, broached, etc.

At the water-shops there are five miles of leather belting in use, while at the works on the hill the quantity greatly exceeds this amount.

In this establishment there are employed at the present time, as already remarked, twenty-six hundred workmen, who complete, on an average, about one thousand muskets daily, and the works may be increased to almost any extent,—a large square cast of the present works on the hill, and belonging to the Government, being admirably situated for the construction of additional shops.

This extensive manufactory is under the direction of a principal who is styled Superintendent, and who has the chief management of the business of the armory,—contracting for and purchasing all tools and materials necessary for manufacturing arms, engaging the workmen, determining their wages, and prescribing the necessary regulations for the local government of the establishment. To aid him in the important duties of the armory, there is allowed a master-armorer, who manages the mechanical operations, and is held accountable for all stock and tools put under his charge for the use of the armory, and for the proper workmanship of the muskets,—also a paymaster and storekeeper, whose duty it is to liquidate and pay all debts contracted for the armory by the superintendent, and to receive the finished arms, for which he is held accountable, as well as for all other public property delivered him. Each of these officers is allowed a numerous corps of clerks, to aid in keeping the accounts. There is also a foreman, or assistant master-armorer, to each principal branch of the work, and under him a foreman over every job. These are severally held accountable for all stock, tools, and parts of work delivered them for their respective departments, and they in their turn severally hold the individual workmen responsible for all stock, tools, or parts of work delivered to them. The assistant master-armorers, or foremen, are inspectors in their several branches, and are responsible for the faithful and correct performance of the work. Each individual artisan puts his own private mark on the work he executes, as do the inspectors likewise, when they examine and approve of the various parts of the musket. Thus, in case of any defect, the delinquent may readily be found. Monthly returns are made to the superintendent, and from these returns the monthly pay-rolls are made up.

Since the establishment of the armory in 1794-5, there have been fourteen superintendents, all but two of whom are classed as civilians, although a few of these had seen some military service. The armory has been under military rule but fifteen years out of the sixty-eight which have elapsed

since it was established: namely, from April, 1841, to August, 1854; and from October, 1861, until the present time. A standing dispute on the subject of the government of the armory, which was kept up with much heat and acrimony for many years, culminated, in 1854, in the passage of a law by Congress, in favor of the civil administration. This continued until after the breaking out of the Rebellion, when Congress restored the military superintendency. The question of civil or military government, however, is of no practical importance to any person other than the aspirant for the place. The same rules and regulations governing the workmen employed at the armory, as well as the mode of payment, and the manner of doing the work, which were inaugurated by Benjamin Prescott, the superintendent from November, 1805, to May, 1815, are substantially in operation now, and have continued through all the changes which have occurred during more than half a century.

At the end of December, 1817, there had been completed in this manufactory 141,761 muskets. The expenditures for land and mill-seats, and for erecting machinery, water-shops, work-shops, stores, and buildings of every description, together with repairs, were estimated at \$155,500. The other expenses, exclusive of the cost of stock and parts of work on hand, amounted to \$1,553,100; stock and parts of muskets on hand, \$111,545; and the total expenditures, from the commencement of the works, to December, 1817, \$1,820,120.18.

From the establishment of the armory to the present date there have been manufactured 1,097,660 muskets, 250 rifles, 1,000 pistols, 1,202 carbines, 8,660 musketoons, 4,806 cadets' arms, 18 model muskets, and 16 model pistols and rifles. The reader will be surprised, perhaps, to learn, that there were 1,020 more muskets manufactured at these works during the year 1811 than in the year 1854. In 1850 and 1851, 113,406 muskets were altered in their locks, from flint to percussion, involving an amount of labor equal to the manufacture of 7,630 muskets. From 1809 to 1822, inclusive of those years, and exclusive of 1811 and 1812, nearly 50,000 muskets were repaired, involving labor equal to the manufacture of 11,540 muskets.

In addition to the large number of muskets manufactured at the Government works in Springfield, and which amount to upwards of three hundred thousand per annum, there are a vast number of private establishments

throughout the Northern States, which turn out from two to five thousand muskets per month each. These various manufactories are situated at Hartford, Norfolk, Windsor Locks, Norwich, Middletown, Meriden, and Whitneyville, Ct., Providence, R.I., Manchester, N.H., Windsor, Vt., Trenton, N.J., Bridesburg, Pa., and New York City, Watertown, and Ilion, N.Y. Besides these, there are more than fifty establishments where separate parts of the musket are manufactured in large quantities, and purchased by Government to supply the places of those injured or destroyed in the service. It is estimated that the private armories alone are manufacturing monthly upwards of sixty thousand rifled muskets. The Government contracts for these arms extend to January next, and the total number which will then have been produced will be enormous. The cost of manufacturing a musket at the Government works is estimated at about nine dollars; but the contract-price to the private arms-companies is twenty dollars for those which equal the Government standard in every respect, nineteen dollars and ninety cents for those which lack a little in finish, nineteen dollars for the next grade, eighteen for the next, and sixteen for the lowest and poorest which are accepted.

As the arms are finished, they are sent away to the various Government arsenals,—those made in New England to Watertown, Mass.,—where they remain until the exigencies of the service require them. At the present time, there is a sufficient number of new rifled muskets of the best quality stored in the various arsenals to arm the entire levy about to be called into the field,—and should the war continue so long, there will be enough manufactured during the next twelve months for a new levy of over one million of men. These arms, it must be remembered, are entirely independent of those ordered by the respective State governments, which would swell the amount very largely.

THE PEWEE.

The listening Dryads hushed the woods;
 The boughs were thick, and thin and few
 The golden ribbons fluttering through;
Their sun-embroidered, leafy hoods
 The lindens lifted to the blue:
Only a little forest-brook
The farthest hem of silence shook:
When in the hollow shades I heard—
Was it a spirit, or a bird?
Or, strayed from Eden, desolate,
Some Feri calling to her mate,
 Whom nevermore her mate would cheer?
 "Pe-ri! Pe-ri! Peer!"

Through rocky clefts the brooklet fell
 With plashy pour, that scarce was sound,
 But only quiet less profound,
A stillness fresh and audible:
 A yellow leaflet to the ground
Whirled noiselessly: with wing of gloss
A hovering sunbeam brushed the moss,
And, wavering brightly over it,
Sat like a butterfly alit:
The owlet in his open door
Stared roundly: while the breezes bore
 The plaint to far-off places drear,—
 "Pe-ree! pe-ree! peer!"

To trace it in its green retreat
 I sought among the boughs in vain;
 And followed still the wandering strain,
So melancholy and so sweet
 The dim-eyed violets yearned with pain.

'Twas now a sorrow in the air,
Some nymph's immortalized despair
Haunting the woods and waterfalls;

And now, at long, sad intervals,
Sitting unseen in dusky shade,
His plaintive pipe some fairy played,
 With long-drawn cadence thin and clear,—
 "Pe-wee! pe-wee! peer!"

Long-drawn and clear its closes were,—
 As if the hand of Music through
 The sombre robe of Silence drew
A thread of golden gossamer:
 So sweet a flute the fairy blew.
Like beggared princes of the wood,
In silver rags the birches stood;
The hemlocks, lordly counsellors,
Were dumb; the sturdy servitors,
In beechen jackets patched and gray,
Seemed waiting spellbound all the day
 That low entrancing note to hear,—
 "Pe-wee! pe-wee! peer!"

I quit the search, and sat me down
 Beside the brook, irresolute,
 And watched a little bird in suit
Of sober olive, soft and brown,
 Perched in the maple-branches, mute:
With greenish gold its vest was fringed,
Its tiny cap was ebon-tinged,
With ivory pale its wings were barred,
And its dark eyes were tender-starred.
"Dear bird," I said, "what is thy name?"
And thrice the mournful answer came,
 So faint and far, and yet so near,—
 "Pe-wee! Pe-wee! Peer!"

For so I found my forest-bird,—
 The pewee of the loneliest woods,
 Sole singer in these solitudes,

Which never robin's whistle stirred,
 Where never bluebird's plume intrudes.
Quick darting through the dewy morn,
The redstart trills his twittering horn,
And vanisheth: sometimes at even,
Like liquid pearls fresh showered from heaven,
The high notes of the lone wood-thrush
Fall on the forest's holy hush:
 But thou all day complainest here,—
 "Pe-wee! pe-wee! peer!"

Hast thou too, in thy little breast,
 Strange longings for a happier lot,—
 For love, for life, thou know'st not what,—
A yearning, and a vague unrest,
 For something still which thou hast not?—
Thou soul of some benighted child
That perished, crying in the wild!
Or lost, forlorn, and wandering maid,
By love allured, by love betrayed,
Whose spirit with her latest sigh
Arose, a little winged cry,
 Above her chill and mossy bier!
 "Dear me! dear me! dear!"

Ah, no such piercing sorrow mars
 The pewee's life of cheerful ease!
 He sings, or leaves his song to seize
An insect sporting in the bars
 Of mild bright light that gild the trees.
A very poet he! For him
All pleasant places still and dim:
His heart, a spark of heavenly fire,
Burns with undying, sweet desire:
And so he sings; and so his song,
Though heard not by the hurrying throng,
 Is solace to the pensive ear:

"Pewee! pewee! peer!"

MRS. LEWIS.

A STORY IN THREE PARTS.

PART II.

VI.

In due time we found our way, through deafening clatter, to Miss Post's door, a little below the Astor House, and in the midst of all that female feet the soonest seek. In Maiden Lane and on Broadway it was easy to find all that a Weston fancy painted in the shape of dry goods; and I did my errands up with conscientious speed before indulging in a fashionable lounge on the Battery.

The first twenty-four hours were full of successive surprises, which ought to have been chronicled on the spot and at the time. They affected me like electric shocks; but in a day or two I forgot to be surprised at the queer Dutch signs over the shops and the swine in the streets. Now I only remember the oddity of Miss Post's poverty in the water-line; and that she had to buy fresh water by the gallon and rain-water by the barrel. Also, the faithlessness of the two brilliant black boys who waited on table and at the door, and who couldn't be depended on to take up a bundle or carry a message to your room, so unmitigatedly wicked were they.

"If I owned 'em," said Miss Post to me, confidentially, "I would have 'em whipped every day of their lives. It's what they need, and can't do without. They're just like bad children!"

That was true enough. However, she didn't own them, and got very little out of them but show; and they looked like princes, with their white aprons and jackets, and their glittering, haughty eyes. They played with their duties, and disdained all directions. I used to follow them with my eyes at the table with amused astonishment. It was very grand, and, as the Marchioness says, "If you made believe a good deal," reminded one of barbaric splendor, and Tippoo Saib. But poor Miss Post couldn't order an elephant to tread their

heads off, or she would have extinguished her household twice a day. I looked back with a feeling of relief to Weston, and my good Polly, who would scorn to be an eye-servant or men-pleaser.

At the long table, where sat Mr. and Mrs. Jones, Mr. and Mrs. Smith, Mr. and Mrs. Bennett, Babbit, and so on, I looked sharply for Mr. and Mrs. Lewis. But neither was there the first day. All the people were childless and desolate-looking, though much bedecked with braids and curls, which ladies wore at that time without stint. Nobody looked as if she could be Mr. Lewis's wife. However, the ladies all treated me with so much cordiality and politeness that I set New York down at once as a delightful spot.

Happening to speak of Mrs. Lewis, I saw that the corners of Mrs. Jones's mouth went immediately down, and Mrs. Smith's eyebrows immediately up. Of course, no woman is going to stand that; and I inquired minutely enough to satisfy myself either that Mrs. Lewis was very peculiar, or that a boarding-house was not a favorable atmosphere for character. My husband, to whom I told all they said, considered "the abundant leisure from family-cares which these ladies enjoyed as giving them opportunities for investigation which they carried to excess."

"But think of Gus not being Mr. Lewis's child!" said I, after faithfully relating all I had heard.

"He looks like an Italian. I always thought so. But Lewis seems very fond of him."

"Yes, they said so. But that the mother cared nothing for him, nor for her other children, who are off in Genesee County somewhere."

"For health, doubtless," said my "he," dryly.

"And the way they talked of Mr. Remington! calling him George, and more than insinuating that she likes too well to be at the Oaks,—that is his place. They say she has been there all the time Mr. Lewis has been gone!"

"Mr. Remington has been gone too, as you and I can testify," more dryly.

"So he has. I wish I had thought to tell them so."

I hadn't been in a boarding-house for nothing.

"It was like Lewis to take her as he did. Very noble and generous, too, even supposing he loved her. I dare say he does. Is Montalli dead?"

"I don't know. I think so. At all events, they were divorced, and for his cruelty. Only think of a lady, a young lady, not sixteen, and the darling and idol at home, being beaten and pounded! Ugh! what horrid creatures Italians are!"

"And you say Lewis happened to be in Mobile at the time?"

"Yes, and fell in love with her,—she, scarcely eighteen, and to have had this shocking experience! I don't like to tell you how much these ladies have hinted about her, but enough to make me feel as if I were reading the "Mysteries of Udolpho," instead of hearing of a live woman, out of a book, and belonging to our own time."

"Very likely she may have amused herself at the expense of their credulity. I have seen women do that, just for sport, and to see how much people would believe. It is a dangerous game to play."

Mr. Lewis came to dinner, and brought me a little three-cornered note from his wife, written with much grace and elegance, so far as the composition was concerned. It was sealed with a dove flying, and expressed her thanks for my bringing the "sweet remembrancer" from her beloved child, and so on, expecting to see me the next day at the Oaks.

The surprising part of the note was, that the writing was scrawled, and the words misspelt in a manner that would have disgraced the youngest member of a town-school in Weston. She had "grate" pleasure, and spoke of my "truble" in a way that made me feel as if I should see a child.

The next day brought Mr. Remington himself, fresh and handsome as ever, saying that a carriage was waiting, and his tulips were at their best, and the ladies expecting to see us,—adding, with an informality which I had not associated with New York, that the day was all planned out for us,—tulips and lunch at the Oaks, Hoboken in the afternoon.

That was a white day, and one long to be remembered. First of all, for Hoboken, which, whatever it may be now, was then a spot full of picturesque beauty and sweet retirement, relieving and contrasting the roar

and tumult of the city; second, for the tulips, which were the most glorious things I ever saw, and still remain the pattern of exceeding beauty, though I have since seen wealth of floral splendor, but none that came up to the Royal Adelaide,—nothing so queenly and so noble as the large white cup, fit for Hebe to bear and the gods to drink out of, and holding at least a pint within the snowy radiance of its ample brim. I did not wonder Mr. Remington had a passion for tulips. He flitted about among his brilliant brigade like a happy butterfly, rejoicing in our delight and exulting in our surprise like a pleased child.

"And is each of these different?"

"Not a duplicate among them. Fifteen hundred varieties."

If he had said fifteen thousand, it would not have added to my astonishment. To be sure, no king was ever arrayed like one of these. And fifteen hundred! each gorgeous enough for a king's ransom! It took my breath away to look at the far-reaching parterre of nodding glories, moved by the breath of the south-wind.

"I am satisfied. I see you are sufficiently impressed with my tulips, Mrs. Prince," said Mr. Remington, gleefully, "and I shall send you no end of bulbs for your Weston garden."

Mr. Remington had taken us directly to the garden on our arrival, and now led the way, through large evergreens, and by a winding path, to the house. The land was not half an acre in size, yet I was sure that I had been over a large estate. The same delusion clung to the house, which in looks like one of Gainsborough's cottages, and ought to have been at least two hundred years old, instead of two. But Downing's advent had already wrought miracles here and there in our land; and a little while before Mr. Remington had been bitten with an architectural mania. So under the transplanted trees, and beneath trailing vines of Virginia creeper and Boursault roses, there peeped the brown gables of a cottage, which arose and stood there as reposeful and weather-stained as if it had been built before the Revolution. Mr. Remington showed us twenty unexpected doors, and juttings-out here and there, to catch a view, or to let in the sun, and rejoiced in our pleasure, as he had in the garden, like a child. In the library, Mrs. Remington received us, looking pale, and being very silent.

I sat down by her without being attracted at all—rather repelled by the faint sickliness of everything connected with her appearance. But neither her pale blue eyes, nor her yellow hair, nor her straw-colored gown and blue ribbons would have repelled me; I could not make her talk at all. I never saw such reticence before or since. As if she were determined "to die and make no sign," she sat, bowing and smiling, and amounting to nothing, one way or another,—giving no opinion, if asked, and asking no question. She was passively polite, but so very near nothing that I was rejoiced when Mr. Remington entered with my husband, and proposed that we should go into the dining-room. He carelessly introduced Mrs. Remington, but further than that seemed not to know she was in existence; and I must confess, I did not wonder. While my husband made, or tried to make, some conversation with her, Mr. Remington showed me an exquisite Clytie in marble, and a landscape by Cole, which hung in a good light, and showed its wonderful wild beauty. And now for the third reason that this was a white day.

VII.

In a little room connected with the refreshment-room there stood before a large mirror somebody winding a red scarf about her head. I had only time to see that the head was small and shapely, and the figure full of flexible grace, when it turned and nodded to the party. Of course, it could only be Mrs. Lewis, as she at once said, in a honey-sweet voice, and with what seemed to me a foreign accent; but then I had never heard the Southern accent, which is full of music, and seems somehow to avoid the sibilant tone as well as the nasal drawl characteristic of Northern tongues.

I was attracted to her, not by her beauty, though that was marked, but by her cordial, unaffected manner of placing her two hands in ours, and by her infantine sweetness of expression. Whatever she might have gone through, I saw she had not suffered. There was no line or track of experience, on her broad, tranquil brow, nor was there the hushed, restrained expression left in all eyes that have deeply mourned and bitterly wept. The look was serene and youthful, with such happiness as might come from health and elemental life,—such as a Dryad might have in her songful bowers, or a Naiad plunging in the surf. But it was a shallow face, and pleased only as the sunshine does. For my part, I would rather listen to the sorrowful song of the pine-tree: that is the tune of life.

So, after the first five minutes, the face of Mrs. Lewis ceased to attract me, and I only wondered how she came to attract her husband.

At Miss Post's, our rooms were quite near each other; and I frequently passed an hour in the morning with Mrs. Lewis, chatting with her, and looking about her fanciful apartment. She had dozens of birds of all gay colors,—paroquets from Brazil, cockatoos, ring-doves, and canaries; fresh flowers, in vases on the mantel-pieces, and a blue-ribboned guitar in the corner. No books, no pictures. A great many scarfs, bonnets, and drapery generally, fell about on the chairs and tables.

She never asked about Auguste, nor talked of her children. Once she said they were at Madam somebody's, she couldn't think of the name, but a very nice school, she believed. Everything was "very nice" or "very horrid." Much of the time she passed in draping herself in various finery before the mirror, and trying the effects of color on her complexion. I could think of nothing but field-lilies, that toil not, and yet exceed Solomon in glory; sometimes it seemed gaudiness rather than glory, only that her brilliant complexion carried off the brightest hues, and made them only add to the native splendor of lip and eye. Then she had a transparent complexion, where the blood rippled vividly and roseately at the least excitement. This expressed a vivacity of temperament and a sensitiveness which yet she had not, so that I was constantly looking for more than there was in her, and as constantly disappointed. The face suggested, and so did the conversation, far more both of native sensibility and of culture than she had of either. This was apparent during the first twenty-four hours.

It may seem strange that I should cultivate such a disappointing acquaintance as Mrs. Lewis. But, first, I liked Mr. Lewis, and he was much of the time in their parlor; and, secondly, Mrs. Lewis took a decided fancy to me, and that had its effect. I could not deem her insensible to excellence of some sort; besides, she was a curious study to me, and besides, I had occasion, as the time wore on, to think more of her. Our lives are threaded with black and gold, not of our own selecting, and we feel that we are guided by an Unseen Hand in many of our associations.

There was a want of arrangement of material in her mind, which prevented her from using what she knew, to any advantage; and what she knew,

though it had the originality of first observation, and a grace of expression so great that more met the ear than was meant, was still so wanting, either in insight or reflection, as to be poor and vapid as small-beer after the first sparkle is gone. The manner was all in Mrs. Lewis, but that was ever varying and charming.

One day she had been wrapping some green and gold gauzes about her, and draping herself so that you could think of nothing but sunsets and tulip-beds, when, in pulling over her finery, she came across a miniature of herself. She handed it to me.

"This was what made William dead in love with me, before he saw me. I used to wear my hair so for years after I married him; he liked me to."

It was a very delicately painted miniature, by Staigg, I think. Still a very good likeness, and with the perpetual childhood of the large brown eyes, and the clusters of chestnut curls over brow and neck, that gave an added expression of extreme youth to the face.

"Will she never mature?" I thought.

But always there was the same promise, the same expectation, and the same disappointment. I used to think I would as soon marry Hoffman's machine, who looked so beautiful, and said, "Ah! ah!" and the husband thought her very sensible. But Hoffman's husband thought he had an admiring wife, and her "ah! ah-s!" were appreciative, whereas Mr. Lewis could be under no such delusion. Once I heard him say, "he cared only for love in a wife: intellect he could find in books, but the heart only in woman." "Eyes that look kindly on me are full of good sense,—lips that part over pearls are better than wisdom,—and the heart-beat is the measure of true life."

He liked to talk in this proverb-fashion, and would often turn towards his wife, giving his remarks point and affectionate direction by smoothing her curls or gently touching her shoulder. He was very happy in her beauty.

Notwithstanding this, he often brought in books of an evening, to read to us, leaving Lulu to get her entertainment as she could, and would sometimes sit a whole hour, discussing literary points with me, and metaphysical ones with the Dominie, who was only too happy to pull the Scotch professors over the coals, and lead to condign execution Brown, Reid, and Stewart, in

their turn. Sometimes Lulu would come in, with a bird on each hand, and sit at our feet. She then never mingled in the conversation, but just smoothed the birds' plumage, or fed them with crumbs from her own lips, like a child, or a princess trifling in the harem.

Once we were at Hoboken, where we had passed most of the warm day, and, being weary with strolling among the trees, had seated ourselves on a bank, whence we had a good view of the water and the vessels in the hazy distance. Mr. Lewis took Wordsworth from his pocket, and read aloud the "Ode to Immortality." It was so beautiful, and the images of "the calm sea that brought us hither" so suggestive, that we listened with rapture. Lulu twined oak-leaves into wreaths, sitting at her husband's feet. I don't know whether she heard or not, but, as we discussed afterwards the various beauties of the expression, and the exquisite thoughts, Mr. Lewis leaned over and laid his hand lightly on his wife's hair. He had done it a hundred times before. But to-day she shook her head away from him, blushed angrily, and said, "Don't, William! I am not a baby!"

VIII.

We stayed in New York over ten days. In that time we seemed to have known the Lewises ten years. In the last three days I had some new views, however, and puzzled myself over manners which were apparently contradictory.

Lulu had told me in the morning that her husband was going to Philadelphia, and wouldn't be back for two days. I asked her if she were not going with him. She said, no,—that she wouldn't encounter the dust of those Jersey wagons again; and then described, with much vivacity, the method of transportation which was soon after succeeded by the present railroad.

"There were a hundred horses, at least," said she, "to drag us. Magnificent creatures, too. But nothing pays for having one's mouth and eyes full of grit."

As she spoke, Mr. Lewis passed by the door, and looked at her. She went to him at once, put up her lips to be kissed, and I heard his loving good-bye, as they went along the entry to the top of the stairway.

When she came back to my room, which was half an hour after, she was dressed to go out, in a new hat and pelisse of green silk, with a plume of the same. With her bright color, it was very becoming to her.

"I have just got these home. William just hates me in green, but I would have them. They make one think of fern-leaves and the deep woods, don't they?" said she, standing before the mirror with childish admiration of her own dress.

She turned slowly round, and faced me.

"Now I suppose you would dress up in a blue bag, if your husband liked to see you in it?"

I said I supposed so, too.

"That's because you love him, and know that he loves you!"

"I am sure, you may say one is true of yourself," said I, surprised at her knitted brow and flushed cheek.

"What was that you were reading last night in Plato's Dialogues? What does he say is real love? for the body or the soul?"

I was confounded. For I had never supposed she listened to a word that was read.

"If any one has been in love with the body of Alcibiades, that person has not been in love with Alcibiades," said she, reciting from memory.

"Yes, I remember."

"But one that loves your soul does not leave you, but continues constant after the flower of your beauty has faded, and all your admirers have retired."

I nodded, as much nonplussed as if she had been Socrates.

"That is a love worth having, is it not, which will continue, though the cheek be white and furrowed, and the eye dim?"

I nodded again, staring at her.

"And what is that worth," said she, stamping her foot, "which does not recognize a soul at all? If he ever encouraged me to improve,—if he ever read to me, or talked to me as he does to you, I might make something of myself! I am in earnest. I do want to be something,—to think, to learn, if I only knew how!"

Childish tears ran down her face as she spoke. Presently she went into her room and brought me a set of malachite, in exquisite cameo-cuttings. I took up a microscope, and began admiring and examining them, recognizing the subjects, which were taken from Raphael's History of Psyche.

"Beautiful! where did they come from?"

"William bought them of Lloyd, who had them long ago of the Emperor's jeweller. They had been ordered for Marie Louise."

"And why didn't she have them, pray?"

"Just the question I asked. He said, 'Oh, because the Emperor was down and the Allies in Paris, and the Emperor's jeweller nobody, and glad to sell the cameos for one-third their cost, when they were finished.'"

"Oh, yes! I see,—at the time of Waterloo."

Mrs. Lewis looked at me again with the same knitted brow and flushed cheek as before.

"All you say is Greek to me. I don't know what malachite is, nor who Raphael is, nor who Psyche is, nor who Marie Louise is, scarcely who Napoleon, and nothing about Waterloo. A pretty present to make to me, is it not? I could make nothing of it. To you it is a whole volume."

I said, with some embarrassment, that it was easy to learn, and that if she—that is, that women should endeavor to improve themselves, and so on. She heard me through, and then said, dryly,—

"How old were you when you were married?"

"I was nearly twenty."

"Were you well-informed? had you read a great deal?"

"What one gets in a country-school,—and being fond of reading;—but then I had always been in an atmosphere of books; and one takes in, one knows not how, a thousand facts"—

I stopped; for I saw by her impatient nodding that she understood me.

"Yes, yes. I knew it must be so. Now, if William would ever bring me books, instead of jewels, or talk to me and with me, I might have been a rational being too, instead of being absolutely ashamed to open my mouth!"

She clasped the jewel-case and went out; and I heard her chatting a minute after with some gentlemen in the house, as if she were perfectly and childishly happy.

IX.

How I wished I could give Mr. Lewis some hint of what had passed between his wife and myself! But that I could not do. Besides that it was always best to let matrimonial improvements originate with the parties themselves, I had an inability to interfere usefully. I could talk to her a little,—not at all to him. He seemed fond and proud of her as she was, and her dissatisfaction with herself was a good sign. It was strange to me, accustomed to intellectual sympathy, that he could do without that of his wife. But I suppose he had come to feel that she would not understand him, and so did not try to hit her apprehension, much less to raise or cultivate her intellect. He had lived too long at the South.

Her moral nature was very oddly developed, showing how starved and stunted some of the faculties, naturally good, become without their proper nourishment. As, intellectually, she seemed not to comprehend herself, except that she had a vague sense of want and waste, so, from the habit of occupying herself with the external, she had not only a keen sense of the beautiful in outward form, but as ready a perception of character as could consist with a want of tact. Adaptation she certainly had. Tact she could not have, since her sympathies were so limited and her habit so much of external perception and appreciation. All this desolate tract in her nature might yet possibly be cultivated. But thus far it had never been. Beyond a small circle of thoughts and feelings, she was incapable of being interested. She didn't say, "Anan!" but she looked it.

There was the same want of comprehension, I may call it, in reference to propriety of conduct. A certain nobleness, and freedom from all that was petty and cold, kept her from coquetry. At the same time she had a womanish vanity about her admirers, and entire freedom in speaking of them. In vain I endeavored to insinuate the unpleasant truth, that the fervency of her adorers was no compliment to her. She could not understand that she ought to shrink from the implied imputation of such manifestations.

Somewhat out of patience, one day, at her pleasure in receiving a bouquet of rare flowers from one of these adorers, I said,—

"Isn't this the person who you said professed an attachment to you, or rather sent heliotrope to you and told you it meant *je vous aime*?"

"The very man!" said she, smiling.

"Then I am sure you are, as I should be, sadly mortified at his continuing these attentions."

"I don't see why I should be mortified," said she, "He may be, if he likes."

"You know what the poet says, Lulu, and it is excellent sense,—

'In part she is to blame that has been tried,
He comes too near that comes to be denied.'"

The crimson tide rippled over her forehead at this, but it was only a passing disturbance, and she answered sweetly,—

"I don't think you are quite fair," as if she had been playing at some game with me.

Apparently, too, she had as little religious as moral sense, though she called herself a member of the Church, and said she was confirmed at twelve years old.

But once, in speaking of Mr. Lewis's going to church, she told me, "William has no religion at all." Much in the same way she would have said he had not had luncheon. A strange responsibility, if he felt it, had this William, a

man nearly forty years old, for this young creature not yet twenty-three, and with powers so undeveloped and a character so unbalanced!

In the ten days we passed together I often wished I could have known her early, or that I now had a right to say to her what I would. However, perhaps I overestimated the influence of outward circumstances.

We parted rather suddenly, and in the next three years they were mostly in Cuba, while my husband was called to leave Weston for a larger field of usefulness.

We had lived more than a year in Boston, and it was in the autumn of 1833 that I sat alone by a sea-coal fire, thinking, and making out faces in the coal. I was too absorbed to hear the bell ring, or the door open, till I felt a little rustle, and a soft, sudden kiss on my lips. I was no way surprised, for Lulu's was the foremost face in the coals. Mr. Lewis was close behind her, with my husband. As soon as the astral was lighted, we gazed wistfully for a few moments at each other. Each looked for possible alteration.

"You have been ill!"

"And you have had something besides Time."

We had had grief and bereavement. Mr. Lewis had been very ill, and very near death, with the fever of the country. It had left traces on his worn face, and thinned his already thin enough figure.

But a greater change had come over Mrs. Lewis. Personally, she was fuller and handsomer than ever. She had the same grace in every motion, the same lulling music in her sweet voice. But a soul seemed to be born into that fine body. The brown eyes were deeper, and the voice had thrills of feeling and sentiment. For all that, she had the same incompleteness that she had when I last saw her, and an inharmoniousness that was felt by the hearer whenever she spoke. It was very odd, this impression I constantly had of her; but they were to remain in Boston through the winter, and I supposed time would develop the mystery to me.

X.

One evening, soon after Lulu's return, for she soon took up her old habits of intimacy, she sat listlessly by the fire, holding her two hands in her lap, as usual, and not even dawdling at netting. Perhaps the still evening and the quiet room induced confidence, or she may have felt the effect of my "receptivity," as she called it. (She always insisted that she could not help telling me everything.) She turned away abruptly from the fire, saying,—

"Do you know I don't love William a particle,—not the smallest atom?"

"I hope you are only talking nonsense," said I, rising, and ringing for lights; "but it is painful for me to hear you. Don't! I beg!"

"No, it isn't nonsense. It is the simple truth. And it is best you should know it. Because,—you don't want me to be a living lie, do you? To the world I can keep up the old seeming. But it is better you should know the truth."

"There I differ from you entirely, Lulu. If you are so sadly unfortunate, so wretched, as not to love your husband, it is too painful and serious a matter lightly to be talked of. It is a matter for grievous lamentation,—a matter between your conscience and your God. I don't think any friend can help you; and if not, of course you can have no motive in confiding it."

She had the same old look, as if she would say, "Anan!" but presently added,—

"He cares only for himself,—not at all for me. Don't I see that every day? Am I but the plume in his cap? but the lace on his sleeve? but the jewel in his linen? Whatever I might have felt for him, I am sure I have no need to feel now; and I repeat to you, I should not care at all if I were never again to lay my eyes on him!"

I shuddered to hear this talk. It was said, however, without anger, and with the air rather of a simple child who thought it right not to have false pretences. Her frankness, if it had been united with deep feeling, would have touched me exceedingly. As it was, I was bewildered, yet only anxious to avoid explanations, which it seemed to me would only increase the evil.

Thoughts of the ill-training that had made such a poor piece of life-work out of the rich materials before me made my heart ache. She sat still, looking in the fire, like a child, rebuked and chidden for some unconscious fault. So

many fine traits of character, yet such a hopeless want of balance, such an utter wrongheadedness! I turned, and did what I very seldom do, yielded to my impulses of compassionate tenderness and kissed her. To my surprise, she burst into a hearty fit of crying.

"If I had known you early! or if my mother had lived!" she sobbed; "but now I am good for nothing! I don't know what is right nor what is wrong!"

"Don't say so,—we can always try."

"Not this. I could at first. But to be always treated like a baby,—and if I express any contrary opinion, or show that I've a mind of my own,—a sick baby! I can tell you this comes pretty hard three hundred and sixty-five days in a year! Oh, I wish I were a free woman! There! I am going to stop now. But you know."

I was only too glad to be interrupted by our two husbands. Lulu ran upstairs,—I supposed, to bathe her eyes and compose herself. She, however, was down again in a minute, with some drapery which she wound about her after the fashion Lady Hamilton was said to do, and represented, like her, the Muses, and various statues. With the curtain and one light she managed to give a very statuesque effect. Mr. Lewis was evidently very proud of her grace and talent, and she had a pretty, wilful, bird-like way with him, that was fascinating, and did not seem, as I thought it must really be, mechanical. I felt, more than ever, how idle it must be to talk with her. The affectionate respect, the joyful uplooking of wifehood, was not to be taught by words, nor to be taught, in fact, any way. Mr. Lewis's manner to his wife, which I criticized carefully, was always tender and dignified. And, from my knowledge of him, I felt sure that his expression was that of genuine feeling. Evidently he did not understand her feelings at all. She longed for encouragement and improvement. He looked at her as a lovely child only.

Being a minister's wife, I felt called on to labor in my vocation, and from time to time watch the pliant moment, and endeavor to lead Lulu's mind to the foundation of all truth. But, surely, never fell seed on such stony ground. To be sure, the flowers sprang up. Dewy, rich, and running, they climbed over the rocks beneath; but they shed their perfume, and shrank dead in a day, leaving the stones bare. I was discouraged about sowing seed.

The Lewises had been but a few weeks in Boston, when Lulu brought Mr. Remington in one morning to make a call. He was dressed in black, and told me he had been a widower six months. His bright, genial face and healthful nature seemed not to have sustained any severe shock, however, and he spoke with great composure of his loss.

He was at Mr. Lewis's a great deal. It seemed as a matter of course. As an accomplished man, with great powers of entertaining, he must naturally be acceptable there; but we were too much occupied with family and parish matters to see much of him, and about that time went on a journey of some weeks.

THE CONQUEST OF CUBA.

One hundred years ago the people of America were as much moved by martial ardor as are the American people of to-day. The year 1762 was, indeed, a far more warlike time than was 1862. "Great war" is now confined to the territory of the United States, and exists neither in Asia, Africa, nor Europe. Garibaldi's laudable attempt to get it up in Italy failed dismally. There was a flash of spirit, and there were a few flashes of gunpowder, and all was over. "The rest is silence." There are numerous questions unsettled in the Old World, but the disputants are inclined to wait for settlement, it would seem, until our affairs shall have been brought into a healthful state. Europeans complain that our quarrel has wrought them injury, and very great injury, too. They are right as to the fact. England has suffered more from the consequences of the Southern Rebellion than have the Free States of the Union, and France quite as much, and Spain as severely as any one of our States. In Germany, in Switzerland, and in Belgium, thousands of families have had bitter reasons for joining in the cry that Americans do not know how to manage their politics. We have heard of riots in Moravia, not far from the scene of Lafayette's imprisonment and that of Napoleon's greatest victory, caused by the scarcity of cotton. Yankee cloths that used to go into remote and barbarous regions, through the medium of the caravan-commerce, will be known no more there for some time. Perhaps those African chiefs who had condescended to shirt themselves, thus taking a step toward civilization, will have to fall back upon their skins, because Mr. Jefferson Davis and some others of the Southern Americans chose to make war on their country, and so stop the supply of cotton. The "too-many-shirts" cry, which so revolted the benevolent heart of Mr. Carlyle twenty years since, has ceased to be heard. The supply is getting exhausted. The old shirts are vanishing, and the new ones, instead of being of good stout cloth, are of such stuff as dreams are made of. There might be a new version of "The Song of the Shirt" published, specially adapted to the state of the times, and which would come home to the bosoms and backs of many men. Mr. Davis's war may be considered as a personal one against all civilized men, for it affects every one's person. The great civil war between

Charles I. and the English Parliament was in part caused by soap, which the monopolists made of so bad a quality that it destroyed the clothes which it should have cleaned. Of "the monopolers and polers of the people," as he called them, Sir John Culpeper said, "We find them in the dye-fat, the wash-bowl, and the powdering-tub." As a monarchy was made to fall through the monopoly of soap and other ordinary articles, so was it purposed that a republic should be crushed through the monopoly of the material from which the sheets and shirts of laborers are manufactured. There was not much chivalry in the basis of Southern power, but most grand revolutions are brought about by acting on the lives of the masses, who are more easily moved by appeals to their sense of immediate interest than by reference to the probable consequences of a certain kind of political action. Our party-men know this, and hence it is, that, while they have not much to say about the excellence of slavery, they ask the Irish to oppose the overthrow of that institution, on the ground, that, if it were to cease to exist, all the negroes of the South would come to the North, and work for a dime a day,—which nonsense there are some persons so ignorant as to believe.

To return to 1762: the people of the Colonies were as martially disposed as are the people of the States in these days. "In the heat of the Old French War," says Mr. Hawthorne, speaking of the inhabitants of New England, "they might be termed a martial people. Every man was a soldier, or the father or brother of a soldier; and the whole land literally echoed with the roll of the drum, either beating up for recruits among the towns and villages, or striking the march toward the frontier. Besides the provincial troops, there were twenty-three British regiments in the northern colonies. The country has never known a period of such excitement and warlike life, except during the Revolution,—perhaps scarcely then; for that was a lingering war, and this a stirring and eventful one." There has not been so much movement in the Secession War as characterized that in which our ancestors were engaged a century ago, and which was fought in America and in India, in Germany and in Portugal, in Italy and in Africa, in France and in Bohemia. As the great Lisbon earthquake had been felt on the shores of Ontario, so had the war which began the year of that earthquake's occurrence shaken the world that lay on the American lakes. Forty years ago, old men talked as much of the Old French War—the Seven Years' War of European historians—as of the War of the Revolution. It was a contest

but for the happening of which there could have been no American Revolution, at least none of the character that now occupies so high a place in history. Or, had it happened, and had the event been different, our annals would have been made to read differently, and the Fourth of July could never have become an institution. It opened well for the French, and, had not fortune changed, the colonists, instead of looking to Paris for aid, only a dozen years after its conclusion, might have been ruled by proconsuls sent from that "centre of civilization," as it delights to call itself. And even if the terms of the treaty which put an end to that war had been a little differently arranged, England might have triumphed in the war that she carried on against our ancestors. Both the war itself, and the manner of concluding it, were necessary to the creation of that American empire which, according to Earl Russell, we are fighting to maintain,—as unquestionably we are, though not in the ignoble sense in which the noble Earl meant that his words should be taken and understood.

Of the many conquests which were made by the English in the Seven Years' War, no one was more remarkable than that which placed the Havana and its neighborhood in their hands, virtually giving them possession of the island of Cuba; and the manner in which they disposed of their magnificent prize, when George III. forced peace upon his unwilling subjects, was among the causes of their failure to conquer the Thirteen States in the War for Independence.

That England should have been favored with the opportunity to seize Cuba was not the least singular of the incidents of a contest that was waged wherever Christians could meet for the pious purpose of cutting one another's throats. The English owed it to the hatred for them that was felt by one man, who assailed them in their hour of triumph, in the hope of gratifying his love of revenge, but who reaped only new humiliations from his crusade. He had better luck in after days; but in 1762 he must have entertained some pretty strong doubts as to the wisdom of hating his neighbors, and of allowing that sentiment to get the better of his judgment. Charles III., King of the Spains, the best of all the Spanish Bourbons, had, when he was King of Naples, been most grossly insulted by a British naval commander, and he had had to swallow the affront. "Being a good Christian, and vindictive," though he swallowed the affront, he could not digest it. He cherished the hope of being able to repay the English with that

usurious interest with which men of all grades love to discharge their debts of the kind. He little thought that he was to wait near forty years for the settlement of his account, and that a generation was to pass away before he should be able to feel as Loredano felt when he heard of the death of Francesco Foscari.

The fortunes of France have seldom been lower than they were in 1759, when the energy of William Pitt had imparted itself to the whole of the alliance which was acting against Louis XV. That year, Charles III. ascended the Spanish throne. For some time he was apparently disposed to continue the judicious system of neutrality which had been adopted and pursued by his predecessor; but in 1760, partly from his fear of British power, and partly because of the insulting conduct, of England, which revived his recollection of her officer's action at Naples in 1742, he was induced to enter into that arrangement which is known as the Family Compact, (*Pacte de Famille*,) which was destined to have the most memorable consequences,—consequences that are far from being now exhausted. By the terms of this treaty, the sovereign princes of the House of Bourbon agreed to support each other against all enemies. The wisdom of this compact, on the part of France, cannot be doubted, for her condition was so bad that it could not be made much worse, happen what would, and it might be changed for the better through the assistance of Spain; but it is not so clear that they were as wise at Madrid as were the statesmen at Paris. Mr. Pitt obtained intelligence of this treaty's existence, though it was "a profound secret," of course; but then Mr. Pitt always had good intelligence, because he was ready to pay roundly for it, knowing that it was the best article for which a war-minister could lay out his money. The object of keeping secret an arrangement that depended for its usefulness upon open action was, that time might be gained for the arrival of the Spanish treasure-ships from America. Mr. Pitt, who was as wise as he was arrogant, was for taking immediate measures against Spain. He would have declared war at once, and have seized the plate fleet. Had George II. still lived, this judicious course—all boldness is judicious in war, in which there is nothing so imprudent as prudence—would have been adopted. But that monarch died on the 25th of October, 1760, and his grandson and successor, George III., had domestic objects to accomplish with which the continuance of the war was incompatible. His intention was to make peace with France, and he

must have deemed it the height of folly to make war on Spain. Pitt, finding his advice disregarded, resigned his office, much to the joy of most of his colleagues, whom he had treated as if they had been the lackeys of his lackeys. How they ever got along with him through one month is among the mysteries of statesmanship. President Jackson was not the mildest of men, but he was meekness itself in comparison with the first William Pitt.

But if Pitt was offensive to his colleagues, he was even more offensive to the enemies of his country. In a few weeks after he left the Ministry, the justice of his views became clear even to the young King and to Lord Bute, the latter personage having virtually made himself Premier. The Spanish Government, in compliance with the terms of the Family Compact, made war on England, and that country lost most of the advantages which would have been hers, if the King had been governed by Pitt's advice. The treasure-ships reached Spain in safety, and their cargoes furnished the new belligerent with the sinews of war. So far as they could, the English Ministers resolved to carry on the war with Spain in conformity with the plan which Pitt had formed. One of his projects was to send a force to seize the Havana, which, though not the important place that it now is, in itself, was nevertheless one of the most valuable of the commanding points of the Spanish Indies. At that time the colonial dominion of Spain embraced the greater part of America, and the Havana was regarded as the key to the Occidental possessions of Charles III.^[5] This key Secretary Pitt had meant to seize; and his successors, forced to act, availed themselves of the preparations which he had made. An expedition sailed from Spithead on the 5th of March, 1762, which was joined by other forces, the whole number of vessels being almost two hundred, of which about a fifth were ships of war. The total of the land-forces, including those sent from North America, was 14,041. The fleet was commanded by Admiral Sir George Pocock, and the army by General the Earl of Albemarle. Lord Albemarle was descended from that Arnold van Keppel who came into England, not with William the Conqueror, but with William of Orange, and who, through the favor of the Dutch King of England, founded one of the most respectable of British patrician houses. He was a good soldier, and in Cuba he showed considerable energy; but his name is not high in the list of commanders.

It is uncertain whether the Spaniards had knowledge of the intentions of the English, who, in those days, did not announce their points of attack to the

enemy; but the Captain-General, Don Juan de Prado Porto Carrero, found it so very difficult to believe that the English would attack his Government, that even so late as the 6th of June, when the invaders were within a few hours of landing, he insisted that their fleet was a homeward-bound convoy from Jamaica; and he found fault with one of his officers who had taken some precautionary measures. The next day he was compelled to admit that he was mistaken, for then the British troops had landed. He could not have been more blind to the coming storm, had he lived in 1861, and held a high post in the Government of the United States. Once convinced of his error, he went vigorously to work, and prepared for defence. He had 27,610 men, including soldiers, seamen, marines, militia, and negroes,—for, in those days, it was not thought wise to refuse the services of black men, and even slaves were allowed the honor of being slain in the service of their masters. There were, however, but few regular troops at the command of the Captain-General,—only 4,610; but the seamen and marines, who numbered 9,000, helped to make the deficiency good. The Spaniards were situated somewhat as were the Russians, the other day, at Sebastopol. Their naval force was too small to have any chance whatever against that of the English, and the men who belonged to it were employed on land, where they behaved bravely. The best officers among the defenders were from the fleet. The Morro was put under the charge of Don Luis de Velasco, captain of a line-of-battle ship, who maintained the credit of his ancient name; and he was well supported by the Marques de Gonzales, another naval officer. Don Manuel Brizeño, also from the fleet, with a brother-officer for his lieutenant, had charge of the Punta castle. The army-officers did not like these arrangements, but it was argued that seamen were better qualified than either cavalry or infantry to defend fortified places; and of regular artillerists there were but three hundred in the whole Spanish force. These considerations had their weight with the soldiers, and the conduct of the seamen fully justified the conduct of the Captain-General.

The English troops were landed on the 7th of June, and Colonel Carleton—the Sir Guy Carleton of our Revolutionary history—repulsed a cavalry attack that was made upon a detachment under his command. This so disheartened the Spaniards, that they abandoned the position which they had taken up at Guanabacoa for the purpose of impeding the advance of the invaders, and fell back on the Havana. The women and children, with the

monks and nuns, were all sent out of the town, and the suburbs destroyed. On the 11th, the Cabaña fortress, which commands the Morro, was taken by Colonel Carleton. The Spaniards also abandoned the Chorrera fort, on the other side. Operations against the Morro were then begun. The English suffered much from the heat, and a little from the assaults of the defenders; and, though greatly aided by the fleet, it was not until the 1st of July that they were able to open fire on the Morro. Among their laborers were five hundred black slaves, purchased at Antigua and Martinique. Fatigue and sickness had reduced the army's strength more than one-third, without counting the soldiers who had died, or been slain by the Spanish fire; and three thousand seamen also were unfit for duty. Water was procured with difficulty, and fresh provisions were almost unknown.

The land-batteries opened on the Morro July 1st, and were supported by a fire from several ships. The latter were roughly received by the Spaniards, and lost one hundred and eighty-two men, besides being greatly damaged in hull, masts, and rigging, so that they were forced to abandon the conflict, without having made any impression on the fortress, though they had effected an important diversion in favor of the land-batteries, the fire from which had proved most injurious. On the 2d there were but two guns in condition to bear upon the besiegers. The latter, however, had a worse enemy than the Spaniards to contend against, the heat causing fires in their works that neither earth nor water could extinguish; and they had to remove their mortars from the left parallel, and substitute cannon. This was the crisis of the siege; and had a hurricane occurred, as was expected, the fleet would have been driven off, and the army probably captured. But no storm came, and the English, with characteristic stubbornness, repaired their damaged works, and erected others. On the 9th they renewed their fire, having twelve guns, and the Spaniards but nine. The English increased the strength of their batteries, while the Spanish guns were reduced to two by the 16th; and on the 17th the castle made no reply to the fire of the Valiant, a line-of-battle ship. Sapping-operations began that evening, and on the 18th a small lodgment was effected. The Spanish commander made a morning sally against the besiegers in three columns, which, if successful, would have necessitated the abandonment of the siege; but the first and second columns were driven back with heavy loss, and the third retreated without firing a shot. In this action a battalion of North Americans bore a

prominent part, aiding to drive the first Spanish column to the water, where one hundred and fifty men were drowned. The total loss of the assailants was four hundred, besides those wounded who returned into the town.

The result of this action decided the fate of the Morro. The work of sapping went on. Reinforcements arrived from New York; and on the 30th a practicable breach was made. Lord Albemarle had previously summoned Don Luis de Velasco to surrender, in the most complimentary terms; but the gallant Spaniard declined to abandon his duty, preferring death to dishonor. On the afternoon of the 30th, the English storming-party, headed by Lieutenant Forbes, of the Royals, mounted the breach, taking the defenders by surprise, and dispersing them. Don Luis disdained to fly, and was mortally wounded. He lived until the afternoon of the 31st, receiving every possible attention from the victors, who sent him over to the Havana, where he was buried with military honors. His son was created Vizconde del Morro, and it was ordered that in the Spanish navy there should always be a ship named Velasco.

The storming of the castle cost the English but two officers and thirty men. The Spaniards lost five hundred and thirty men, besides those who were drowned in seeking to reach the town. During the siege the Spanish loss exceeded a thousand men. The conquerors found a large number of cannon, mortars, muskets, and hand-grenades, and great quantities of powder and ball, and fixed ammunition, in the castle.

As soon as the fortress had fallen, the Spaniards opened fire on it, which was directed principally against the water-tank. The English carried on their works on both sides of the city, and on the 10th of August Lord Albemarle summoned the Governor to capitulate. After a long detention, the flag was sent back without an answer. It was not until the forenoon of the 11th that the English opened fire upon the city, their batteries containing forty-five guns. That regard for "unoffending inhabitants" with which the English of 1847 were afflicted, when American guns fired on Vera Cruz, was not felt by their ancestors of 1762. Judging from the language of English writers, we should infer that England has a vested right to pound and pulverize all places that refuse to acknowledge her supremacy but that such conduct as distinguished her troops at Copenhagen and elsewhere is wanton butchery when imitated by the military of other nations. Be that as it may, it is a fact

that the British batteries pounded the Havana savagely on the 11th of August, one hundred and one years ago, without causing any alarm to either Lord Albemarle or his army as to the opinion of their countrymen; and the pounding-match was so pronouncedly in favor of the English, that by two o'clock in the afternoon the Spaniards offered to surrender. A suspension of hostilities followed, and the negotiations ended in the capitulation of the place on the 13th of August. At ten o'clock on the 14th, the Punta was taken possession of by General Keppel; and two hours later, the city gate and battery of that name. The landward gate was held by Colonel Howe, the Sir William Howe of our Revolutionary War. The number of regular troops who became prisoners was nine hundred and ninety-three, without counting the sick or wounded, and including both men and officers. They were sent on board the English ships.

The terms granted by the English were honorable to both parties. The Spanish troops marched out with all the honors of war. The officers were allowed to preserve all their personal effects. Civil officers were permitted to remain on the island, or to leave it, as they should elect. Everything that belonged to the Spanish army or navy, that was within the limits of the territory surrendered, became prize of war. The Catholic religion was to be maintained in all its force, but the nomination of all religious functionaries was to be subject to the approval of the English Governor. The inhabitants were to be protected in all their rights, and might go or stay, as they should think best for their interest. There were other liberal provisions made, indicative of a desire on the part of the conquerors to behave handsomely toward the conquered. The only portion of the property of the King of Spain which the victors allowed him to retain consisted of his slaves, of which he was left at liberty to dispose as he might think proper. England was then a slave-holding and a slave-trading nation, and she could not afford to set the example of disregarding the right of man to hold property in men. Though the age of cotton had not then dawned, the age of conscience was quite as far below the moral horizon.

Besides the Havana and its immediate territory, the terms of the surrender placed in the hands of the English as much of the island of Cuba as extended one hundred and eighty miles to the west, which belonged to the government of the place. This was a great conquest, and it was in the power of the conquerors to become masters of the whole island.

The most remarkable fact connected with the conquest of Cuba was the success with which the English contended, not only against a valiant enemy, but against the difficulties of climate. No severer trial was ever presented to troops than that which they encountered and overcame on the Cuban coast at a time of the year when that coast is at its worst; and it was a much more unhealthy quarter then than it is to-day. They had to bear up against drought, heat, hunger, thirst, sickness, and the fire of the Spaniards; and they stood in constant danger of being separated from their supporting fleet, which had no sufficient shelter, and might have been destroyed, if a tropical hurricane had set in. Yet against all these evils they bore up, and, with very inferior means, succeeded in accomplishing their purpose, and in making one of the greatest conquests of the most brilliant war in which their country ever was engaged. All this they did with but little loss, comparatively speaking. They had 346 men and officers killed or mortally wounded; 620 wounded; 691 died from sickness or fatigue; and 130 were missing. This loss, 1790 in all, exclusive of the casualties on shipboard, cannot be considered large, for it could not have been above one-eighth part of the invading force, counting the reinforcements that arrived while the siege was going on. Compared with the enormous losses of life and limb that characterize our war, it is a mere bagatelle; and the magnitude of the prize is to be set off in contrast to the price which it cost. Some of the regiments employed, however, were destined to suffer severely from the effects of their visit to Cuba; for, being sent to New York, the severity of a North-American winter was too much for constitutions that had been subjected for months to the heats of the tropics. They were Irishly decimated, losing about nine-tenths of their men. ^[6]

If we can believe the Spaniards,—and we see no reason for doubting the substantial correctness of their assertions,—Lord Albemarle's government was one of much severity, and even cruelty. He ruled the Havana with a bundle of *fascies*, the rods being of iron, and the axe sharp, and which did not become rusty from want of use. It was enough that a man was "guilty of being suspected" to insure him a drum-head court-martial, which tribunal sent many men to the scaffold, sometimes denying them religious consolations, an aggravation of punishment peculiarly terrible to Catholics, and which seems to have been wantonly inflicted, and in a worse spirit than that of the old persecutors, for it had not even fanaticism for its excuse. The

spirit of the capitulation seems to have been quite disregarded, though its letter may have been adhered to. There may be some exaggeration in the Spanish statements, too,—men who are subject to military rule generally looking at the conduct of their governors through very powerful glasses. It is impossible for them to do otherwise; and the mildest proconsul that ever ruled must still be nothing but a proconsul, even if he were an angel. Every man thus placed is entitled to as charitable construction of his conduct as can conscientiously be made; but this the English do not appear to understand, when the conduct of men of other races is canvassed. With their own history blotched all over with cruel acts perpetrated by their military commanders, they set themselves up to judge of the deeds of the generals of other peoples, as if they alone could furnish impartial courts for the rendering of historical verdicts. Their treatment of some American commanders, and particularly General Butler, is not decent in a people whose officers have wantonly poured out blood, often innocent, in nearly every country under the sun. There was more cruelty practised by the English in any one month of the Sepoy War than has disgraced both sides of the Secession contest for the two years through which it has been waged. The English are not a cruel people,—quite the reverse,—but it is a fact that their military history abounds more in devilish acts than that of any other people of corresponding civilization. The reason of this is, that they look upon all men who resist them in some such spirit as the Romans regarded their foes, and as being in some sense rebels. It is only with those who rebel against other Governments that those who live under the English Government ever sympathize.

The capture of the Havana produced a "sensation" in the North-American colonies. The news was a month in reaching this part of the country, and Philadelphia, the most important place in British America, had the pleasure of first hearing it in fourteen days from the seat of war. It was "expressed" to New York, which town got it on the 11th of September; and it was published in the Boston "Gazette" of Monday, September 13th, the same day on which our ancestors were gratified by the publication of the London "Gazette" Extraordinary giving a detailed account of Prince Ferdinand's victory at Wilhelmsthal, on the 24th of June. There is not a line of editorial comment, but the news is clearly and vigorously given, special mention being made of the spoil, which included, according to one authority,

fourteen million milled dollars. It is stated, in conclusion, that "the Spanish families that had withdrawn from the city to the country were all returned with their baggage, and were in possession of their habitations; and some soldiers and English Negroes were hanged for committing some small thefts on them." In the "Gazette" of September 20th there are published some details of the operations in Cuba; and under the "Boston head" is a brief account of the rejoicings that took place in Boston, on the 16th, in honor of the great event, and of British successes in Germany. "In the morning," says the account, "His Excellency, [Governor Bernard,] accompanied by the two Houses of Assembly, attended divine service at the Old Brick Meeting House, and a sermon well adapted to this joyful occasion was preached by the Rev. Dr. SEWALL: At 12 o'clock the cannon at Castle William and the batteries in this town and Charlestown were discharged: In the afternoon the Bells rang; and His Excellency with the two Houses was escorted by his Company of Cadets to Concert Hall, where a fine piece of music was performed, to the satisfaction of a very large assembly; and in the evening there were beautiful illuminations, and a great variety of fire works in many parts of the town.... We hear there has also been great rejoicings on the late success of the British arms in most of the neighboring towns, particularly at Charlestown, Salem, and Marblehead, where were illuminations, bonfires, and other demonstrations of joy." Old newspapers, letters, and pamphlets show that "demonstrations of joy" were far from being confined to New-England towns. They extended over the whole of the thirteen colonies, every man in which was proud of belonging to a nation which had achieved such great things in a war that had opened most gloomily, as do most English and American contests. The conquest of Canada had removed a weight from the colonial mind that had preyed upon it for generations; and though not one man in a hundred, it is probable, thought of the vast consequences that were to follow from the victories of Wolfe and Amherst, it is certain that those victories had greatly exalted the American heart; and now that they were followed by the conquest of Cuba, made at the expense of a great nation with which England was at peace when Quebec and Montreal had passed into her possession, it is not strange that our ancestors should have become more impressed than ever with the honor of belonging to the British empire. They were not only loyal, but they were loyal to a point that resembled fanaticism. It has been said of them that they were "as loyal to their prince and as proud of their country as the

people of Kent or Yorkshire,"—and these words do not exaggerate what was the general sentiment of the colonists in 1762. England was still "home" to them, though more than a hundred and fifty years had gone by since the first permanent English colony was founded in America; and to the feeling that belonged to the inhabitants of England the colonists added that reverence which is created for the holders of power by remoteness from their presence and want of familiarity. Such was the condition of America a century ago, but soon to be changed through conduct on the part of George III., conduct that amounted to a crime, and for which no defence can be made but that of insanity,—a defence but too well founded in this instance. The sense of the colonists, therefore, was well expressed by Governor Bernard, when, on the 23d of September, he put forth a proclamation, at the request of the Assembly, for a Public Thanksgiving on the 7th of October. After enumerating various causes for thankfulness that existed, all of which relate to victories won in different parts of the world, His Excellency proceeds to say,—"But above all, with hearts full of gratitude and amazement, we must contemplate the glorious and important conquest of the Havana; which, considering the strength of the place, the resolution of the defendants, and the unhealthiness of the climate, seems to have the visible hand of God in it, and to be designed by His Providence to punish the pride and injustice of that Prince who has so unnecessarily made himself a party in this war."

Thus did our fathers rejoice over a great military success which gave additional glory to a country to which they were proud to belong. Nor were they insensible to the solid gains of that success, which, indeed, they overrated, not only because they supposed the conquered territory would be retained by the conquerors, but because they believed the immediate fruits of victory were far greater than they proved to be. In the Boston "Gazette" of September 20th it is stated that one of the captured Spanish ships had five million dollars on board, that almost forty million dollars in specie had already been counted, and that the share of Lord Albemarle would give him an income of twelve thousand pounds per annum, and Admiral Pocock was to have an equal amount.

In our time, politicians have the advantage of all other men in the matter of spoils. Such was not the state of things one hundred years ago. The politicians were as well off in those times as they are in these,—perhaps

they were better off, for things could then be openly done by civilians, in the way of plundering, that the men of to-day have to do as secretly as good Christians say their prayers. There were also many lucrative offices then in existence which have since disappeared under the labors of those economical reformers of whom Edmund Burke was the first in every respect. But in 1762 military men had "rights" which this modern world has ceased to regard as utterly as if all soldiers were Negroes. One hundred years ago it was not an uncommon thing for a successful general to win as much gold on a victorious field as glory. It was the sunsetting time of the age of plunder; and the sun set very brilliantly. The solid gains of heroes were then so great that their mere statement in figures affects the reader's mind, and perverts his judgment of their actions. Not quite twenty years earlier, the gallant Anson made his famous cruise round the world; and when he took the Manila galleon, he found in her, besides other booty, silver of the value of a million and a half of dollars, to defend which the Spaniards fought as men generally fight for their money. Five years before Albemarle took the Havana, Clive took, for his own share of Surajah Doulah's personals, over a million of dollars, from the treasury of Moorshedabad. That was the prize of Plassey. A little later, he accepted a present in land that must have been worth over two million of dollars, as the annual income it yielded was twenty-seven thousand pounds, or about one hundred and thirty thousand dollars. Other British proconsuls were also fortunate in India. The same year that saw the English flag flying over so much of Cuba saw another English force, commanded by Sir William Draper, reduce the Philippine Islands, taking possession of the whole group by virtue of a capitulation. The naval force that accompanied Draper captured the Acapulco galleon, which had a cargo of the value of three million dollars. The English attacked Manila without the Spanish garrison's having had any official notification of the existence of hostilities. The town was defended by the Archbishop, who behaved with bravery, and showed considerable skill in war; but after some days' fighting the English got into the town by storming it, and then gave it up to the rough mercies of a hardened soldiery, some of whom were Sepoys, a description of warriors of whom the English now ask us to believe all that is abominable. Manila was most savagely treated by heathen soldiers led by Christian chiefs, a fact to be commended to the consideration of those humane Englishmen who can with difficulty breathe while reading General Butler's arrangement for the

maintenance of order in New Orleans. The Archbishop and some of the officers got into the citadel, and there they negotiated a capitulation. They agreed to ransom their property by paying down two million dollars, and by drawing bills for a like sum upon the Spanish treasury, which bills Draper was green enough to accept. The Spanish Government refused to pay the bills when they had matured, and though Draper entreated the English Ministers to interpose in behalf of himself and his comrades, no interposition could he induce them to make. When Sir William was so unwise as to run a course of pointed pens with "Junius," that free lancer, who upset men of all degrees as easily as Sir Wilfred of Ivanhoe unhorsed the knights-challengers in the lists at Ashby, brought up the Manila business, and, with his usual hardihood, charged his antagonist with having most dishonorably given up the ransom, and with having sold his comrades. Sir William, who had volunteered in defence of his friend, Lord Granby, (the same gentleman who used to figure on sign-boards, and whose name was then as much in English mouths as General Meade's is on American tongues to-day,) soon had to fight in his own defence, and he made a very poor figure in the contest. In a letter from Clifton, to the printer of the "Public Advertiser," he wrote,—"I here most solemnly declare, that I never received either from the East India Company, or from the Spaniards, directly or indirectly, any present or gratification or any circumstance of emolument whatsoever, to the amount of five shillings, during the whole course of the expedition, or afterwards, my legal prize-money excepted. The Spaniards know that I refused the sum of fifty thousand pounds offered me by the Archbishop, to mitigate the terms of the ransom, and to reduce it to half a million, instead of a whole one; so that, had I been disposed to have basely sold the partners of my victory, Avarice herself could not have wished for a richer opportunity." Sir William's language is valuable, as showing what sort of prizes were then in the wheel of Fortune, with military men only to take tickets. More than one British house of high consideration owes its affluence to the good luck of some ancestor in the noble art of pillage. Yet how often do we come across, in English books, denunciations of the deeds of plunder done by the French in Spain and Portugal! Shall we ever hear the last of Maréchal Soult's Murillos? It was but yesterday that the Koh-i-Noor was stolen by the English, and added to the crown-jewels of Great Britain; and it was exhibited at the Crystal Palace in 1851, where it must have been regarded as a proof of the skill of the *Chevaliers*

d'Industrie. Why it should be lawful and honorable to seize diamonds, and unlawful and improper to seize pictures, we cannot say; but Mr. Stirling, in his "Annals of the Artists of Spain," says, "Soult at Seville, and Sebastiani at Granada, collected with unerring taste and unexampled rapacity, and, having thus signalized themselves as robbers in war, became no less eminent as picture-dealers in peace." Was it more immoral in Maréchal le Due de Dalmatie to take Murillos than it was in Field-Marshal the Duke of Wellington to take the lead in cutting the Koh-i-Noor, the pictures as well as the diamond being spoil of war? There is something eminently absurd in English morality, when Englishmen seek to lay down rules for the governance of the world. It amounts to this: that they shall be at liberty to plunder everybody, but that all other men shall stay their hands, no matter how great may be the temptation, to help themselves to their enemies' goods.

The conquerors of the Havana had no scruples on the subject of plunder. They obtained, in treasure and other property, about fourteen millions of dollars,—a great sum, though not a third part so large as had been assigned them by the newspapers. Not content with this, they sought to get a donation from the citizens, to the amount of two hundred thousand dollars; but the attempt failed, and was not persisted in, when it was found that the Spaniards were utterly averse to giving on compulsion. A demand was made, through Colonel Cleveland, who commanded the artillery, "on the Bishop and the clergy, requiring an account of the bells of the churches, convents, and monasteries of the Havana and the other towns in the district, as well as of the *ingenios* in the neighborhood, and of all such metal as is used in the making of bells, in order that the value might be adjusted, and the amount paid, according, as he asserted, to the laws and customs of war, when a city after a siege has surrendered by capitulation." The astonished Bishop wrote to Lord Albemarle, and had the satisfaction of learning from that eminent authority, that, "when a city was besieged and taken, the commander of the artillery receives a gratification, and that Colonel Cleveland had made the demand with his Lordship's concurrence." This mode of kissing the rod was not at all to the taste of the worthy prelate, excellent Christian though he was. It was bad enough to give "a gratification" to an enemy because he had pounded them with balls until they had been forced to surrender; but it was an aggravation of the original

evil to have to redeem "blessed bells" from the heretics who had come four thousand miles to disturb the repose of the Spanish Indies. But negotiation was unavoidable. What would the Colonel take, and close the transaction? The Colonel said he would take such a sum as the captured churches could reasonably contribute to his purse. He was offered one thousand dollars; but that he treated as a mistake, and to assist the reverend and venerable negotiators to a conclusion, he named thirty thousand dollars. To this they objected, and appealed to Lord Albemarle against the demand of his officer. His Lordship, with his pockets crammed with Spanish gold, was disposed to act handsomely in this instance, and cut down the Colonel's bill to ten thousand dollars. But even this sum the clergy professed themselves utterly unable to pay. According to their own showing, they were genuine successors of the Apostles, being without a penny in their purses. They began to beg for aid; but, either because the Spaniards were sulky with the Saints for having allowed the heretics to succeed, or that they did not wish to attract the attention of those heretics to their property, the begging business did not pay. Only one hundred and three dollars could be collected. This failure was made known to Lord Albemarle, but he kept a profound silence, sending no reply to the clergy's plaintive communication. They, however, had not long to wait for an answer. Colonel Cleveland waited upon them again, and said, that, as the cash was not forthcoming, he should content himself with taking the bells, all of which must be taken down, and delivered to him on the 4th of September. After this there was no further room for negotiation with a gentleman who commanded great guns. The Bishop handed over the ten thousand dollars, and the Colonel departed from his presence. The bells remained in their proper places, and some of them, no doubt, remain there to this day, the bell being long-lived, and making sweet music years after Albemarle, Cleveland, and the rest of the spoilmen have gone to their account.

Lord Albemarle had a correspondence with the Bishop respecting the use of one of the churches as a place of Protestant worship, and laid down the cannon law so strongly and clearly, that the prelate, after making such resistance as circumstances admitted of,—and he would not have been a good Catholic, if he had done less,—told him to take whichever church he chose; and he took that of the Franciscans. His Lordship, however, was much more devoted to the worship of Mammon than to the worship of God,

and, accordingly, on the 19th of October, he wrote to the Bishop concerning the donation-dodge, in the following polite and peremptory terms;—"Most Illustrious Sir, I am sorry to be under the necessity of writing to your Lordship what ought to have been thought of some days ago, namely, a donation from the Church to the Commander-in-Chief of the victorious army. The least that your Lordship can offer will be one hundred thousand dollars. I wish to live in peace with your Lordship and with the Church, as I have shown in all that has hitherto occurred, and I hope that your Lordship will not give me reason to alter my intentions. I kiss your Lordship's hand. Your humble servant, Albemarle." The Bishop, though a clever and clear-sighted man, could not see this matter in the light in which Lord Albemarle looked upon it. He thought the demand a violation of the terms of surrender; and he sought the mediation of Admiral Pocock, but without strengthening his position. To a demand for the list of benefices, coupled with the declaration that non-compliance would lead to the Bishop's being proclaimed a violator of the treaty, the prelate replied, that he would refer the matter, and some others, to the courts of Spain and England. Upon this the British General lost all patience, and issued a proclamation, declaring "that the conduct of the Bishop was seditious; that he had forgotten that he was now a subject of Great Britain; and that it was absolutely necessary he should be expelled from the island, and sent to Florida in one of the British ships of war, in order that public tranquillity might be maintained, and that good correspondence and harmony might continue between the new and the old subjects of the King, which the conduct of the Bishop had visibly interrupted." The whole of this business presents the English commander in a most contemptible light. Not content with the six hundred thousand dollars which he had already pocketed, as his share of the spoil, he assumed the part of Bull Beggar toward the Bishop, in the hope that he might extort one hundred thousand dollars more from the Church, for his own personal benefit, for the "donation" was not to go into the common stock; and when his threats failed, he turned tyrant at the expense of a venerable officer of the most ancient of Christian churches. What an outcry would be raised in England, if an American commander were to make a similar display of avarice and cruelty!

The manner in which the spoil was divided among the conquerors caused much ill-feeling, and not unnaturally. Lord Albemarle took to himself

£122,697 10s. 6*d.*, and an equal amount was bestowed upon Admiral Pocock. Lieutenant-General Elliot and Commodore Keppel had £24,539 10s. 1*d.* each. To a major-general was given £6,816 10s. 6-1/2*d.* and to a brigadier-general £1,947 11s. 7*d.* A captain in the navy had £1,600 10s. 10*d.*, and an army-captain, £184 4s. 7-1/4*d.* And so the sums went on decreasing, until there were paid to the private soldier, £4 1s. 8-1/2*d.*, and to the ordinary seaman £3 14s. 9-3/4*d.* The profit as well as the honor of the expedition all went to the leaders. What made the matter worse was, that the distribution was made in violation of rules, which were not formed to favor "the common file," but which would have done them more justice than they received at the hands of Pocock and Albemarle. After all, no worse was done than what we see daily happen in the world, and the distribution appears to be a practical satire on the ordinary course of human life.

Lord Albemarle was severely censured in England for his manner of assailing the Havana, it being held that he should have attacked the town, which was in an almost defenceless condition, whereas the Morro was strong, and made a good defence, which might have led to the failure of the expedition, and would have done so but for the circumstance that no hurricane happened. But the general public was satisfied with the victory, and did not trouble itself much about the manner in which it had been gained. It was right. Had General McClellan taken Richmond, how many of us would have listened to the military critics who should have been so kind as to show us how he ought to have taken it? Judging from some observations in Horace Walpole's "Correspondence," the English, though surfeited with victory, were much pleased with their Cuban conquest. Sir Joseph Yorke, writing on the 9th of October, ten days after the news had reached England, says,—"All the world is struck with the noble capture of the Havana, which fell into our hands on the Prince of Wales's birthday, as a just punishment upon the Spaniards for their unjust quarrel with us, and for the supposed difficulties they have raised in the negotiations for peace." Those negotiations had been openly commenced in less than a month after the fall of the Havana, and some weeks before news of that brilliant event had reached Europe. The terms of the treaty of peace were speedily settled, one of the stipulations being, that Spain should preserve her old limits; and, "moreover," says Earl Stanhope, "it was agreed that any conquests that might meanwhile have been made by any of the parties in any quarter of the

globe, but which were not yet known, (words comprising at that period of the negotiation both the Havana and the Philippines,) should be restored without compensation." Had the preliminary articles been signed at once, the Spaniards would have recovered all they had lost in Cuba, without further trouble or cost; but their negotiator, the celebrated Grimaldi, was so confident that the invaders of Cuba would be beaten, that he played the waiting game, and was beaten himself. When intelligence of English success arrived at Paris, where the treaty was making, Grimaldi was suddenly found as ready to sign as formerly he had been backward; but now the English negotiator, the Duke of Bedford, became backward in his turn, as representing the unwillingness of his Government to give up the Havana without an equivalent. Lord Bute would have given up the conquest without a word said, but all his colleagues were not so blind to the advantages which that conquest had placed at the command of England; and finally it was agreed that the Duke of Bedford should demand the cession of Florida or Porto Rico as the price of the restoration of that portion of Cuba which was in English hands. The Spaniards gladly complied with the British demand, and gave Florida in exchange for Cuba. At one time it was supposed that the victory of Albemarle and Pocock would lead to the continuance of the war. Horace Walpole wrote to his friend Conway that the Havana was more likely to break off the peace than to advance it, and that the English were not in a humor to give up the world, but were much more disposed to conquer the rest of it. He added, "We shall have some cannonading here, I believe, if we sign the peace." But the King and the Premier were peace-at-any-price men, and the way to their purpose was smoothed completely; yet Lord Bute wrote to the Duke of Bedford, on the 24th of October, "Such is the change made here by the conquest of the Havana, that I solemnly declare, I don't meet with one man, let his attachment be never so strong to the service of the King, his wishes for peace never so great, that does not positively affirm, this rich acquisition must not be ceded without satisfaction in the fishery, and some material compensation: this is so much the opinion of all the King's servants, that the greatest care has been taken to soften every expression," etc. In July, 1763, the English restored their acquisitions in Cuba to the Spaniards, and their soldiers returned to Europe.

In a few years it was seen that the Bute arrangement, so far as concerned the Havana, was, for England, thoroughly a Glaucian bargain. She had obtained Florida, which was of no worth to her, and she had given up the Havana, which might have been made one of her most useful acquisitions. That place became the chief American port of the great alliance that was formed against England after she had become committed to war with the new United States. Great fleets and armies were there assembled, which did the English much mischief. Florida was reconquered by an expedition from the Havana, and another expedition was successful in an attack on Nassau; and Jamaica was threatened. Had England not given up the place to the Spaniards, not only would these things have been impossible, but she might have employed it with effect in her own military operations, and have maintained her ascendancy in the West-Indian seas. Or, if she had preferred that course, she might have made it the price of Spain's neutrality during the American War, returning it to her on condition that she should not assist the United States; and as the Family Compact then existed in all its force, Spain's influence might have been found sufficiently powerful to prevent France from giving that assistance to our fathers which undoubtedly secured their independence. All subsequent history has been deeply colored by the surrender of the Havana in 1763. But for that, Washington and his associates might have failed. But for that, the French Revolution might have been postponed, as that Revolution was precipitated through the existence of financial difficulties which were largely owing to the part France took in the war that ended in the establishment of our nationality. But for that, England might have secured and consolidated her American dominion, and the House of Hanover at this moment have been ruling over the present United States and Confederate States. George III, and Lord Bute could not foresee any of these things, and they cannot be censured because they were blind to what was invisible to all men; but their reckless desire for peace led them to regret the successes of the English arms, and they were ready to make any sacrifices that could be named, not because they loved peace for itself, but because, while the war should last, it would not be possible for the monarch to follow his mother's advice to "be a king" in fact as well as in name,—advice that was destined to cost the King much, and his realm far more.

EQUINOCTIAL.

The Sun of Life has crossed the line:
The summer-shine of lengthened light
Faded and failed,—till, where I stand,
'Tis equal Day and equal Night.

One after one, as dwindling hours,
Youth's glowing hopes have dropped away,
And soon may barely leave the gleam
That coldly scores a winter's day.

I am not young, I am not old;
The flush of morn, the sunset calm,
Paling, and deepening, each to each,
Meet midway with a solemn charm.

One side I see the summer fields
Not yet disrobed of all their green;
While westerly, along the hills,
Flame the first tints of frosty sheen.

Ah, middle-point, where cloud and storm
Make battle-ground of this my life!
Where, even-matched, the Night and Day
Wage round me their September strife!

I bow me to the threatening gale:
I know, when that is overpast,
Among the peaceful harvest-days,
An Indian-summer comes at last!

THE LEGEND OF MONTE DEL DIABLO.

The cautious reader will detect a lack of authenticity in the following pages, I am not a cautious reader myself, yet I confess with some concern to the absence of much documentary evidence in support of the singular incident I am about to relate. Disjointed memoranda, the proceedings of *ayuntamientos* and early departmental *juntas*, with other records of a primitive and superstitious people, have been my inadequate authorities. It is but just to state, however, that, though this particular story lacks corroboration, in ransacking the Spanish archives of Upper California I have met with many more surprising and incredible stories, attested and supported to a degree that would have placed this legend beyond a cavil or doubt. I have, also, never lost faith in the legend myself, and in so doing have profited much from the examples of divers grant-claimants, who have often jostled me in their more practical researches, and who have my sincere sympathy at the skepticism of a modern hard-headed and practical world.

For many years after Father Junipero Serro first rang his bell in the wilderness of Upper California, the spirit which animated that adventurous priest did not wane. The conversion of the heathen went on rapidly in the establishment of Missions throughout the land. So sedulously did the good Fathers set about their work, that around their isolated chapels there presently arose *adobe* huts, whose mud-plastered and savage tenants partook regularly of the provisions, and occasionally of the Sacrament, of their pious hosts. Nay, so great was their process, that one zealous Padre is reported to have administered the Lord's Supper one Sabbath morning to "over three hundred heathen Salvages." It was not to be wondered that the Enemy of Souls, being greatly incensed thereat, and alarmed at his decreasing popularity, should have grievously tempted and embarrassed these Holy Fathers, as we shall presently see.

Yet they were happy, peaceful days for California. The vagrant keels of prying Commerce had not, as yet, ruffled the lordly gravity of her bays. No torn and ragged gulch betrayed the suspicion of golden treasure. The wild

oats drooped idly in the morning heat, or wrestled with the afternoon breezes. Deer and antelope dotted the plain. The water-courses brawled in their familiar channels, nor dreamed of ever shifting their regular tide. The wonders of the Yo-Semite and Calaveras were as yet unrecorded. The Holy Fathers noted little of the landscape beyond the barbaric prodigality with which the quick soil repaid the sowing. A new conversion, the advent of a Saint's day, or the baptism of an Indian baby, was at once the chronicle and marvel of their day.

At this blissful epoch, there lived, at the Mission of San Pablo, Father José Antonio Haro, a worthy brother of the Society of Jesus. He was of tall and cadaverous aspect. A somewhat romantic history had given a poetic interest to his lugubrious visage. While a youth, pursuing his studies at famous Salamanca, he had become enamored of the charms of Doña Carmen de Torrencevara, as that lady passed to her matutinal devotions. Untoward circumstances, hastened, perhaps, by a wealthier suitor, brought this amour to a disastrous issue; and Father José entered a monastery, taking upon himself the vows of celibacy. It was here that his natural fervor and poetic enthusiasm conceived expression as a missionary. A longing to convert the uncivilized heathen succeeded his frivolous earthly passion, and a desire to explore and develop unknown fastnesses continually possessed him. In his flashing eye and sombre exterior was detected a singular commingling of the discreet Las Casas and the impetuous Balboa.

Fired by this pious zeal, Father José went forward in the van of Christian pioneers. On reaching Mexico, he obtained authority to establish the Mission of San Pablo. Like the good Junipero, accompanied only by an acolyth and muleteer, he unsaddled his mules in a dusky *cañon*, and rang his bell in the wilderness. The savages—a peaceful, inoffensive, and inferior race—presently flocked around him. The nearest military post was far away, which contributed much to the security of these pious pilgrims, who found their open trustfulness and amiability better fitted to repress hostility than the presence of an armed, suspicious, and brawling soldiery. So the good Father José said matins and prime, mass and vespers, in the heart of Sin and Heathenism, taking no heed to himself, but looking only to the welfare of the Holy Church. Conversions soon followed, and, on the 7th of July, 1760, the first Indian baby was baptized,—an event which, as Father José piously records, "exceeds the richness of gold or precious

jewels or the chancing upon the Ophir of Solomon." I quote this incident as best suited to show the ingenuous blending of poetry and piety which distinguished Father José's record.

The Mission of San Pablo progressed and prospered until the pious founder thereof, like the infidel Alexander, might have wept that there were no more heathen worlds to conquer. But his ardent and enthusiastic spirit could not long brook an idleness that seemed begotten of sin; and one pleasant August morning, in the year of grace 1770, Father José issued from the outer court of the Mission building, equipped to explore the field for new missionary labors.

Nothing could exceed the quite gravity and unpretentiousness of the little cavalcade. First rode a stout muleteer, leading a pack-mule laden with the provisions of the party, together with a few cheap crucifixes and hawks' bells. After him came the devout Padre José, bearing his breviary and cross, with a black *serapa* thrown around his shoulders; while on either side trotted a dusky convert, anxious to show a proper sense of their regeneration by acting as guides into the wilds of their heathen brethren. Their new condition was agreeably shown by the absence of the usual mud-plaster, which in their unconverted state they assumed to keep away vermin and cold. The morning was bright and propitious. Before their departure, mass had been said in the chapel, and the protection of St. Ignatius invoked against all contingent evils, but especially against bears, which, like the fiery dragons of old, seemed to cherish an unconquerable hostility to the Holy Church.

As they wound through the *cañon*, charming birds disported upon boughs and sprays, and sober quails piped from the alders; the willowy water-courses gave a musical utterance, and the long grass whispered on the hill-side. On entering the deeper defiles, above them towered dark green masses of pine, and occasionally the *madroño* shook its bright scarlet berries. As they toiled up many a steep ascent, Father José sometimes picked up fragments of scoria, which spake to his imagination of direful volcanoes and impending earthquakes. To the less scientific mind of the muleteer Ignacio they had even a more terrifying significance; and he once or twice snuffed the air suspiciously, and declared that it smelt of sulphur. So the

first day of their journey wore away, and at night they encamped without having met a single heathen face.

It was on this night that the Enemy of Souls appeared to Ignacio in an appalling form. He had retired to a secluded part of the camp, and had sunk upon his knees in prayerful meditation, when he looked up and perceived the Arch-Fiend in the likeness of a monstrous bear. The Evil One was seated on his hind legs immediately before him, with his fore paws joined together just below his black muzzle. Wisely conceiving this remarkable attitude to be in mockery and derision of his devotions, the worthy muleteer was transported with fury. Seizing an arquebuse, he instantly closed his eyes and fired. When he had recovered from the effects of the terrible discharge, the apparition had disappeared. Father José, awakened by the report, reached the spot only in time to chide the muleteer for wasting powder and ball in a contest with one whom a single *ave* would have been sufficient to utterly discomfit. What further reliance he placed on Ignacio's story is not known; but, in commemoration of a worthy Californian custom, the place was called *La Cañada de la Tentacion del Pio Muletero*, or "The Glen of the Temptation of the Pious Muleteer," a name which it retains to this day.

The next morning, the party, issuing from a narrow gorge, came upon a long valley, sear and burnt with the shadeless heat. Its lower extremity was lost in a fading line of low hills, which, gathering might and volume toward the upper end of the valley, upheaved a stupendous bulwark against the breezy North. The peak of this awful spur was just touched by a fleecy cloud that shifted to and fro like a banneret. Father José gazed with mingled awe and admiration. By a singular coincidence, the muleteer Ignacio uttered the simple ejaculation, "*Diablo!*"

As they penetrated the valley, they soon began to miss the agreeable life and companionable echoes of the *cañon* they had quitted. Huge fissures in the parched soil seemed to gape as with thirsty mouths. A few squirrels darted from the earth, and disappeared as mysteriously before the jingling mules. A gray wolf trotted leisurely along just ahead. But whichever way Father José turned, the mountain always asserted itself and arrested his wandering eye. Out of the dry and arid valley, it seemed to spring into cooler and bracing life. Deep cavernous shadows dwelt along its base; rocky fastnesses appeared midway of its elevation; and on either side huge

black hills diverged like massy roots from a central trunk. His lively fancy pictured these hills peopled with a majestic and intelligent race of savages; and looking into futurity, he already saw a monstrous cross crowning the dome-like summit. Far different were the sensations of the muleteer, who saw in those awful solitudes only fiery dragons, colossal bears, and break-neck trails. The converts, Concepcion and Incarnation, trotting modestly beside the Padre, recognized, perhaps, some manifestation of their former weird mythology.

At nightfall they reached the base of the mountain. Here Father José unpacked his mules, said vespers, and, formally ringing his bell, called upon the Gentiles within hearing to come and accept the Holy Faith. The echoes of the black frowning hills around him caught up the pious invitation, and repeated it at intervals; but no Gentiles appeared that night. Nor were the devotions of the muleteer again disturbed, although he afterward asserted, that, when the Father's exhortation was ended, a mocking peal of laughter came from the mountain. Nothing daunted by these intimations of the near hostility of the Evil One, Father José declared his intention to ascend the mountain at early dawn; and before the sun rose the next morning he was leading the way.

The ascent was in many places difficult and dangerous. Huge fragments of rock often lay across the trail, and after a few hours' climbing they were forced to leave their mules in a little gully, and continue the ascent afoot. Unaccustomed to such exertion, Father José often stopped to wipe the perspiration from his thin cheeks. As the day wore on, a strange silence oppressed them. Except the occasional pattering of a squirrel, or a rustling in the *chimisal* bushes, there were no signs of life. The half-human print of a bear's foot sometimes appeared before them, at which Ignacio always crossed himself piously. The eye was sometimes cheated by a dripping from the rocks, which on closer inspection proved to be a resinous oily liquid with an abominable sulphurous smell. When they were within a short distance of the summit, the discreet Ignacio, selecting a sheltered nook for the camp, slipped aside and busied himself in preparations for the evening, leaving the Holy Father to continue the ascent alone. Never was there a more thoughtless act of prudence, never a more imprudent piece of caution. Without noticing the desertion, buried in pious reflection, Father José

pushed mechanically on, and, reaching the summit, cast himself down and gazed upon the prospect.

Below him lay a succession of valleys opening into each other like gentle lakes, until they were lost to the southward. Westerly the distant range hid the bosky *cañada* which sheltered the Mission of San Pablo. In the farther distance the Pacific Ocean stretched away, bearing a cloud of fog upon its bosom, which crept through the entrance of the bay, and rolled thickly between him and the North. Eastward, the same fog hid the base of the mountain and the view beyond. Still, from time to time the fleecy veil parted, and timidly disclosed charming glimpses of mighty rivers, mountain-defiles, and rolling plains, sear with ripened oats, and bathed in the glow of the setting sun. As Father José gazed, he was penetrated with a pious longing. Already his imagination, filled with enthusiastic conceptions, beheld all that vast expanse gathered under the mild sway of the Holy Faith, and peopled with zealous converts. Each little knoll in fancy became crowned with a chapel; from each dark *cañon* gleamed the white walls of a Mission building. Growing bolder in his enthusiasm, and looking farther into futurity, he beheld a new Spain rising on these savage shores. He already saw the spires of stately cathedrals, the domes of palaces, vineyards, gardens, and groves. Convents, half-hid among the hills, peeped from plantation of branching limes; and long processions of chanting nuns wound through the defiles. So completely was the good Father's conception of the future confounded with the past, that even in their choral strain the well-remembered accents of *Cármén* struck his ear. He was busied in these fanciful imaginings, when suddenly over that extended prospect the faint, distant tolling of a bell rang sadly out and died. It was the *Angelus*. Father José listened with superstitious exaltation. The Mission of San Pablo was far away, and the sound must have been some miraculous omen. But never before, to his enthusiastic sense, did the sweet seriousness of this angelic symbol come with such strange significance. With the last faint peal, his glowing fancy seemed to cool; the fog closed in below him, and the good Father remembered he had not had his supper. He had risen and was wrapping his *serapa* around him, when he perceived for the first time that he was not alone.

Nearly opposite, and where should have been the faithless Ignacio, a grave and decorous figure was seated. His appearance was that of an elderly

hidalgo, dressed in mourning, with moustaches of iron-gray carefully waxed and twisted around a pair of lantern-jaws. The monstrous hat and prodigious feather, the enormous ruff and exaggerated trunk-hose, contrasting with a frame shrivelled and wizened, all belonged to a century previous. Yet Father José was not astonished. His adventurous life and poetic imagination, continually on the look-out for the marvellous, gave him a certain advantage over the practical and material minded. He instantly detected the diabolical quality of his visitant, and was prepared. With equal coolness and courtesy he met the cavalier's obeisance.

"I ask your pardon, Sir Priest," said the stranger, "for disturbing your meditations. Pleasant they must have been, and right fanciful, I imagine, when occasioned by so fair a prospect."

"Worldly, perhaps, Sir Devil,—for such I take you to be," said the Holy Father, as the stranger bowed his black plumes to the ground; "worldly, perhaps; for it hath pleased Heaven to retain even in our regenerated state much that pertaineth to the flesh, yet still, I trust, not without some speculation for the welfare of the Holy Church. In dwelling upon yon fair expanse, mine eyes have been graciously opened with prophetic inspiration, and the promise of the heathen as an inheritance hath marvellously recurred to me. For there can be none lack such diligence in the True Faith, but may see that even the conversion of these pitiful salvages hath a meaning. As the blessed St. Ignatius discreetly observes," continued Father José, clearing his throat and slightly elevating his voice, "'the heathen is given to the warriors of Christ, even as the pearls of rare discovery which gladden the hearts of shipmen.' Nay, I might say"—

But here the stranger, who had been wrinkling his brows and twisting his moustaches with well-bred patience, took advantage of an oratorical pause to observe,—

"It grieves me, Sir Priest, to interrupt the current of your eloquence as discourteously as I have already broken your meditations; but the day already waneth to night. I have matter of serious import to make with you, could I entreat your cautious consideration a few moments."

Father José hesitated. The temptation was great, and the prospect of acquiring some knowledge of the Great Enemy's plans not the least trifling

object. And if the truth must be told, there was a certain decorum about the stranger that interested the Padre. Though well aware of the Protean shapes the Arch-Fiend could assume, and though free from the weaknesses of the flesh, Father José was not above the temptations of the spirit. Had the Devil appeared, as in the case of the pious St. Anthony, in the likeness of a comely damsel, the good Father, with his certain experience of the deceitful sex, would have whisked her away in the saying of a paternoster. But there was, added to the security of age, a grave sadness about the stranger,—a thoughtful consciousness as of being at a great moral disadvantage,—which at once decided him on a magnanimous course of conduct.

The stranger then proceeded to inform him, that he had been diligently observing the Holy Father's triumphs in the valley. That, far from being greatly exercised thereat, he had been only grieved to see so enthusiastic and chivalrous an antagonist wasting his zeal in a hopeless work. For, he observed, the issue of the great battle of Good and Evil had been otherwise settled, as he would presently show him. "It wants but a few moments of night," he continued, "and over this interval of twilight, as you know, I have been given complete control. Look to the West."

As the Padre turned, the stranger took his enormous hat from his head, and waved it three times before him. At each sweep of the prodigious feather, the fog grew thinner, until it melted impalpably away, and the former landscape returned, yet warm with the glowing sun. As Father José gazed, a strain of martial music arose from the valley, and, issuing from a deep *cañon*, the good Father beheld a long cavalcade of gallant cavaliers, habited like his companion. As they swept down the plain, they were joined by like processions, that slowly defiled from every ravine and *cañon* of the mysterious mountain. From time to time the peal of a trumpet swelled fitfully upon the breeze; the cross of Santiago glittered, and the royal banners of Castile and Aragon waved over the moving column. So they moved on solemnly toward the sea, where, in the distance, Father José saw stately caravels, bearing the same familiar banner, awaiting them. The good Padre gazed with conflicting emotions, and the serious voice of the stranger broke the silence.

"Thou hast beheld, Sir Priest, the fading footprints of adventurous Castile. Thou hast seen the declining glory of old Spain,—declining as yonder

brilliant sun. The sceptre she hath wrested from the heathen is fast dropping from her decrepit and fleshless grasp. The children she hath fostered shall know her no longer. The soil she hath acquired shall be lost to her as irrevocably as she herself hath thrust the Moor from her own Granada."

The stranger paused, and his voice seemed broken by emotion; at the same time, Father José, whose sympathising heart yearned toward the departing banners, cried, in poignant accents,—

"Farewell, ye gallant cavaliers and Christian soldiers! Farewell, thou, Nuñez de Balboa! thou, Alonzo de Ojeda! and thou, most venerable Las Casas! Farewell, and may Heaven prosper still the seed ye left behind!"

Then turning to the stranger, Father José beheld him gravely draw his pocket-handkerchief from the basket-hilt of his rapier, and apply it decorously to his eyes.

"Pardon this weakness, Sir Priest," said the cavalier, apologetically; "but these worthy gentlemen were ancient friends of mine, and have done me many a delicate service,—much more, perchance, than these poor sables may signify," he added, with a grim gesture toward the mourning suit he wore.

Father José was too much preoccupied in reflection to notice the equivocal nature of this tribute, and, after a few moments' silence, said, as if continuing his thought,—

"But the seed they have planted shall thrive and prosper on this fruitful soil?"

As if answering the interrogatory, the stranger turned to the opposite direction, and, again waving his hat, said, in the same serious tone,—

"Look to the East!"

The Father turned, and, as the fog broke away before the waving plume, he saw that the sun was rising. Issuing with its bright beams through the passes of the snowy mountains beyond, appeared a strange and motley crew. Instead of the dark and romantic visages of his last phantom train, the Father beheld with strange concern the blue eyes and flaxen hair of a Saxon

race. In place of martial airs and musical utterance, there rose upon the ear a strange din of harsh gutturals and singular sibilation. Instead of the decorous tread and stately mien of the cavaliers of the former vision, they came pushing, bustling, panting, and swaggering. And as they passed, the good Father noticed that giant trees were prostrated as with the breath of a tornado, and the bowels of the earth were torn and rent as with a convulsion. And Father José looked in vain for holy cross or Christian symbol; there was but one that seemed an ensign, and he crossed himself with holy horror as he perceived it bore the effigy of a bear!

"Who are these swaggering Ishmaelites?" he asked, with something of asperity in his tone.

The stranger was gravely silent.

"What do they here, with neither cross nor holy symbol?" he again demanded.

"Have you the courage to see, Sir Priest?" responded the stranger, quietly.

Father José felt his crucifix, as a lonely traveller might his rapier, and assented.

"Step under the shadow of my plume," said the stranger.

Father José stepped beside him, and they instantly sank through the earth.

When he opened his eyes, which had remained closed in prayerful meditation during his rapid descent, he found himself in a vast vault, bespangled overhead with luminous points like the starred firmament. It was also lighted by a yellow glow that seemed to proceed from a mighty sea or lake that occupied the centre of the chamber. Around this subterranean sea dusky figures flitted, bearing ladles filled with the yellow fluid, which they had replenished from its depths. From this lake diverging streams of the same mysterious flood penetrated like mighty rivers the cavernous distance. As they walked by the banks of this glittering Styx, Father José perceived how the liquid stream at certain places became solid. The ground was strewn with glittering flakes. One of these the Padre picked up and curiously examined. It was virgin gold.

An expression of discomfiture overcast the good Father's face at this discovery; but there was trace neither of malice nor satisfaction in the stranger's air, which was still of serious and fateful contemplation. When Father José recovered his equanimity, he said, bitterly,—

"This, then, Sir Devil, is your work! This is your deceitful lure for the weak souls of sinful nations! So would you replace the Christian grace of holy Spain!"

"This is what must be," returned the stranger, gloomily. "But listen, Sir Priest. It lies with you to avert the issue for a time. Leave me here in peace. Go back to Castile, and take with you your bells, your images, and your missions. Continue here, and you only precipitate results. Stay! promise me you will do this, and you shall not lack that which will render your old age an ornament and blessing"; and the stranger motioned significantly to the lake.

It was here, the legend discreetly relates, that the Devil showed—as he always shows sooner or later—his cloven hoof. The worthy Padre, sorely perplexed by his threefold vision, and, if the truth must be told, a little nettled at this wresting away of the glory of holy Spanish discovery, had shown some hesitation. But the unlucky bribe of the Enemy of Souls touched his Castilian spirit. Starting back in deep disgust, he brandished his crucifix in the face of the unmasked Fiend, and, in a voice that made the dusky vault resound, cried,—

"Avaunt thee, Sathanas! Diabolus, I defy thee! What! wouldst thou bribe me,—me, a brother of the Sacred Society of the Holy Jesus, Licentiate of Cordova and Inquisitor of Guadalaxara? Thinkest thou to buy me with thy sordid treasure? Avaunt!"

What might have been the issue of this rupture, and how complete might have been the triumph of the Holy Father over the Arch-Fiend, who was recoiling aghast at these sacred titles and the flourishing symbol, we can never know, for at that moment the crucifix slipped through his fingers.

Scarcely had it touched the ground before Devil and Holy Father simultaneously cast themselves toward it. In the struggle they clenched, and the pious José, who was as much the superior of his antagonist in bodily as

in spiritual strength, was about to treat the Great Adversary to a back somersault, when he suddenly felt the long nails of the stranger piercing his flesh. A new fear seized his heart, a numbing chillness crept through his body, and he struggled to free himself, but in vain. A strange roaring was in his ears; the late and cavern danced before his eyes and vanished; and with a loud cry he sank senseless to the ground.

When he recovered his consciousness he was aware of a gentle swaying motion of his body. He opened his eyes, and saw that it was high noon, and that he was being carried in a litter through the valley. He felt stiff, and, looking down, perceived that his arm was tightly bandaged to his side.

He closed his eyes, and, after a few words of thankful prayer, thought how miraculously he had been preserved, and made a vow of candlesticks to the blessed Saint José. He then called in a faint voice, and presently the penitent Ignacio stood beside him.

The joy the poor fellow felt at his patron's returning consciousness for some time choked his utterance. He could only ejaculate, "A miracle! Blessed Saint José, he lives!" and kiss the Padre's bandaged hand. Father José, more intent on his last night's experience, waited for his emotion to subside, and then asked where he had been found.

"On the mountain, your Reverence, but a few *varas* from where he attacked you."

"How?—you saw him, then?" asked the Padre, in unfeigned astonishment.

"Saw him, your Reverence! Mother of God, I should think I did! And your Reverence shall see him too, if he ever comes again within range of Ignacio's arquebuse."

"What mean you, Ignacio?" said the Padre, sitting bolt-upright in his litter.

"Why, the bear, your Reverence,—the bear, Holy Father, who attacked your worshipful person while you were meditating on the top of yonder mountain."

"Ah!" said the Holy Father, lying down again. "Chut, child! I would be at peace."

When he reached the Mission, he was tenderly cared for, and in a few weeks was enabled to resume those duties from which, as will be seen, not even the machinations of the Evil One could divert him. The news of his physical disaster spread over the country; and a letter to the Bishop of Guadalupe contained a confidential and detailed account of the good Father's spiritual temptation. But in some way the story leaked out; and long after José was gathered to his fathers, his mysterious encounter formed the theme of thrilling and whispered narrative. The mountain was generally shunned. It is true that Señor Joaquín Pedrillo afterward located a grant near the base of the mountain; but as the Señora Pedrillo was known to be a termagant, half-breed, the Señor was not supposed to be over-fastidious.

Such is the Legend of Monte del Diablo. As I said before, it may seem to lack essential corroboration. The discrepancy between the Father's narrative and the actual climax has given rise to some skepticism on the part of ingenious quibblers. All such I would simply refer to that part of the report of Señor Julio Serro, Sub-Prefect of San Pablo, before whom attest of the above was made. Touching this matter the worthy Prefect observes,—"That although the body of Father José doth show evidence of grievous conflict in the flesh, yet that is no proof that the Enemy of Souls, who could assume the figure of a decorous, elderly *caballero*, could not at the same time transform himself into a bear for his own vile purposes."

LIFE WITHOUT PRINCIPLE.

At a lyceum, not long since, I felt that the lecturer had chosen a theme too foreign to himself, and so failed to interest me as much as he might have done. He described things not in or near to his heart, but toward his extremities and superficialities. There was, in this sense, no truly central or centralizing thought in the lecture. I would have had him deal with his privatest experience, as the poet does. The greatest compliment that was ever paid me was when one asked me what *I thought*, and attended to my answer. I am surprised, as well as delighted, when this happens, it is such a rare use he would make of me, as if he were acquainted with the tool. Commonly, if men want anything of me, it is only to know how many acres I make of their land,—since I am a surveyor,—or, at most, what trivial news I have burdened myself with. They never will go to law for my meat; they prefer the shell. A man once came a considerable distance to ask me to lecture on Slavery; but on conversing with him, I found that he and his clique expected seven-eighths of the lecture to be theirs, and only one-eighth mine; so I declined. I take it for granted, when I am invited to lecture anywhere,—for I have had a little experience in that business,—that there is a desire to hear what *I think* on some subject, though I may be the greatest fool in the country,—and not that I should say pleasant things merely, or such as the audience will assent to; and I resolve, accordingly, that I will give them a strong dose of myself. They have sent for me, and engaged to pay for me, and I am determined that they shall have me, though I bore them beyond all precedent.

So now I would say something similar to you, my readers. Since *you* are my readers, and I have, not been much of a traveller, I will not talk about people a thousand miles off, but come as near home as I can. As the time is short, I will leave out all the flattery, and retain all the criticism.

Let us consider the way in which we spend our lives.

This world is a place of business. What an infinite bustle! I am awaked almost every night by the panting of the locomotive. It interrupts my

dreams. There is no sabbath. It would be glorious to see mankind at leisure for once. It is nothing but work, work, work. I cannot easily buy a blank-book to write thoughts in; they are commonly ruled for dollars and cents. An Irishman, seeing me making a minute in the fields, took it for granted that I was calculating my wages. If a man was tossed out of a window when an infant, and so made a cripple for life, or scared out of his wits by the Indians, it is regretted chiefly because he was thus incapacitated for—business! I think that there is nothing, not even crime, more opposed to poetry, to philosophy, ay, to life itself, than this incessant business.

There is a coarse and boisterous money-making fellow in the outskirts of our town, who is going to build a bank-wall under the hill along the edge of his meadow. The powers have put this into his head to keep him out of mischief, and he wishes me to spend three weeks digging there with him. The result will be that he will perhaps get some more money to hoard, and leave for his heirs to spend foolishly. If I do this, most will commend me as an industrious and hard-working man; but if I choose to devote myself to certain labors which yield more real profit, though but little money, they may be inclined to look on me as an idler. Nevertheless, as I do not need the police of meaningless labor to regulate me, and do not see anything absolutely praise-worthy in this fellow's undertaking, any more than in many an enterprise of our own or foreign governments, however amusing it may be to him or them, I prefer to finish my education at a different school.

If a man walk in the woods for love of them half of each day, he is in danger of being regarded as a loafer; but if he spends his whole day as a speculator, shearing off those woods and making earth bald before her time, he is esteemed an industrious and enterprising citizen. As if a town had no interest in its forests but to cut them down!

Most men would feel insulted, if it were proposed to employ them in throwing stones over a wall, and then in throwing them back, merely that they might earn their wages. But many are no more worthily employed now. For instance: just after sunrise, one summer morning, I noticed one of my neighbors walking beside his team, which was slowly drawing a heavy hewn stone swung under the axle, surrounded by an atmosphere of industry,—his day's work begun,—his brow commenced to sweat,—a reproach to all sluggards and idlers,—pausing abreast the shoulders of his oxen, and half

turning round with a flourish of his merciful whip, while they gained their length on him. And I thought, Such is the labor which the American Congress exists to protect,—honest, manly toil,—honest as the day is long,—that makes his bread taste sweet, and keeps society sweet,—which all men respect and have consecrated: one of the sacred band, doing the needful, but irksome drudgery. Indeed, I felt a slight reproach, because I observed this from the window, and was not abroad and stirring about a similar business. The day went by, and at evening I passed the yard of another neighbor, who keeps many servants, and spends much money foolishly, while he adds nothing to the common stock, and there I saw the stone of the morning lying beside a whimsical structure intended to adorn this Lord Timothy Dexter's premises, and the dignity forthwith departed from the teamster's labor, in my eyes. In my opinion, the sun was made to light worthier toil than this. I may add, that his employer has since run off, in debt to a good part of the town, and, after passing through Chancery, has settled somewhere else, there to become once more a patron of the arts.

The ways by which you may get money almost without exception lead downward. To have done anything by which you earned money *merely* is to have been truly idle or worse. If the laborer gets no more than the wages which his employer pays him, he is cheated, he cheats himself. If you would get money as a writer or lecturer, you must be popular, which is to go down perpendicularly. Those services which the community will most readily pay for it is most disagreeable to render. You are paid for being something less than a man. The State does not commonly reward a genius any more wisely. Even the poet-laureate would rather not have to celebrate the accidents of royalty. He must be bribed with a pipe of wine; and perhaps another poet is called away from his muse to gauge that very pipe. As for my own business, even that kind of surveying which I could do with most satisfaction my employers do not want. They would prefer that I should do my work coarsely and not too well, ay, not well enough. When I observe that there are different ways of surveying, my employer commonly asks which will give him the most land, not which is most correct. I once invented a rule for measuring cord-wood, and tried to introduce it in Boston; but the measurer there told me that the sellers did not wish to have their wood measured correctly,—that he was already too accurate for them,

and therefore they commonly got their wood measured in Charlestown before crossing the bridge.

The aim of the laborer should be, not to get his living, to get "a good job," but to perform well a certain work; and, even in a pecuniary sense, it would be economy for a town to pay its laborers so well that they would not feel that they were working for low ends, as for a livelihood merely, but for scientific, or even moral ends. Do not hire a man who does your work for money, but him who does it for love of it.

It is remarkable that there are few men so well employed, so much to their minds, but that a little money or fame would commonly buy them off from their present pursuit. I see advertisements for *active* young men; as if activity were the whole of a young man's capital. Yet I have been surprised when one has with confidence proposed to me, a grown man, to embark in some enterprise of his, as if I had absolutely nothing to do, my life having been a complete failure hitherto. What a doubtful compliment this is to pay me! As if he had met me half-way across the ocean beating up against the wind, but bound nowhere, and proposed to me to go along with him! If I did, what do you think the underwriters would say? No, no! I am not without employment at this stage of the voyage. To tell the truth, I saw an advertisement for able-bodied seamen, when I was a boy, sauntering in my native port, and as soon as I came of age I embarked.

The community has no bribe that wilt tempt a wise man. You may raise money enough to tunnel a mountain, but you cannot raise money enough to hire a man who is minding *his own* business. An efficient and valuable man does what he can, whether the community pay him for it or not. The inefficient offer their inefficiency to the highest bidder, and are forever expecting to be put into office. One would suppose that they were rarely disappointed.

Perhaps I am more than usually jealous with respect to my freedom. I feel that my connection with and obligation to society are still very slight and transient. Those slight labors which afford me a livelihood, and by which it is allowed that I am to some extent serviceable to my contemporaries, are as yet commonly a pleasure to me, and I am not often reminded that they are a necessity. So far I am successful. But I foresee, that, if my wants should be

much increased, the labor required to supply them would become a drudgery. If I should sell both my forenoons and afternoons to society, as most appear to do, I am sure, that, for me, there would be nothing left worth living for. I trust that I shall never thus sell my birthright for a mess of pottage. I wish to suggest that a man may be very industrious, and yet not spend his time well. There is no more fatal blunderer than he who consumes the greater part of his life getting his living. All great enterprises are self-supporting. The poet, for instance, must sustain his body by his poetry, as a steam planing-mill feeds its boilers with the shavings it makes. You must get your living by loving. But as it is said of the merchants that ninety-seven in a hundred fail, so the life of men generally, tried by this standard, is a failure, and bankruptcy may be surely prophesied.

Merely to come into the world the heir of a fortune is not to be born, but to be still-born, rather. To be supported by the charity of friends, or a government-pension,—provided you continue to breathe,—by whatever fine synonymes you describe these relations, is to go into the almshouse. On Sundays the poor debtor goes to church to take an account of stock, and finds, of course, that his outgoes have been greater than his income. In the Catholic Church, especially, they go into Chancery, make a clean confession, give up all, and think to start again. Thus men will lie on their backs, talking about the fall of man, and never make an effort to get up.

As for the comparative demand which men make on life, it is an important difference between two, that the one is satisfied with a level success, that his marks can all be hit by point-blank shots, but the other, however low and unsuccessful his life may be, constantly elevates his aim, though at a very slight angle to the horizon. I should much rather be the last man,—though, as the Orientals say, "Greatness doth not approach him who is forever looking down; and all those who are looking high are growing poor."

It is remarkable that there is little or nothing to be remembered written on the subject of getting a living: how to make getting a living not merely honest and honorable, but altogether inviting and glorious; for if *getting* a living is not so, then living is not. One would think, from looking at literature, that this question had never disturbed a solitary individual's musings. Is it that men are too much disgusted with their experience to

speak of it? The lesson of value which money teaches, which the Author of the Universe has taken so much pains to teach us, we are inclined to skip altogether. As for the means of living, it is wonderful how indifferent men of all classes are about it, even reformers, so called,—whether they inherit, or earn, or steal it. I think that society has done nothing for us in this respect, or at least has undone what she has done. Cold and hunger seem more friendly to my nature than those methods which men have adopted and advise to ward them off.

The title *wise* is, for the most part, falsely applied. How can one be a wise man, if he does not know any better how to live than other men?—if he is only more cunning and intellectually subtle? Does Wisdom work in a treadmill? or does she teach how to succeed *by her example*? Is there any such thing as wisdom not applied to life? Is she merely the miller who grinds the finest logic? It is pertinent to ask if Plato got his *living* in a better way or more successfully than his contemporaries,—or did he succumb to the difficulties of life like other men? Did he seem to prevail over some of them merely by indifference, or by assuming grand airs? or find it easier to live, because his aunt remembered him in her will? The ways in which most men get their living, that is, live, are mere make-shifts, and a shirking of the real business of life,—chiefly because they do not know, but partly because they do not mean, any better.

The rush to California, for instance, and the attitude, not merely of merchants, but of philosophers and prophets, so called, in relation to it, reflect the greatest disgrace on mankind. That so many are ready to live by luck, and so get the means of commanding the labor of others less lucky, without contributing any value to society! And that is called enterprise! I know of no more startling development of the immorality of trade, and all the common modes of getting a living. The philosophy and poetry and religion of such a mankind are not worth the dust of a puff-ball. The hog that gets his living by rooting, stirring up the soil so, would be ashamed of such company. If I could command the wealth of all the worlds by lifting my finger, I would not pay *such* a price for it. Even Mahomet knew that God did not make this world in jest. It makes God to be a moneyed gentleman who scatters a handful of pennies in order to see mankind scramble for them. The world's raffle! A subsistence in the domains of Nature a thing to be raffled for! What a comment, what a satire on our

institutions! The conclusion will be, that mankind will hang itself upon a tree. And have all the precepts in all the Bibles taught men only this? and is the last and most admirable invention of the human race only an improved muck-rake? Is this the ground on which Orientals and Occidentals meet? Did God direct us so to get our living, digging where we never planted,—and He would, perchance, reward us with lumps of gold?

God gave the righteous man a certificate entitling him to food and raiment, but the unrighteous man found a *facsimile* of the same in God's coffers, and appropriated it, and obtained food and raiment like the former. It is one of the most extensive systems of counterfeiting that the world has seen. I did not know that mankind were suffering for want of gold. I have seen a little of it. I know that it is very malleable, but not so malleable as wit. A grain of gold will gild a great surface, but not so much as a grain of wisdom.

The gold-digger in the ravines of the mountains is as much a gambler as his fellow in the saloons of San Francisco. What difference does it make, whether you shake dirt or shake dice? If you win, society is the loser. The gold-digger is the enemy of the honest laborer, whatever checks and compensations there may be. It is not enough to tell me that you worked hard to get your gold. So does the Devil work hard. The way of transgressors may be hard in many respects. The humblest observer who goes to the mines sees and says that gold-digging is of the character of a lottery; the gold thus obtained is not the same thing with the wages of honest toil. But, practically, he forgets what he has seen, for he has seen only the fact, not the principle, and goes into trade there, that is, buys a ticket in what commonly proves another lottery, where the fact is not so obvious.

After reading Hewitt's account of the Australian gold-diggings one evening, I had in my mind's eye, all night, the numerous valleys, with their streams, all cut up with foul pits, from ten to one hundred feet deep, and half a dozen feet across, as close as they can be dug, and partly filled with water,—the locality to which men furiously rush to probe for their fortunes,—uncertain where they shall break ground,—not knowing but the gold is under their camp itself,—sometimes digging one hundred and sixty feet before they strike the vein, or then missing it by a foot,—turned into demons, and regardless of each other's rights, in their thirst for riches,—whole valleys,

for thirty miles, suddenly honey-combed by the pits of the miners, so that even hundreds are drowned in them,—standing in water, and covered with mud and clay, they work night and day, dying of exposure and disease. Having read this, and partly forgotten it, I was thinking, accidentally, of my own unsatisfactory life, doing as others do; and with that vision of the diggings still before me, I asked myself, why *I* might not be washing some gold daily, though it were only the finest particles,—why *I* might not sink a shaft down to the gold within me, and work that mine. *There* is a Ballarat, a Bendigo for you,—what though it were a sulky-gully? At any rate, I might pursue some path, however solitary and narrow and crooked, in which I could walk with love and reverence. Wherever a man separates from the multitude, and goes his own way in this mood, there indeed is a fork in the road, though ordinary travellers may see only a gap in the paling. His solitary path across-lots will turn out the *higher* way of the two.

Men rush to California and Australia as if the true gold were to be found in that direction; but that is to go to the very opposite extreme to where it lies. They go prospecting farther and farther away from the true lead, and are most unfortunate when they think themselves most successful. Is not our *native* soil auriferous? Does not a stream from the golden mountains flow through our native valley? and has not this for more than geologic ages been bringing down the shining particles and forming the nuggets for us? Yet, strange to tell, if a digger steal away, prospecting for this true gold, into the unexplored solitudes around us, there is no danger that any will dog his steps, and endeavor to supplant him. He may claim and undermine the whole valley even, both the cultivated and the uncultivated portions, his whole life long in peace, for no one will ever dispute his claim. They will not mind his cradles or his toms. He is not confined to a claim twelve feet square, as at Ballarat, but may mine anywhere, and wash the whole wide world in his tom.

Howitt says of the man who found the great nugget which weighed twenty-eight pounds, at the Bendigo diggings in Australia:—"He soon began to drink; got a horse, and rode all about, generally at full gallop, and, when he met people, called out to inquire if they knew who he was, and then kindly informed them that he was 'the bloody wretch that had found the nugget.' At last he rode full speed against a tree, and nearly knocked his brains out." I think, however, there was no danger of that, for he had already knocked his

brains out against the nugget. Howitt adds, "He is a hopelessly ruined man." But he is a type of the class. They are all fast men. Hear some of the names of the places where they dig:—"Jackass Flat,"—"Sheep's-Head Gully,"—"Murderer's Bar," etc. Is there no satire in these names? Let them carry their ill-gotten wealth where they will, I am thinking it will still be "Jackass Flat," if not "Murderer's Bar," where they live.

The last resource of our energy has been the robbing of graveyards on the Isthmus of Darien, an enterprise which appears to be but in its infancy; for, according to late accounts, an act has passed its second reading in the legislature of New Granada, regulating this kind of mining; and a correspondent of the "Tribune" writes:—"In the dry season, when the weather will permit of the country being properly prospected, no doubt other rich '*guacas*' [that is, graveyards] will be found." To emigrants he says:—"Do not come before December; take the Isthmus route in preference to the Boca del Toro one; bring no useless baggage, and do not cumber yourself with a tent; but a good pair of blankets will be necessary; a pick, shovel, and axe of good material will be almost all that is required": advice which might have been taken from the "Burker's Guide." And he concludes with this line in Italics and small capitals: "*If you are doing well at home, STAY THERE,*" which may fairly be interpreted to mean, "If you are getting a good living by robbing graveyards at home, stay there."

But why go to California for a text? She is the child of New England, bred at her own school and church.

It is remarkable that among all the preachers there are so few moral teachers. The prophets are employed in excusing the ways of men. Most reverend seniors, the *illuminati* of the age, tell me, with a gracious, reminiscent smile, betwixt an aspiration and a shudder, not to be too tender about these things,—to lump all that, that is, make a lump of gold of it. The highest advice I have heard on these subjects was grovelling. The burden of it was,—It is not worth your while to undertake to reform the world in this particular. Do not ask how your bread is buttered; it will make you sick, if you do,—and the like. A man had better starve at once than lose his innocence in the process of getting his bread. If within the sophisticated man there is not an unsophisticated one, then he is but one of the Devil's angels. As we grow old, we live more coarsely, we relax a little in our

disciplines, and, to some extent, cease to obey our finest instincts. But we should be fastidious to the extreme of sanity, disregarding the gibes of those who are more unfortunate than ourselves.

In our science and philosophy, even, there is commonly no true and absolute account of things. The spirit of sect and bigotry has planted its hoof amid the stars. You have only to discuss the problem, whether the stars are inhabited or not, in order to discover it. Why must we daub the heavens as well as the earth? It was an unfortunate discovery that Dr. Kane was a Mason, and that Sir John Franklin was another. But it was a more cruel suggestion that possibly that was the reason why the former went in search of the latter. There is not a popular magazine in this country that would dare to print a child's thought on important subjects without comment. It must be submitted to the D.D.s. I would it were the chickadee-dees.

You come from attending the funeral of mankind to attend to a natural phenomenon. A little thought is sexton to all the world.

I hardly know an *intellectual* man, even, who is so broad and truly liberal that you can think aloud in his society. Most with whom you endeavor to talk soon come to a stand against some institution in which they appear to hold stock,—that is, some particular, not universal, way of viewing things. They will continually thrust their own low roof, with its narrow skylight, between you and the sky, when it is the unobstructed heavens you would view. Get out of the way with your cobwebs, wash your windows, I say! In some lyceums they tell me that they have voted to exclude the subject of religion. But how do I know what their religion is, and when I am near to or far from it? I have walked into such an arena and done my best to make a clean breast of what religion I have experienced, and the audience never suspected what I was about. The lecture was as harmless as moonshine to them. Whereas, if I had read to them the biography of the greatest scamps in history, they might have thought that I had written the lives of the deacons of their church. Ordinarily, the inquiry is, Where did you come from? or, Where are you going? That was a more pertinent question which I overheard one of my auditors put to another once.—"What does he lecture for?" It made me quake in my shoes.

To speak impartially, the best men that I know are not serene, a world in themselves. For the most part, they dwell in forms, and flatter and study effect only more finely than the rest. We select granite for the underpinning of our houses and barns; we build fences of stone; but we do not ourselves rest on an underpinning of granitic truth, the lowest primitive rock. Our sills are rotten. What stuff is the man made of who is not coexistent in our thought with the purest and subtlest truth? I often accuse my finest acquaintances of an immense frivolity; for, while there are manners and compliments we do not meet, we do not teach one another the lessons of honesty and sincerity that the brutes do, or of steadiness and solidity that the rocks do. The fault is commonly mutual, however; for we do not habitually demand any more of each other.

That excitement about Kossuth, consider how characteristic, but superficial, it was!—only another kind of politics or dancing. Men were making speeches to him all over the country, but each expressed only the thought, or the want of thought, of the multitude. No man stood on truth. They were merely banded together, as usual, one leaning on another, and all together on nothing; as the Hindoos made the world rest on an elephant, the elephant on a tortoise, and the tortoise on a serpent, and had nothing to put under the serpent. For all fruit of that stir we have the Kossuth hat.

Just so hollow and ineffectual, for the most part, is our ordinary conversation. Surface meets surface. When our life ceases to be inward and private, conversation degenerates into mere gossip. We rarely meet a man who can tell us any news which he has not read in a newspaper, or been told by his neighbor; and, for the most part, the only difference between us and our fellow is, that he has seen the newspaper, or been out to tea, and we have not. In proportion as our inward life fails, we go more constantly and desperately to the post-office. You may depend on it, that the poor fellow who walks away with the greatest number of letters, proud of his extensive correspondence, has not heard from himself this long while.

I do not know but it is too much to read one newspaper a week. I have tried it recently, and for so long it seems to me that I have not dwelt in my native region. The sun, the clouds, the snow, the trees say not so much to me. You cannot serve two masters. It requires more than a day's devotion to know and to possess the wealth of a day.

We may well be ashamed to tell what things we have read or heard in our day. I do not know why my news should be so trivial,—considering what one's dreams and expectations are, why the developments should be so paltry. The news we hear, for the most part, is not news to our genius. It is the stalest repetition. You are often tempted to ask, why such stress is laid on a particular experience which you have had,—that, after twenty-five years, you should meet Hobbins Registrar of Deeds, again on the sidewalk. Have you not budged an inch, then? Such is the daily news. Its facts appear to float in the atmosphere, insignificant as the sporules of fungi, and impinge on some neglected *thallus*, or surface of our minds, which affords a basis for them, and hence a parasitic growth. We should wash ourselves clean of such news. Of what consequence, though our planet explode, if there is no character involved in the explosion? In health we have not the least curiosity about such events. We do not live for idle amusement. I would not run round a corner to see the world blow up.

All summer, and far into the autumn, perchance, you unconsciously went by the newspapers and the news, and now you find it was because the morning and the evening were full of news to you. Your walks were full of incidents. You attended, not to the affairs of Europe, but to your own affairs in Massachusetts fields. If you chance to live and move and have your being in that thin stratum in which the events that make the news transpire,—thinner than the paper on which it is printed,—then these things will fill the world for you; but if you soar above or dive below that plane, you cannot remember nor be reminded of them. Really to see the sun rise or go down every day, so to relate ourselves to a universal fact, would preserve us sane forever. Nations! What are nations? Tartars, and Huns, and Chinamen! Like insects, they swarm. The historian strives in vain to make them memorable. It is for want of a man that there are so many men. It is individuals that populate the world. Any man thinking may say with the Spirit of Lodin,—

"I look down from my height on nations,
And they become ashes before me;—
Calm is my dwelling in the clouds;
Pleasant are the great fields of my rest."

Pray, let us live without being drawn by dogs, Esquimaux-fashion, tearing over hill and dale, and biting each other's ears.

Not without a slight shudder at the danger, I often perceive how near I had come to admitting into my mind the details of some trivial affair,—the news of the street; and I am astonished to observe how willing men are to lumber their minds with such rubbish,—to permit idle rumors and incidents of the most insignificant kind to intrude on ground which should be sacred to thought. Shall the mind be a public arena, where the affairs of the street and the gossip of the tea-table chiefly are discussed? Or shall it be a quarter of heaven itself,—an hypæthral temple, consecrated to the service of the gods? I find it so difficult to dispose of the few facts which to me are significant, that I hesitate to burden my attention with those which are insignificant, which only a divine mind could illustrate. Such is, for the most part, the news in newspapers and conversation. It is important to preserve the mind's chastity in this respect. Think of admitting the details of a single case of the criminal court into our thoughts, to stalk profanely through their very *sanctum sanctorum* for an hour, ay, for many hours! to make a very bar-room of the mind's inmost apartment, as if for so long the dust of the street had occupied us,—the very street itself, with all its travel, its bustle, and filth had passed through our thoughts' shrine! Would it not be an intellectual and moral suicide? When I have been compelled to sit spectator and auditor in a court-room for some hours, and have seen my neighbors, who were not compelled, stealing in from time to time, and tiptoeing about with washed hands and faces, it has appeared to my mind's eye, that, when they took off their hats, their ears suddenly expanded into vast hoppers for sound, between which even their narrow heads were crowded. Like the vanes of windmills, they caught the broad, but shallow stream of sound, which, after a few titillating gyrations in their coggy brains, passed out the other side. I wondered if, when they got home, they were as careful to wash their ears as before their hands and faces. It has seemed to me, at such a time, that the auditors and the witnesses, the jury and the counsel, the judge and the

criminal at the bar,—if I may presume him guilty before he is convicted,—were all equally criminal, and a thunderbolt might be expected to descend and consume them all together.

By all kinds of traps and sign-boards, threatening the extreme penalty of the divine law, exclude such trespassers from the only ground which can be sacred to you. It is so hard to forget what it is worse than useless to remember! If I am to be a thoroughfare, I prefer that it be of the mountain-brooks, the Parnassian streams, and not the town-sewers. There is inspiration, that gossip which comes to the ear of the attentive mind from the courts of heaven. There is the profane and stale revelation of the bar-room and the police court. The same ear is fitted to receive both communications. Only the character of the hearer determines to which it shall be open, and to which closed. I believe that the mind can be permanently profaned by the habit of attending to trivial things, so that all our thoughts shall be tinged with triviality. Our very intellect shall be macadamized, as it were,—its foundation broken into fragments for the wheels of travel to roll over; and if you would know what will make the most durable pavement, surpassing rolled stones, spruce blocks, and asphaltum, you have only to look into some of our minds which have been subjected to this treatment so long.

If we have thus desecrated ourselves,—as who has not?—the remedy will be by wariness and devotion to reconsecrate ourselves, and make once more a fane of the mind. We should treat our minds, that is, ourselves, as innocent and ingenuous children, whose guardians we are, and be careful what objects and what subjects we thrust on their attention. Read not the Times. Read the Eternities. Conventionalities are at length as bad as impurities. Even the facts of science may dust the mind by their dryness, unless they are in a sense effaced each morning, or rather rendered fertile by the dews of fresh and living truth. Knowledge does not come to us by details, but in flashes of light from heaven. Yes, every thought that passes through the mind helps to wear and tear it, and to deepen the ruts, which, as in the streets of Pompeii, evince how much it has been used. How many things there are concerning which we might well deliberate, whether we had better know them,—had better let their peddling-carts be driven, even at the slowest trot or walk, over that bridge of glorious span by which we trust to pass at last from the farthest brink of time to the nearest shore of eternity!

Have we no culture, no refinement,—but skill only to live coarsely and serve the Devil?—to acquire a little worldly wealth, or fame, or liberty, and make a false show with it, as if we were all husk and shell, with no tender and living kernel to us? Shall our institutions be like those chestnut-burs which contain abortive nuts, perfect only to prick the fingers?

America is said to be the arena on which the battle of freedom is to be fought; but surely it cannot be freedom in a merely political sense that is meant. Even if we grant that the American has freed himself from a political tyrant, he is still the slave of an economical and moral tyrant. Now that the republic—the *res-publica*—has been settled, it is time to look after the *res-privata*,—the private state,—to see, as the Roman senate charged its consuls, "*ne quid res-PRIVATA detrimenti caperet*," that the *private* state receive no detriment.

Do we call this the land of the free? What is it to be free from King George and continue the slaves of King Prejudice? What is it to be born free and not to live free? What is the value of any political freedom, but as a means to moral freedom? Is it a freedom to be slaves, or a freedom to be free, of which we boast? We are a nation of politicians, concerned about the outmost defences only of freedom. It is our children's children who may perchance be really free. We tax ourselves unjustly. There is a part of us which is not represented. It is taxation without representation. We quarter troops, we quarter fools and cattle of all sorts upon ourselves. We quarter our gross bodies on our poor souls, till the former eat up all the latter's substance.

With respect to a true culture and manhood, we are essentially provincial still, not metropolitan,—mere Jonathans. We are provincial, because we do not find at home our standards,—because we do not worship truth, but the reflection of truth,—because we are warped and narrowed by an exclusive devotion to trade and commerce and manufactures and agriculture and the like, which are but means, and not the end.

So is the English Parliament provincial. Mere country-bumpkins, they betray themselves, when any more important question arises for them to settle, the Irish question, for instance,—the English question why did I not say? Their natures are subdued to what they work in. Their "good breeding"

respects only secondary objects. The finest manners in the world are awkwardness and fatuity, when contrasted with a finer intelligence. They appear but as the fashions of past days,—mere courtliness, knee-buckles and small-clothes, out of date. It is the vice, but not the excellence of manners, that they are continually being deserted by the character; they are cast-off clothes or shells, claiming the respect which belonged to the living creature. You are presented with the shells instead of the meat, and it is no excuse generally, that, in the case of some fishes, the shells are of more worth than the meat. The man who thrusts his manners upon me does as if he were to insist on introducing me to his cabinet of curiosities, when I wished to see himself. It was not in this sense that the poet Decker called Christ "the first true gentleman that ever breathed." I repeat that in this sense the most splendid court in Christendom is provincial, having authority to consult about Trans-alpine interests only, and not the affairs of Rome. A prætor or proconsul would suffice to settle the questions which absorb the attention of the English Parliament and the American Congress.

Government and legislation! these I thought were respectable professions. We have heard of heaven-born Numas, Lycurguses, and Solons, in the history of the world, whose *names* at least may stand for ideal legislators; but think of legislating to *regulate* the breeding of slaves, or the exportation of tobacco! What have divine legislators to do with the exportation or the importation of tobacco? what humane ones with the breeding of slaves? Suppose you were to submit the question to any son of God,—and has He no children in the nineteenth century? is it a family which is extinct?—in what condition would you get it again? What shall a State like Virginia say for itself at the last day, in which these have been the principal, the staple productions? What ground is there for patriotism in such a State? I derive my facts from statistical tables which the States themselves have published.

A commerce that whitens every sea in quest of nuts and raisins, and makes slaves of its sailors for this purpose! I saw, the other day, a vessel which had been wrecked, and many lives lost, and her cargo of rags, juniper-berries, and bitter almonds were strewn along the shore. It seemed hardly worth the while to tempt the dangers of the sea between Leghorn and New York for the sake of a cargo of juniper-berries and bitter almonds. America sending to the Old World for her bitters! Is not the sea-brine, is not shipwreck, bitter enough to make the cup of life go down here? Yet such, to a great extent, is

our boasted commerce; and there are those who style themselves statesmen and philosophers who are so blind as to think that progress and civilization depend on precisely this kind of interchange and activity,—the activity of flies about a molasses-hogshead. Very well, observes one, if men were oysters. And very well, answer I, if men were mosquitoes.

Lieutenant Herndon, whom our Government sent to explore the Amazon, and, it is said, to extend the area of Slavery, observed that there was wanting there "an industrious and active population, who know what the comforts of life are, and who have artificial wants to draw out the great resources of the country." But what are the "artificial wants" to be encouraged? Not the love of luxuries, like the tobacco and slaves of, I believe, his native Virginia, nor the ice and granite and other material wealth of our native New England; nor are "the great resources of a country" that fertility or barrenness of soil which produces these. The chief want, in every State that I have been into, was a high and earnest purpose in its inhabitants. This alone draws out "the great resources" of Nature, and at last taxes her beyond her resources; for man naturally dies out of her. When we want culture more than potatoes, and illumination more than sugar-plums, then the great resources of a world are taxed and drawn out, and the result, or staple production, is, not slaves, nor operatives, but men,—those rare fruits called heroes, saints, poets, philosophers, and redeemers.

In short, as a snow-drift is formed where there is a lull in the wind, so, one would say, where there is a lull of truth, an institution springs up. But the truth blows right on over it, nevertheless, and at length blows it down.

What is called politics is comparatively something so superficial and inhuman, that, practically, I have never fairly recognized that it concerns me at all. The newspapers, I perceive, devote some of their columns specially to politics or government without charge; and this, one would say, is all that saves it; but, as I love literature, and to some extent, the truth also, I never read those columns at any rate. I do not wish to blunt my sense of right so much. I have not got to answer for having read a single President's Message. A strange age of the world this, when empires, kingdoms, and republics come a-begging to a private man's door, and utter their complaints at his elbow! I cannot take up a newspaper but I find that some wretched government or other, hard pushed, and on its last legs, is interceding with

me, the reader, to vote for it,—mere importunate than an Italian beggar; and if I have a mind to look at its certificate, made, perchance, by some benevolent merchant's clerk, or the skipper that brought it over, for it cannot speak a word of English itself, I shall probably read of the eruption of some Vesuvius, or the overflowing of some Po, true or forged, which brought it into this condition. I do not hesitate, in such a case, to suggest work, or the almshouse; or why not keep its castle in silence, as I do commonly? The poor President, what with preserving his popularity and doing his duty, is completely bewildered. The newspapers are the ruling power. Any other government is reduced to a few marines at Fort Independence. If a man neglects to read the Daily Times, Government will go down on its knees to him, for this is the only treason in these days.

Those things which now most engage the attention of men, as politics and the daily routine, are, it is true, vital functions of human society, but should be unconsciously performed, like the corresponding functions of the physical body. They are *infra*-human, a kind of vegetation. I sometimes awake to a half-consciousness of them going on about me, as a man may become conscious of some of the processes of digestion in a morbid state, and so have the dyspepsia, as it is called. It is as if a thinker submitted himself to be rasped by the great gizzard of creation. Politics is, as it were, the gizzard of society, full of grit and gravel, and the two political parties are its two opposite halves,—sometimes split into quarters, it may be, which grind on each other. Not only individuals, but States, have thus a confirmed dyspepsia, which expresses itself, you can imagine by what sort of eloquence. Thus our life is not altogether a forgetting, but also, alas! to a great extent, a remembering of that which we should never have been conscious of, certainly not in our waking hours. Why should we not meet, not always as dyspeptics, to tell our bad dreams, but sometimes as *eupeptics*, to congratulate each other on the ever glorious morning? I do not make an exorbitant demand, surely.

BARBARA FRIETCHIE.

Up from the meadows rich with corn,
Clear in the cool September morn,

The clustered spires of Frederick stand
Green-walled by the hills of Maryland.

Round about them orchards sweep,
Apple- and peach-tree fruited deep,

Fair as a garden of the Lord
To the eyes of the famished rebel horde,

On that pleasant morn of the early fall
When Lee marched over the mountain-wall,—

Over the mountains winding down,
Horse and foot, into Frederick town.

Forty flags with their silver stars,
Forty flags with their crimson bars,

Flapped in the morning wind: the sun
Of noon looked down, and saw not one.

Up rose old Barbara Frietchie then,
Bowed with her fourscore years and ten;

Bravest of all in Frederick town,
She took up the flag the men hauled down;

In her attic-window the staff she set,
To show that one heart was loyal yet.

Up the street came the rebel tread,

Stonewall Jackson riding ahead.

Under his slouched hat left and right
He glanced: the old flag met his sight.

"Halt!"—the dust-brown ranks stood fast
"Fire!"—out blazed the rifle-blast.

It shivered the window, pane and sash;
It rent the banner with seam and gash.

Quick, as it fell, from the broken staff
Dame Barbara snatched the silken scarf;

She leaned far out on the window-sill,
And shook it forth with a royal will.

"Shoot, if you must, this old gray head,
But spare your country's flag," she said.

A shade of sadness, a blush of shame,
Over the face of the leader came;

The nobler nature within him stirred
To life at that woman's deed and word:

"Who touches a hair of yon gray head
Dies like a dog! March on!" he said.

All day long through Frederick street
Sounded the tread of marching feet:

All day long that free flag tossed
Over the heads of the rebel host.

Ever its torn folds rose and fell
On the loyal winds that loved it well;

And through the hill-gaps sunset light

Shone over it with a warm good-night.

Barbara Frietchie's work is o'er,
And the Rebel rides on his raids no more.

Honor to her! and let a tear
Fall, for her sake, on Stonewall's bier.

Over Barbara Frietchie's grave
Flag of Freedom and Union, wave!

Peace and order and beauty draw
Round thy symbol of light and law;

And ever the stars above look down
On thy stars below in Frederick town!

A LETTER TO THOMAS CARLYLE.

SIR,—You have Homered it of late in a small way, one sees. You profess to sing the purport of our national struggle. "South chooses to hire its servants for life, rather than by the day, month, or year; North bludgeons the Southern brain to prevent the same": that, you say, is the American Iliad in a Nutshell. In a certain sense, more's the pity, it must be supposed that you speak correctly; but be assured that this is the American Iliad in no other nutshell than your private one,—in those too contracted cerebral quarters to which, with respect to our matters, your powerful intelligence, under such prolonged and pitiless extremes of dogmatic compression, has at last got reduced.

Seriously, not in any trivial wilfulness of retort, I accuse you of a narrowness and pettiness of understanding with regard to America. Give me leave to "wrestle a fall" with you on this theme. And as I can with but twoscore years match your threescore and five, let me entreat of your courtesy to set that circumstance aside, and to constitute me, for the nonce, your equal in age and privilege of speech. For I must wrestle to-day in earnest!

You are a great nature, a great writer, and a man of piercing intellect: he is a jack or a dunce that denies it. But of you, more than of most men at all your equals in intellectual resource, it may be said that yours is not a spherical or universal, but a special and linear intelligence,—of great human depth and richness, but special nevertheless. Of a particular order of truths you are an incomparable champion; but always you are the champion and on the field, always your genius has its visor down, and glares through a loop-hole with straitened intentness of vision. A particular sort of errors and falsities you can track with the scent of a blood-hound, and with a speed and bottom not surpassed, if equalled; but the Destinies have put the nose of your genius to the ground, and sent it off for good and all upon a particular trail. You sound, indeed, before your encounter, such a thrilling war-note as turns the cripple's crutch to an imaginary lance; you open on your quarry with such a cry as kindles a huntsman's heart beneath the bosoms of nursing mothers.

No living writer possesses the like fascination. Yet, in truth, we should all have tired of your narrow stringency long ago, did there not run in the veins of your genius so rich and ruddy a human blood. The profoundness of your interest in man, and the masterly way in which you grasp character, give to your thought an inner quality of centrality and wholeness, despite the dogmatic partiality of its shaping at your hands. And so your enticement continues, intensely partial though it be.

Continues,—but with growing protest, and growing ground for it. For, to speak the truth, by your kind permission, without reserve, you are beginning to suffer from yourself. You are threatening to perish of too much Thomas Carlyle, I venture to caution you against that tremendous individual. He is subduing your genius to his own special humors; he is alloying your mental activity, to a fearful degree, with dogmatic prepossession; he is making you an intellectual *routinier*, causing thereby an infiltration of that impurity of which all routine at last dies. For years we that love you most have seen that you were ceasing more and more to hold open, fresh relations with truth,—that you were straitening and hardening into the linear, rigid eagerness of the mere propagandist. You have, if I may so speak, been turning all your front-head into back-head, giving to your cerebral powers the characters of preappointed, automatic action, which are proper to the cerebellum. It cannot be denied that you have thus acquired a remarkable, machine-like simplicity, force, and constancy of mental action,—your brain-wheels spinning away with such a steam-engine whirr as one cannot but admire; but, on the other hand, as was inevitable, you have become astonishingly insensitive to all truths, save those with which you are established in organic connection; nor could the products of Manchester mills be bargained for beforehand with more certainty than the results of your intellectual activity. You can be silent,—I venture to assert so much; but if you speak at all, we know perfectly well what description of fabric *must* come from your loom.

It does not, therefore, surprise us, does not clash with our sense of your native greatness, that for our particular Iliad you prove a very nutshell Homer indeed. For I must not disguise it from you that this is exactly the case. It was *Homerus in nuce* first; and the pitiful purport of the epic results less from any smallness in the action celebrated than from that important law, not, perhaps, wholly new to your own observation, which forbids a

pint-measure to contain more than a pint, though you dip it full from the ocean itself.

You are great, but not towards us Americans. Towards us you are little and insignificant and superfluous. Your eyes, though of wondrous efficacy in their way, blink in our atmosphere like those of an owl in broad sunlight; and if you come flying here, it is the privilege of the smallest birds—of which you are quite at liberty to esteem me one—to pester you back into your medieval twilight.

Shall I try to tell you why you can have no right to judge us and our affairs? By your leave, then, and briefly.

There is a spiritual nature of man, which is ever and everywhere the same; and, through the necessary presence of this in every human being, there is a common sense and a common conscience, which make each man one with all others. Here in America we are seeking to give the force of political sovereignty to this common and unitive nature,—assuming that all political problems are at last questions of simple justice, courage, good sense, and fellow-feeling, which any sound heart and healthy intelligence may appreciate.

On the other hand, there is the truth of spiritual Rank or Degree,—that one man may be immensely superior in human quality to another. This is the truth that is most powerfully present to your mind, and you would constitute government strictly, if not solely, in the light of it. To this you are impelled by the peculiar quality of your genius, which is so purely *biographical*, so inevitably drawn to special personalities, that you can hardly conceive of history otherwise than as a record of personal influence.

We assume, then, as a basis, common sense; you, uncommon sense. We assume Unity or Identity; you assume Difference, and seek to reconstitute unity only through mastership on the one hand and reverent obedience on the other. We do not deny Difference; we recognize the truth of spiritual Degree; we merely *elect the common element as the material out of which to constitute, and the force by which to operate, the State.*

Now my judgment is, that either the truth of a common Manhood or the truth of spiritual Rank may be made primary in a State, and that with

admirable results, provided it be duly allied and tempered with its opposite. For these opposites I hold to be correlative and polaric, each required by the other. But chasm is worse than indistinction; and he that breaks the circle of human fellowship is more mischievous than he who blurs the hues of gradation.

I affirm, then, that America has a grand spiritual fact at the base of her political system. But you are the prophet of an opposite order of truths. And you are so intensely the partisan of your pole, that you have not a moment's patience with anything else, above all with an opposite partiality. And wanting sympathy and patience with it, you equally want apprehension of its meaning.

But this is not all. An awful shadow accompanies the brilliant day of your genius. That dark humor of yours, that woful demon from whose companionship, by the law of your existence, you cannot be free, tolls funeral-bells and chants the dirges of death in your ears forever. What your faith does not take with warmth to its bosom it must spurn violently away; where you cannot hope strongly, you must vehemently despair; what your genius does not illumine to your heart it must bury as in shadows of eternal night. It being, therefore, of the nature of your mind to shine powerfully on the eminences of mankind, it became in consequence no less its nature to call up over the broad levels a black fog that even its own eye could not penetrate. Thus with you, if I understand you rightly, the *common* and the *fateful* are nearly one and the same; the Good is to you an exceptional energy which struggles up from the level forces of the universe. Is not your conception of human existence nearly this: a perpetual waste deluge, and here and there some Noah in his ark above it?

There is noble truth to be seen from this point of view,—truth to which America also will have to attend. But being intensely limited to this sole point of view, you are *utterly* without eye for the whole significance of our national life. You are not only *at* the opposite pole from us, but your whole heart and intelligence are *included in* the currents of that polaric opposition.

Still further. I think, that, having made out its scheme of thought, your mind soon contracts a positive demand *even for the evil conditions* which, in your estimation, made that scheme necessary. To illustrate. A man is roused at

night, and sent flying for a physician in some sudden and terrible emergency. He returns, broken-winded, to learn that it was altogether a false alarm. It is quite possible that his first emotion, on receiving this intelligence, will not be pleasure, but indignation; he may feel that somebody ought to *be* sick, since he has been at such pains. Pardon me, if I think your position not wholly dissimilar. It seems to me to have become an imperative requisition of your mind that nine-tenths of mankind should be fools. They *must* be so; else you have no place for them in your system, and know not what to do with them. As fools, you have full arrangements made for their accommodation. Some hero, some born ruler of men, is to come forth (out of your books) and reduce them to obedience, and lord it over them in a most useful manner. But if they will not be fools, if they contumaciously refuse to be fools, they disturb the necessary conditions of kingship, and, of course, deserve much reprobation. I do not, therefore, feel myself unjust to you in saying, that, the better the American people behave, *in consistency with their political traditions and customary modes of thought*, the less you are able to be pleased with them. If they demean themselves as fools and incapables, (as they sometimes do,) they bring grist to your mill; but if they show wisdom, courage, and constancy, they leave you to stand at your mill-doors and grumble for want of toll,—as in the nutshell-epic aforesaid.

Well, there are many foolish and some wise, and I, for one, could heartily wish both classes more justly placed; for he who styles me an extreme intrepid democrat pays me a compliment to which I have no claim. While, then, by "kingship" you meant something human and noble, while I could deem the command you coveted for strong and wise men to be somewhat which should *lift the weak and unwise above the range of their own force and intelligence*, I held your prophesying in high esteem, and readily pardoned any excesses of expression into which your prophetic *afflatus* (being Scotch) might betray you.

But your appetite for kingship seems to have gained in strength while it lost in delicacy and moral significance, till it has become an insatiable craving, which disdains not to batten on very vile garbage. If one rule, and another be ruled, and if the domination be open, frank, and vigorous, you seem to feast on the fact, be this domination as selfish in its nature and as brutal in its form as it may. Whether its aim be to uplift or to degrade its subjects,

whether it be clean or filthy, of heaven or of hell, a stress of generous purpose or a mere emphasis of egotism,—what pause do you make to inquire concerning this? The appearance is, that any sovereignty, in these democratic days, is over-welcome to your hunger to admit of pause; and a rule, whose undisguised aim is, not to supplement the strength of the weak, but to pillage them of its product, not to lend the ignorant a wisdom above their own, but to make their ignorance perpetual as a source of pecuniary profit to their masters, may reckon upon your succors whenever succors are needed.

Hence your patronage of our slavery. Hence your effort to commend it by a description so incomparably false, that, though one should laugh derision at it from Christmas to Candlemas, he would not laugh enough. "Hiring servants for life,"—that is the most intrepid *lucus a non lucendo* of the century. It fairly takes one's breath away. It is stunning, ravishing. One can but cry, on recovering his wind,—Hear, O Caucus, and give ear, O Mock-Auction! ye railway Hudsons, tricksters, impostors, ye demagogues that love the people in stump-speeches at \$—— per year, ye hired bravos of the bar that stab justice in the dark, ye Jesuit priests that "lie for God," listen all, and learn how to do it! What are your timid devices, compared with this of benumbing your adversary at the start by an outright electric shock of untruth? But a man must be supported by a powerful sense of sincerity to be capable of a statement so royally false that the truth itself shall look tame and rustic beside it.

You have spoken ill of a certain sort of German metaphysic; but I perceive that you have now become a convert to it. The final *arcanum* of that, I think, is, Something = Nothing. You give this abstraction a concrete form; your axiom is, No Hire = Hire for Life. To deny that laborers have any property in their own toil, and to allow them their poor peck of maize and pound of bacon per week, not at all as a wage for their work, but solely as a means of converting corn into cotton, and cotton into seats in Congress and summers at Saratoga,—that, according to the Chelsea metaphysic, is "hiring them for life"! To deny laborers any legal *status* as persons, and any social *status* as human souls,—to give them fodder for food, and pens for homes,—to withhold from them the school, the table, and the sanctities of marriage,—if that is not "hiring them for life," what is it? To affirm, by consistent practice, that no spiritual, no human value appertains to the life

of laboring men and women,—to rate them in their very persons as commercial values, measuring the virtue of their existence with coin, as cloths are measured with a yardstick,—this, we all see, is "hiring them for life"! To take from women the LEGAL RIGHT to be chaste,—to make it a *capital offence* for a woman of the laboring caste to defend her own person by blows, for any "husband" or father of the laboring caste to defend wife or daughter with blows, against the lust of another caste, and, having made them thus helpless before outrage, to close the judicial tribunals against their testimony, and refuse them the faintest show of redress,—truly, it is very kind of you to let us know that this is the simplest piece of "hiring for life," for without that charitable assistance the fact would surely have eluded our discovery. How could we have found it out without your assistance, when, after that aid has been rendered, the fact continues to seem so utterly otherwise as to reflect even upon your generous information the colors of an unexampled untruth?

No-Hire + Dehumanization of the Laborer = Life-Hire? We never should have dreamt of it!

Within the past year, a document has come into my hands which they may thank their stars who are not required to see. It is the private diary of a most eminent and respectable slaveholder, recently dead. The chances of war threw it into the hands of our troops, and the virtue of a noble surgeon rescued it from defiling uses, and sent it to me, as one whose duty bound him to know the worst. Of its authenticity there is not a shadow of question. And such a record of pollution,—of wallowing, to which the foulness of swine is as the life of honey-bees harboring in the bosoms of roses,—I deliberately suppose can never have got into black and white before. Save in general terms, I can hardly speak of it; but one item I must have the courage to suggest more definitely. Having bidden a young slave-girl (whose name, age, color, etc., with the shameless precision that marks the entire document, are given) to attend upon his brutal pleasure, and she silently remaining away, he writes,—"Next morning ordered her a dozen lashes for disobedience."^[7] For disobedience, observe! She had been "hired for life"; the great Carlyle had witnessed the bargain; and behold, she has broken the contract! She must be punished; Mr. Carlyle and his co-cultivator of the virtue of obedience (*par nobile fratrum*) will see to it that she is duly punished. She shall go to the whipping-post, this disobedient

virgin; she shall have twelve lashes, (for the Chelsea gods are severe, and know the use of "beneficent whip,")—twelve lashes on the naked person,—blows with the terrible slave-whip, beneath which the skin purples in long, winding lines, then breaks and gushes into spirts of red blood, and afterwards cicatrizes into perpetual scars; for disobedience is an immorality not to be overlooked!

Yes, Thomas Carlyle, I hold you a party to these crimes. *You*, YOU are the brutal old man who would flog virgins into prostitution. You approve the system; you volunteer your best varnish in its commendation; and this is an inseparable and *legal* part of it. Legal, I say,—legal, and not destructive of respectability. That is the point. In ordering such lashes, that ancient miscreant (for old he already was) neither violated any syllable of the slave-code, nor forfeited his social position. He was punishing "disobedience"; he was administering "justice"; he was illustrating the "rights of property"; he was using the lawful "privileges of gentlemen."

No doubt, deeds of equal infamy are done in the dens of New York. But in New York they *are* infamous. In New York they are indeed done in *dens*, by felons who flee the eye of the policeman,—unless, to be sure, the police have been appointed by a certain *alter ego* of yours in negro-hatred, whilom chief magistrate and disgrace of that unfortunate city. But under your life-service *régime* things are managed in a more enlightened way. There they who have liberty—and *sometimes* use the liberty—to torture women into beastly submissions, do not hide from the laws, they make the laws. There such a personage as the one mentioned may be a *gentleman*, a man of high standing," one of the most respectable men in the State" (Florida).

And this, just *this*,—for surely you will not be a coward, and dodge consequences,—you name a scheme of life-hire. This you esteem so much superior to our democratic way of holding each man and woman to be the shrine of rights which have an infinite sanctity, and of adjudging it the chief duty of the State to annex to these rights the requisite force for their practical assertion.

Is it, then, You, or is it some burglarious Devil that has broken into your bosom and stolen your soul, who is engaged in plastering over this infernal fester with smooth euphemisms? Are You verily the mechanic who is

engaged in veneering these out-houses of hell with rosewood? Is it your very and proper Self that stands there sprinkling *eau-de-Cologne* on the accursed reek of that pit of putrescence, so to disguise and commend it to the nostrils of mankind? Is it in very deed Thomas Carlyle, Thomas the Great, who now volunteers his services as male lady's-maid to the queen-strumpet of modern history, and offers to her sceptred foulness the benefit of his skill at the literary rouge-pots? You? Yes? I give you joy of your avocations! Truly, it was worth the while, having such a cause, to defame a noble people in the very hour of their life-and-death struggle!

Well, you have made your election; now I make mine. It is my deliberate belief that no man ever gave heartier love and homage to another than I to you; but while one woman in America may be *lawfully* sent to the whipping-post on such occasion, I will hold your existence and name, if they come between me and her rescue, but as the life of a stinging gnat! I love you,—but cannot quite sacrifice to you the sanctity of womanhood, and all the honor and all the high hopes of a great nation. Your scheme of "life-hire" will therefore have to undergo very essential modifications, such as will not only alter, but *reverse*, its most characteristic features, before I can esteem either it or the advocacy of it anything less than abominable.

But where are you now with relation to that Thomas Carlyle whose "Sartor Resartus" I read twenty years ago afoot and on horseback, sleeping with it under my pillow and wearing it in my pocket till pocket and it were worn out,—I alone there in the remote solitudes of Maine? We have both travelled far since then; but whither have you been travelling? The whole wide heaven was not too wide for you then; but now you can be jolly in your "nutshell." Then, you held spiritual, or human, values to be final, infinite, absolute, and could gibe in your own incomparable way at the besotted conventionalism which would place commercial values above them; now, who chants with such a roaring, pious nasal at that apotheosis of Property which our modern commercial slavery essentially is? Then, with Schiller, you desired, as a basis of political society, something better than a doctrine of personal *rights*, something more noble, human, unitary, something more opposed to egoistic self-assertion, namely, a doctrine of *powers* and their consequent *duties*; now, a scheme of society which is the merest riot or insurrection of property-egotism reckons you among its chiefest advocates. Then, you struck heroically out for a society more

adequate to the spiritual possibilities of man; now, social infidelity *plus* cotton and polite dining would seem to suffice for you.

Ah, Heaven! is anything sadder than to see a grand imperial soul, long worthy and secure of all love and honor, at length committing suicide, not by dying, but by living? Ill it is when they that do deepest homage to a great spirit can no longer pray for the increase of his days; when there arises in their hearts a pleasure in the growing number of his years expressly as these constitute a deduction from the unknown sum total of those which have been appointed him; and when the utmost bravery of their affection must breathe, not *Serus*, but *CITO in cadum redeas!* O royal Lear of our literature, who have spurned from your love the dearest daughter of your thought, is it only left us to say, "How friendly is Death,—Death, who restores us to free relations with the whole, when our own fierce partialities have imprisoned and bound us hand and foot"?

Royal you are, royal in pity as in purpose; and you have done, nay, I trust may still be doing, imperishable work. If only you did not hate democracy so bitterly as to be perpetually prostrated by the recoil of your own gun! Right or wrong in its inception, this aversion has now become a chronic ailment, which drains insatiably at the fountains of your spiritual force. I offer you the suggestion; I can do no more.

To have lost, in the hour of our trial, the fellowship of yourself, and of others in England whom we most delighted to honor, is a loss indeed. Yet we grieve a thousand times more for you than for ourselves; and are not absorbed in any grief. It is clear to us that the Eternal Providence has assigned us our tasks, not by your advice, nor by vote of Parliament,—astonishing to sundry as that may seem. Your opinion of the matter we hold, therefore, to be quite beside the matter; and drivell, like that of your nutshell-epic, by no means tends to make us wish that Providence had acted upon European counsel rather than upon His Own! Moreover, we are *very* busy in these days, and can have small eye to the by-standers. We are busy, and are likely to be so long; for the peace that succeeds to such a war will be as dangerous and arduous as the war itself. We have as little time, therefore, to grieve as to brag or bluster; we must work. We neither solicit nor repel your sympathy; we must work,—work straight on, and let all that be as it can be.

We seek not to conceal even from *you* that our democracy has great weaknesses, as well as great strength. Mean, mercenary, and stolid men are not found in England alone; they are ominously abundant here also. We have lunatic radicalisms as well as sane, idiotic conservatisms as well as intelligent. Too much for safety, our politics are purulent, our good men over-apt to forget the objects of government in a besotted devotion to the form. It is possible we may yet discover that universal suffrage can be a trifle too universal,—that it should pause a *little* short of the state-prison. New York must see to it that the thief does not patronize the judge, and sit in the prisoner's box as on the bench of a higher court. Our democracy has somewhat to learn; it *knows* that it has somewhat to learn, and says cheerfully, "What is the use of living without learning?"

What can we do but meet the future with an open intelligence and a stout heart? And this I say,—I, who am almost an extreme dissenter from extreme democracy,—if our people bring to all future emergencies those qualities of earnestness, courage, and constancy which they have thus far contributed to the present, they will disgrace neither themselves nor their institutions; and it will be their honor more than once to extort some betrayal of dissatisfaction from those who, like yourself, are happiest to see a democracy behaving, not well, but ill.

"Peter of the North," then, has made up his mind. He is resolved on having three things:—

First, a government; a real government; a government not to be whistled down the wind by any jack (or Jeff) who chooses to secede: a government that will not dawdle with hands in pockets while this continent is converted into a maggot-swarm of ten-acre empires;

Secondly, a government whose purpose, so far as it can act, shall be to forward every man on the path of his proper humanity;

Thirdly, a government constituted and operated, so far as shall finally prove possible, by the common intelligence and common conscience of the whole people.

This is Peter's business at present: he is intently minding his business; and has been heard to mutter in his breast that "it might be as well if others did

the same." What "others," pray?

VOLUNTARIES.

I.

Low and mournful be the strain,
Haughty thought be far from me;
Tones of penitence and pain,
Moanings of the Tropic sea;
Low and tender in the cell
Where a captive sits in chains,
Crooning ditties treasured well
From his Afric's torrid plains.
Sole estate his sire bequeathed—
Hapless sire to hapless son—
Was the wailing song he breathed,
And his chain when life was done.

What his fault, or what his crime?
Or what ill planet crossed his prime?
Heart too soft and will too weak
To front the fate that crouches near,—
Dove beneath the vulture's beak;—
Will song dissuade the thirsty spear?
Dragged from his mother's arms and breast,
Displaced, disfurnished here,
His wistful toil to do his best
Chilled by a ribald jeer.
Great men in the Senate sate,
Sage and hero, side by side,
Building for their sons the State,
Which they shall rule with pride.
They forbore to break the chain
Which bound the dusky tribe,
Checked by the owners' fierce disdain,
Lured by "Union" as the bribe.

Destiny sat by, and said,
"Pang for pang your seed shall pay,
Hide in false peace your coward head,
I bring round the harvest-day."

II.

Freedom all winged expands,
Nor perches in a narrow place,
Her broad van seeks unplanted lands,
She loves a poor and virtuous race.
Clinging to the colder zone
Whose dark sky sheds the snow-flake down,
The snow-flake is her banner's star,
Her stripes the boreal streamers are.
Long she loved the Northman well;
Now the iron age is done,
She will not refuse to dwell
With the offspring of the Sun
Foundling of the desert far,
Where palms plume and siroccos blaze,
He roves unhurt the burning ways
In climates of the summer star.
He has avenues to God
Hid from men of northern brain,
Far beholding, without cloud,
What these with slowest steps attain.
If once the generous chief arrive
To lead him willing to be led,
For freedom he will strike and strive,
And drain his heart till he be dead.

III.

In an age of fops and toys,
Wanting wisdom, void of right,
Who shall nerve heroic boys
To hazard all in Freedom's fight,—

Break sharply off their jolly games,
Forsake; their comrades gay,
And quit proud homes and youthful dames,
For famine, toil, and fray?
Yet on the nimble air benign
Speed nimbler messages,
That waft the breath of grace divine
To hearts in sloth and ease.
So nigh is grandeur to our dust,
So near is God to man,
When Duty whispers low, *Thou must*,
The youth replies, *I can*.

IV.

Oh, well for the fortunate soul
Which Music's wings infold,
Stealing away the memory
Of sorrows new and old!

Yet happier he whose inward sight,
Stayed on his subtile thought,
Shuts his sense on toys of time,
To vacant bosoms brought.
But best befriended of the God
He who, in evil times,
Warned by an inward voice,
Heeds not the darkness and the dread,
Biding by his rule and choice,
Feeling only the fiery thread
Leading over heroic ground,
Walled with mortal terror round,
To the aim which him allures,
And the sweet heaven his deed secures.

Stainless soldier on the walls,
Knowing this,—and knows no more,—
Whoever fights, whoever falls,

Justice conquers evermore,
Justice after as before,—
And he who battles on her side,
—God—though he were ten times slain—
Crowns him victor glorified,
Victor over death and pain;
Forever: but his erring foe,
Self-assured that he prevails,
Looks from his victim lying low,
And sees aloft the red right arm
Redress the eternal scales.
He, the poor foe, whom angels foil,
Blind with pride, and fooled by hate,
Writhes within the dragon coil,
Reserved to a speechless fate.

V.

Blooms the laurel which belongs
To the valiant chief who fights;
I see the wreath, I hear the songs
Lauding the Eternal Rights,
Victors over daily wrongs:
Awful victors, they misguide
Whom they will destroy,
And their coming triumph hide
In our downfall, or our joy:
Speak it firmly,—these are gods,
All are ghosts beside.

OUR DOMESTIC RELATIONS;

OR, HOW TO TREAT THE REBEL STATES.

At this moment our Domestic Relations all hinge upon one question: *How to treat, the Rebel States?* No patriot citizen doubts the triumph of our arms in the suppression of the Rebellion. Early or late, this triumph is inevitable. It may be by a sudden collapse of the bloody imposture, or it may be by a slower and more gradual surrender. For ourselves, we are prepared for either alternative, and shall not be disappointed, if we are constrained to wait yet a little longer. But when the day of triumph comes, political duties will take the place of military. The victory won by our soldiers must be assuredly wise counsels, so that its hard-earned fruits may not be lost.

The relations of the States to the National Government must be carefully considered,—not too boldly, not too timidly,—in order to see in what way, or by what process, *the transition from Rebel forms may be most surely accomplished.* If I do not greatly err, it will be found that the powers of Congress, which have thus far been so effective in raising armies and in supplying moneys, will be important, if not essential, in fixing the conditions of perpetual peace. But there is one point on which there can be no question. The dogma and delusion of State Rights, which did so much for the Rebellion, must not be allowed to neutralize all that our arms have gained.

Already, in a remarkable instance, the President has treated the pretension of State Rights with proper indifference. Quietly and without much discussion, he has constituted military governments in the Rebel States, with governors nominated by himself,—all of which testifies against the old pretension. Strange will it be, if this extraordinary power, amply conceded to the President, is denied to Congress. Practically the whole question with which I began is opened here. Therefore to this aspect of it I ask your first attention.

CONGRESSIONAL GOVERNMENT vs.. MILITARY GOVERNMENT.

Four military governors have been already appointed: one for Tennessee, one for South Carolina, one for North Carolina, and the other for Louisiana. So far as is known, the appointment of each was by a simple letter from the Secretary of War. But if this can be done in four States, where is the limit? It may be done in every Rebel State, and if not in every other State of the Union, it will be simply because the existence of a valid State government excludes the exercise of this extraordinary power. But assuming, that, as our arms prevail, it will be done in every Rebel State, we shall then have *eleven* military governors, all deriving their authority from one source, ruling a population amounting to upwards of nine millions. And this imperial dominion, indefinite in extent, will also be indefinite in duration; for if, under the Constitution and laws, it be proper to constitute such governors, it is clear that they may be continued without regard to time,—for years, if you please, as well as for weeks,—and the whole region which they are called to sway will be a military empire, with all powers, executive, legislative, and even judicial, derived from one man in Washington. Talk of the "one-man power." Here it is with a vengeance. Talk of military rule. Here it is, in the name of a republic.

The bare statement of this case may put us on our guard. We may well hesitate to organize a single State under a military government, when we see where such a step will lead. If you approve one, you must approve all, and the National Government may crystallize into a military despotism.

In appointing military governors of States, we follow an approved example in certain cases beyond the jurisdiction of our Constitution, as in California and Mexico after their conquest and before peace. It is evident that in these cases there was no constraint from the Constitution, and we were perfectly free to act according to the assumed exigency. It may be proper to set up military governors for a conquered country beyond our civil jurisdiction, and yet it may be questionable if we should undertake to set up such governors in States which we all claim to be within our civil jurisdiction. At all events, the two cases are different, so that it is not easy to argue from one to the other.

In Jefferson's Inaugural Address, where he develops what he calls "the essential principles of our government, and consequently those which ought to shape its administration," he mentions "*the supremacy of the civil over*

the military authority" as one of these "essential principles," and then says:

"These should be the creed of our political faith,—the text of civil instruction,—the touchstone by which to try the services of those we trust; and should we wander from them in moments of error or alarm, let us hasten to retrace our steps, and to regain the road which alone leads to peace, liberty, and safety."

In undertaking to create military governors of States, we reverse the policy of the republic, as solemnly declared by Jefferson, and subject the civil to the military authority. If this has been done, in patriotic ardor, without due consideration, in a moment of error or alarm, it only remains, that, according to Jefferson, we should "hasten to retrace our steps, and to regain the road which alone leads to peace, liberty, and safety."

There is nothing new under the sun, and the military governors whom we are beginning to appoint find a prototype in the Protectorate of Oliver Cromwell. After the execution of the King and the establishment of the Commonwealth, the Protector conceived the idea of parcelling the kingdom into military districts, of which there were *eleven*,—being precisely the number which it is now proposed, under the favor of success, to establish among us. Of this system a great authority, Mr. Hallam, in his "Constitutional History of England," speaks thus:—

"To govern according to law may sometimes be an usurper's wish, but can seldom be in his power. The Protector abandoned all thought of it. Dividing the kingdom into districts, he placed at the head of each a major-general, as *a sort of military magistrate*, responsible for the subjection of his prefecture. These were *eleven in number*, men bitterly hostile to the Royalist party, and insolent towards all civil authority."^[8]

Carlyle, in his "Life of Cromwell," gives the following glimpse of this military government:—

"The beginning of a universal scheme of major-generals: the Lord-Protector and his Council of State having well considered and found it the feasiblest, —'if not *good*, yet best.' 'It is an arbitrary government,' murmur many. Yes, arbitrary, but beneficial. *These are powers unknown to the English*

Constitution, I believe; but they are very necessary for the Puritan English nation at this time."^[9]

Perhaps no better words could be found in explanation of the Cromwellian policy adopted by our President.

A contemporary Royalist, Colonel Ludlow, whose "Memoirs" add to our authentic history of those interesting times, characterizes these military magistrates as so many "bashaws." Here are some of his words:—

"The major-generals carried things with unheard-of insolence in their several precincts, decimating to extremity whom they pleased, and interrupting the proceedings at law upon petitions of those who pretended themselves aggrieved, *threatening such as would not yield a manly submission to their orders with transportation to Jamaica or some other plantation in the West Indies.*"^[10]

Again, says the same contemporary writer:—

"There were sometimes bitter reflections cast upon the proceedings of the major-generals by the lawyers and country-gentlemen, who accused them to have done many things oppressive to the people, in interrupting the course of the law, and *threatening such as would not submit to their arbitrary orders with transportation beyond the seas.*"^[11]

At last, even Cromwell, at the height of his power, found it necessary to abandon the policy of military governors. He authorized his son-in-law, Mr. Claypole, to announce in Parliament, "that he had formerly thought it necessary, in respect to the condition in which the nation had been, that the major-generals should be intrusted with the authority which they had exercised; but in the present state of affairs he conceived it inconsistent with the laws of England and liberties of the people to continue their power any longer."^[12]

The conduct of at least one of our military magistrates seems to have been a counterpart to that of these "bashaws" of Cromwell; and there is no argument against that early military despotism which may not be urged against any attempt to revive it in our day. Some of the acts of Governor

Stanley in North Carolina are in themselves an argument against the whole system.

It is clear that these military magistrates are without any direct sanction in the Constitution or in existing laws. They are not even "major-generals," or other military officers, charged with the duty of enforcing martial law; but they are special creations of the Secretary of War, acting under the President, and charged with universal powers. As governors within the limits of a State, they obviously assume the extinction of the old State governments for which they are substituted; and the President, in appointing them, assumes a power over these States kindred to his acknowledged power over Territories of the Union; but, in appointing governors for Territories, he acts in pursuance of the Constitution and laws, by and with the advice and consent of the Senate.

That the President should assume the vacation of the State governments is of itself no argument against the creation of military governors; for it is simply the assumption of an unquestionable fact. But if it be true that the State governments have ceased to exist, then the way is prepared for the establishment of provisional governments by Congress. In short, if a new government is to be supplied, it should be supplied by Congress rather than by the President, and it should be according to established law rather than according to the mere will of any functionary, to the end that ours may be a government of laws and not of men.

There is no argument for military governors which is not equally strong for Congressional governments, while the latter have in their favor two controlling considerations: first, that they proceed from the civil rather than the military power; and, secondly, that they are created by law. Therefore, in considering whether Congressional governments should be constituted, I begin the discussion by assuming everything in their favor which is already accorded to the other system. I should not do this, if the system of military dictators were not now recognized, so that the question is sharply presented, which of the two to choose. Even if provisional governments by Congress are not constitutional, it does not follow that military governments, without the sanction of Congress, can be constitutional. But, on the other hand, I cannot doubt, that, if military governments are constitutional, then, surely, the provisional governments by Congress must be so also. In truth, there

can be no opening for military governments which is not also an opening for Congressional governments, with this great advantage for the latter, that they are in harmony with our institutions, which favor the civil rather than the military power.

In thus declaring an unhesitating preference for Congressional governments, I am obviously sustained by reason. But there is positive authority on this identical question. I refer to the recorded opinion of Chancellor Kent, as follows:—

"Though the Constitution vests the executive power in the President, and declares him Commander-in-Chief of the army and navy of the United States, *these powers must necessarily be subordinate to the legislative power in Congress*. It would appear to me to be the policy or true construction of this simple and general grant of power to the President, not to suffer it to interfere with those specific powers of Congress which are more safely deposited in the legislative department, and that *the powers thus assumed by the President do not belong to him, but to Congress*."^[13]

Such is the weighty testimony of this illustrious master with regard to the assumption of power by the President, in 1847, over the Mexican ports in our possession. It will be found in the latest edition of his "Commentaries" published during the author's life. Of course, it is equally applicable to the recent assumptions within our own territory. His judgment is clear in favor of Congressional governments.

Of course, in ordinary times, and under ordinary circumstances, neither system of government would be valid. A State, in the full enjoyment of its rights, would spurn a military governor or a Congressional governor. It would insist that its governor should be neither military nor Congressional, but such as its own people chose to elect; and nobody would question this right. The President does not think of sending a military governor to New York; nor does Congress think of establishing a provisional government in that State. It is only with regard to the Rebel States that this question arises. The occasion, then, for the exercise of this extraordinary power is found in the Rebellion. Without the Rebellion, there would be no talk of any governor, whether military or Congressional.

STATE RIGHTS.

And here it becomes important to consider the operation of the Rebellion in opening the way to this question. To this end we must understand the relations between the States and the National Government, under the Constitution of the United States. As I approach this question of singular delicacy, let me say on the threshold, that for all those rights of the States which are consistent with the peace, security, and permanence of the Union, according to the objects grandly announced in the Preamble of the Constitution, I am the strenuous advocate, at all times and places. Never through any word or act of mine shall those rights be impaired; nor shall any of those other rights be called in question by which the States are held in harmonious relations as well with each other as with the Union. But while thus strenuous for all that justly belongs to the States, I cannot concede to them immunities inconsistent with that Constitution which is the supreme law of the land; nor can I admit the impeccability of States.

From a period even anterior to the Federal Constitution there has been a perverse pretension of State Rights, which has perpetually interfered with the unity of our government. Throughout the Revolution this pretension was a check upon the powers of Congress, whether in respect to its armies or its finances; so that it was too often constrained to content itself with the language of advice or persuasion rather than of command. By the Declaration of Independence it was solemnly declared that "these United Colonies are, and of right ought to be, free and independent *States*, and that, as such, they have full powers to levy war, to contract alliances, to establish commerce, and to do all other acts which independent *States* may of right do." Thus by this original charter the early colonies were changed into independent States, under whose protection the liberties of the country were placed.

Early steps were taken to supply the deficiencies of this government, which was effective only through the generous patriotism of the people. In July, 1778, two years after the Declaration, Articles of Confederation were framed, but they were not completely ratified by all the States till March, 1781. The character of this new government, which assumed the style of "The United States of America," will appear in the title of these Articles, which was as follows:—"Articles of Confederation and Perpetual Union *between the States* of New Hampshire, Massachusetts Bay, Rhode Island and Providence Plantations, Connecticut, New York, New Jersey,

Pennsylvania, Delaware, Maryland, Virginia, North Carolina, South Carolina, and Georgia." By the second article it was declared, that "*each State retains its sovereignty*, freedom, and independence, and every power, jurisdiction, and right which is not by this Confederation expressly delegated to the United States in Congress assembled." By the third article it was further declared, that "the said *States* hereby severally enter into a *firm league* of friendship with each other, for their common defence, the security of their liberties, and their mutual and general welfare." By another article, a "committee of the *States*, or any nine of them," was authorized in the recess to execute the powers of Congress. The government thus constituted was a compact between *sovereign States*,—or, according to its precise language, "a firm league of friendship" between *these States*, administered, in the recess of Congress, by a "committee of *the States*." Thus did State Rights triumph.

But its imbecility from this pretension soon became apparent. As early as December, 1782, a committee of Congress made an elaborate report on the refusal of Rhode Island, one of the States, to confer certain powers on Congress with regard to revenue and commerce. In April, 1783, an address of Congress to *the States* was put forth, appealing to their justice and plighted faith, and representing the consequence of a failure on their part to sustain the Government and provide for its wants. In April, 1784, a similar appeal was made to what were called "the several States," whose legislatures were recommended to vest "the United States in Congress assembled" with certain powers. In July, 1785, a committee of Congress made another elaborate report on the reason why the States should confer upon Congress powers therein enumerated, in the course of which it was urged, that, "unless *the States* act together, there is no plan of policy into which they can separately enter, which they will not be separately interested to defeat, and, of course, all their measures must prove vain and abortive." In February and March, 1786, there were two other reports of committees of Congress, exhibiting the failure of *the States* to comply with the requisitions of Congress, and the necessity for a complete accession of *all the States* to the revenue system. In October, 1786, there was still another report, most earnestly renewing the former appeals to *the States*. Nothing could be more urgent.

As early as July, 1782, even before the first report to Congress, resolutions were adopted by the State of New York, declaring "that the situation of *these States* is in a peculiar manner critical," and "that the radical source of most of our embarrassments is *the want of sufficient power in Congress* to effectuate that ready and perfect cooperation of *the different States* on which their immediate safety and future happiness depend." Finally, in September, 1786, at Annapolis, commissioners from several States, after declaring "the situation of the United States delicate and critical, calling for an exertion of the united virtue and wisdom of all the members of the Confederacy," recommended the meeting of a Convention "to devise such further provision as shall appear necessary to render the Constitution of the Federal Government adequate to the exigencies of the Union." In pursuance of this recommendation, the Congress of the Confederation proposed a Convention "for the purpose of revising the Articles of Confederation and Perpetual Union between the United States of America, and reporting such alterations and amendments of the said Articles of Confederation as the representatives met in such Convention shall judge proper and necessary to render them adequate to the preservation and support of the Union."

In pursuance of the call, delegates to the proposed Convention were duly appointed by the legislatures of the several States, and the Convention assembled at Philadelphia in May, 1787. The present Constitution was the well-ripened fruit of their deliberations. In transmitting it to Congress, General Washington, who was the President of the Convention, in a letter bearing date September 17, 1787, made use of this instructive language:—

"It is obviously impracticable in the Federal Government of *these States* to secure *all rights of independent sovereignty to each*, and yet provide for the interest and safety of all. Individuals entering into society must give up a share of liberty to preserve the rest. The magnitude of the sacrifice must depend as well on situation and circumstance as on the object to be obtained. It is at all times difficult to draw with precision the line between those rights which must be surrendered and those which may be reserved; and on the present occasion this difficulty will be increased by a difference *among the several States* as to their situation, extent, habits, and particular interests. In all our deliberations we kept steadily in view that

which appears to us the greatest interest of every true American,
—THE CONSOLIDATION OF OUR UNION,—in which is
involved our prosperity, safety, perhaps our national existence.

"GEORGE WASHINGTON."

The Constitution was duly transmitted by Congress to the several legislatures, by which it was submitted to conventions of delegates "chosen in each State by the people thereof," who ratified the same. Afterwards, Congress, by resolution, dated September 13, 1788, setting forth that the Convention had reported "*a Constitution for the people of the United States*" which had been duly ratified, proceeded to authorize the necessary elections under the new government.

The Constitution, it will be seen, was framed in order to remove the difficulties arising from *State Rights*. So paramount was this purpose, that, according to the letter of Washington, it was kept steadily in view in all the deliberations of the Convention, which did not hesitate to declare *the consolidation of our Union* as essential to our prosperity, safety, and perhaps our national existence.

The unity of the government was expressed in the term "Constitution," instead of "Articles of Confederation between the States," and in the idea of "a more perfect union," instead of a "league of friendship." It was also announced emphatically in the Preamble:—

"*We, the people of the United States, in order to form a more perfect union, establish justice, insure domestic tranquillity, provide for the common defence, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity, do ordain and establish this Constitution for the United States of America.*"

Not "we, the States," but "we, the people of the United States." Such is the beginning and origin of our Constitution. Here is no compact or league between States, involving the recognition of State rights; but a government ordained and established by the people of the United States for themselves and their posterity. This government is not established *by the States*, nor is it established *for the States*; but it is established *by the people*, for themselves and their posterity. It is true, that, in the organization of the government, the

existence of the States is recognized, and the original name of "United States" is preserved; but the sovereignty of the States is absorbed in that more perfect union which was then established. There is but one sovereignty recognized, and this is the sovereignty of the United States. To the several States is left that special local control which is essential to the convenience and business of life, while to the United States, as a *Plural Unit*, is allotted that commanding sovereignty which embraces and holds the whole country within its perpetual and irreversible jurisdiction.

This obvious character of the Constitution did not pass unobserved at the time of its adoption. Indeed the Constitution was most strenuously opposed on the ground that the States were absorbed in the Nation. Patrick Henry protested against consolidated power. In the debates of the Virginia Convention he exclaimed:—

"And here I would make this inquiry of those worthy characters who composed a part of the late Federal Convention. I am sure they were fully impressed with the necessity of forming a great consolidated government, instead of a confederation. *That this is a consolidated government is demonstrably clear*; and the danger of such a government is to my mind very striking. I have the highest veneration for those gentlemen; but, Sir, give me leave to demand, What right had they to say, '*We, the people*'? Who authorized them to speak the language of '*We, the people*,' instead of '*We, the States*'?"^[14]

And again, at another stage of the debate, the same patriotic opponent of the Constitution declared succinctly:—

"The question turns, Sir, on that poor little thing, the expression, '*We, the people*,' instead of *the States* of America."^[15]

In the same convention another patriotic opponent of the Constitution, George Mason, following Patrick Henry, said:—

"Whether the Constitution is good or bad, the present clause clearly discovers that it is a National Government, and no longer a Confederation."^[16]

But against all this opposition, and in the face of this exposure, the Constitution was adopted, in the name of the people of the United States. Much, indeed, was left to the States; but it was no longer in their name that the government was organized, while the miserable pretension of State "sovereignty" was discarded. Even in the discussions of the Federal Convention Mr. Madison spoke thus plainly:—

"Some contend that States are *sovereign*, when, in fact, they are only political societies. The States never possessed the essential rights of sovereignty. These were always vested in Congress."

Grave words, especially when we consider the position of their author. They were substantially echoed by Elbridge Gerry of Massachusetts, afterwards Vice-President, who said:—

"It appears to me that the States never were independent. They had only corporate rights."

Better words still fell from Mr. Wilson of Pennsylvania, known afterwards as a learned judge of the Supreme Court, and also for his Lectures on Law:—

"Will a regard to State rights justify the sacrifice of the rights of men? If we proceed on any other foundation than the last, our building will neither be solid or lasting."

The argument was unanswerable then. It is unanswerable now. Do not elevate the sovereignty of the States against the Constitution of the United States. It is hardly less odious than the early pretension of sovereign power against Magna Charta, according to the memorable words of Lord Coke, as recorded by Rushworth:—

"Sovereign power is no Parliamentary word. In my opinion, it weakens Magna Charta and all our statutes; for they are absolute without any saving of sovereign power. And shall we now add it, we shall weaken the foundation of law, and then the building must needs fall. Take we heed what we yield unto. *Magna Charta is such a fellow that he will have no sovereign.*"^[17]

But the Constitution is our Magna Charta, which can bear no sovereign but itself, as you will see at once, if you will consider its character. And this practical truth was recognized at its formation, as may be seen in the writings of our Rushworth,—I refer to Nathan Dane, who was a member of Congress under the Confederation. He tells us plainly, that the terms "sovereign States," "State sovereignty," "State rights," "rights of States," are not "constitutional expressions."

POWERS OF CONGRESS.

In the exercise of its sovereignty Congress is intrusted with large and peculiar powers. Take notice of them, and you will see how little of "sovereignty" is left to the States. Their simple enumeration is an argument against the pretension of State Rights. Congress may lay and collect taxes, duties, imposts, and excises, to pay the debts and *provide for the common defence and general welfare of the United States*. It may borrow money on the credit of the United States; regulate commerce with foreign nations, and *among the several States*, and with the Indian tribes; establish a uniform rule of naturalization, and uniform laws on the subject of bankruptcy, *throughout the United States*; coin money, regulate the value thereof, and fix the standard of weights and measures; establish post-offices and post-roads; promote the progress of science and the useful arts by securing for limited times to authors and inventors the exclusive right to their respective writings and discoveries; define and punish piracies and felonies committed on the high seas, and offences against the law of nations; declare war; grant letters of marque and reprisal; make rules concerning captures on land and water; raise and support armies; provide and maintain a navy; make rules for the government and regulation of the land and naval forces; provide for calling forth the militia to execute *the laws of the Union*, suppress insurrections, and repel invasions; provide for organizing, arming, and disciplining the militia, and for governing such part of them as may be employed in the service of the United States, reserving to the States respectively the appointment of officers and the authority of training the militia *according to the discipline prescribed by Congress*; and make all laws necessary and proper for carrying into execution the foregoing powers and all other powers vested in the Government of the United States.

Such are the ample and diversified powers of Congress, embracing all those powers which enter into sovereignty. With the concession of these to the United States there seems to be little left for the several States. In the power to "declare war" and to "raise and support armies," Congress possesses an exclusive power, in itself immense and infinite, over persons and property in the several States, while by the power to "regulate commerce" it may put limits round about the business of the several States. And even in the case of the militia, which is the original military organization of the people, nothing is left to the States except "the appointment of the officers," and the authority to train it "according to the discipline *prescribed by Congress*." It is thus that these great agencies are all intrusted to the United States, while the several States are subordinated to their exercise.

Constantly, and in everything, we behold the constitutional subordination of the States. But there are other provisions by which the States are expressly deprived of important powers. For instance: "No State shall enter into any treaty, alliance, or confederation; coin money; emit bills of credit; make anything but gold and silver coin a tender in payment of debts." Or, if the States may exercise certain powers, it is only with the consent of Congress. For instance: "No State shall, *without the consent of Congress*, lay any duty of tonnage, keep troops or ships of war in time of peace, enter into any agreement or compact with another State or with a foreign power." Here is a magistral power accorded to Congress, utterly inconsistent with the pretensions of State Rights. Then, again: "No State shall, *without the consent of the Congress*, lay any imposts or duties on imports or exports, except what may be absolutely necessary for executing its inspection laws; and the net produce of all duties and imposts laid by any State on imports or exports shall be for the use of the treasury of the United States; *and all such laws shall be subject to the revision and control of the Congress*." Here, again, is a similar magistral power accorded to Congress, and, as if still further to deprive the States of their much vaunted sovereignty, the laws which they make with the consent of Congress are expressly declared to be subject "to the revision and control of the Congress." But there is another instance still. According to the Constitution, "Full faith and credit shall be given in each State to the public acts, records, and judicial proceedings of every other State": but here mark the controlling power of Congress, which

is authorized to "prescribe the manner in which such acts, records, and proceedings shall be proved, and the effect thereof."

SUPREMACY OF THE NATIONAL GOVERNMENT.

But there are five other provisions of the Constitution by which its supremacy is positively established. 1. "The citizens of each State shall be entitled to all privileges and immunities of citizens in the several States." As Congress has the exclusive power to establish "an uniform rule of naturalization," it may, under these words of the Constitution, secure for its newly entitled citizens "all privileges and immunities of citizens in the several States," in defiance of State Rights. 2. "New States may be admitted *by the Congress* into this Union." According to these words, the States cannot even determine their associates, but are dependent in this respect upon the will of Congress. 3. But not content with taking from the States these important powers of sovereignty, it is solemnly declared that the Constitution, and the laws of the United States made in pursuance thereof, and all treaties under the authority of the United States, "SHALL BE THE SUPREME LAW OF THE LAND, *anything in the Constitution or laws of any State to the contrary notwithstanding.*" Thus are State Rights again subordinated to the National Constitution, which is erected into the paramount authority. 4. But this is done again by another provision, which declares that "*the members of the several State legislatures, and all executive and judicial officers of the several States, shall be bound by oath or affirmation to support this Constitution*"; so that not only State laws are subordinated to the National Constitution, but the makers of State laws, and all other State officers, are constrained to declare their allegiance to this Constitution, thus placing the State, alike through its acts and its agents, in complete subordination to the sovereignty of the United States. 5. But this sovereignty is further proclaimed in the solemn injunction, that "the United States shall guarantee to every State in this Union a republican form of government, and shall protect each of them against invasion." Here are duties of guaranty and protection imposed upon the United States, by which their position is fixed as the supreme power. There can be no such guaranty without the implied right to examine and consider the governments of the several States; and there can be no such protection without a similar right to examine and consider the condition of the several States: thus subjecting

them to the rightful supervision and superintendence of the National Government.

Thus, whether we regard the large powers vested in Congress, the powers denied to the States absolutely, the powers denied to the States without the consent of Congress, or those other provisions which accord supremacy to the United States, we shall find the pretension of State sovereignty without foundation, except in the imagination of its partisans. Before the Constitution such sovereignty may have existed; it was declared in the Articles of Confederation; but since then it has ceased to exist. It has disappeared and been lost in the supremacy of the National Government, so that it can no longer be recognized. Perverse men, insisting that it still existed, and weak men, mistaking the shadow of former power for the reality, have made arrogant claims in its behalf. When the Constitution was proclaimed, and George Washington took his oath to support it as President, our career as a Nation began, with all the unity of a nation. The States remained as living parts of the body, important to the national strength, and essential to those currents which maintain national life, but plainly subordinate to the United States, which then and there stood forth a Nation, one and indivisible.

MISCHIEFS IN THE NAME OF STATE RIGHTS.

But the new government had hardly been inaugurated before it was disturbed by the pestilent pretension of State Rights, which, indeed, has never ceased to disturb it since. Discontent with the treaty between the United States and Great Britain, negotiated by that purest patriot, John Jay, under instructions from Washington, in 1794, aroused Virginia, even at that early day, to commence an opposition to its ratification, *in the name of State Rights*. Shortly afterwards appeared the famous resolutions of Virginia and those of Kentucky, usually known as the "Resolutions of '98," declaring that the National Government was founded on a compact between the States, and claiming for the States the right to sit in judgment on the National Government, and to interpose, if they thought fit; all this, as you will see, *in the name of State Rights*. This pretension on the part of the States increased, till, at last, on the mild proposition to attach a prospective prohibition of Slavery as a condition to the admission of Missouri into the Union as a new State, the opposition raged furiously, even to the extent of menacing the

existence of the Union; and this, too, was done *in the name of State Rights*. Ten years later, the pretension took the familiar form of Nullification, insisting that our government was only a compact of States, any one of which was free to annul an act of Congress at its own pleasure; and all this *in the name of State Rights*. For a succession of years afterwards, at the presentation of petitions against Slavery,—petitions for the recognition of Hayti,—at the question of Texas,—at the Wilmot Proviso,—at the admission of California as a Free State,—at the discussion of the Compromises of 1850,—at the Kansas Question,—the Union was menaced; and always *in the name of State Rights*. The menace was constant, and it sometimes showed itself on small as well as great occasions, but always *in the name of State Rights*. When it was supposed that Fremont was about to be chosen President, the menace became louder, and mingling with it was the hoarse mutter of war; and all this audacity was *in the name of State Rights*.

But in the autumn of 1860, on the election of Mr. Lincoln, the case became much worse. Scarcely was the result of this election known by telegraph before the country was startled by other intelligence, to the effect that certain States at the South were about to put in execution the long-pending threat of Secession, of course *in the name of State Rights*. First came South Carolina, which, by an ordinance adopted in a State convention, undertook to repeal the original act by which the Constitution was adopted in this State, and to declare that the State had ceased to be one of the States of the Union. At the same time a Declaration of Independence was put forth by this State, which proceeded to organize itself as an independent community. This example was followed successively by other States, which, by formal acts of Secession, undertook to dissolve their relations with the Union, always, be it understood, *in the name of State Rights*. A new Confederation was formed by these States, with a new Constitution, and Jefferson Davis at its head; and the same oaths of loyalty by which the local functionaries of all these States had been bound to the Union were now transferred to this new Confederation,—of course, in utter violation of the Constitution of the United States, but always *in the name of State Rights*. The ordinances of Secession were next maintained by war, which, beginning with the assault upon Fort Sumter, convulsed the whole country, till, at last, all the States of the new Confederation are in open rebellion, which the Government of the

United States is now exerting its energies, mustering its forces, and taxing its people to suppress. The original claim, *in the name of State Rights*, has swollen to all the proportions of an unparalleled war, which, *in the name of State Rights*, now menaces the national life.

But the pretensions in the name of State Rights are not all told. While the ordinances of Secession were maturing, and before they were yet consummated, Mr. Buchanan, who was then President, declined to interfere, on the ground that what had been done was done by States, and that it was contrary to the theory of our government "to coerce a State." Thus was the pretension of State Rights made the apology for imbecility. Had this President then interfered promptly and loyally, it cannot be doubted that this whole intolerable crime might have been trampled out forever. And now, when it is proposed that Congress shall organise governments in these States, which are absolutely without loyal governments, we are met by the objection founded on State Rights. The same disastrous voice which from the beginning of our history has sounded in our ears still makes itself heard; but, alas! it is now on the lips of our friends. Of course, just in proportion as it prevails will it be impossible to establish the Constitution again throughout the Rebel States. State Rights are madly triumphant, if, first, in their name Rebel governments can be organized, and then, again, in their name Congressional governments to displace the Rebel governments can be resisted. If they can be employed, first to sever the States from the Union, and then to prevent the Union from extending its power over them, State Rights are at once a sword and buckler to the Rebellion. It was through the imbecility of Mr. Buchanan that the States were allowed to use the sword. God forbid that now, through any similar imbecility of Congress, they shall be allowed to use the buckler!

SHALL CONGRESS ASSUME JURISDICTION OF THE REBEL STATES?

And now, in this discussion, we are brought to the practical question which is destined to occupy so much of public attention. It is proposed to bring the action of Congress to bear directly upon the Rebel States. This may be by the establishment of provisional governments under the authority of Congress, or simply by making the admission or recognition of the States depend upon the action of Congress. The essential feature of this

proposition is, *that Congress shall assume jurisdiction of the Rebel States*. A bill authorizing provisional governments in these States was introduced into the Senate by Mr. Harris of the State of New York, and was afterwards reported from the Judiciary Committee of that body; but it was left with the unfinished business, when the late Congress expired on the fourth of March. The opposition to this proposition, so far as I understand it, assumes two forms: first, that these States are always to be regarded as States, with State rights, and therefore cannot be governed by Congress; and, secondly, that, if any government is to be established over them, it must be simply a military government, with a military governor, appointed by the President, as is the case with Tennessee and North Carolina. But State rights are as much disturbed by a military government as by a Congressional government. The local government is as much set aside in one case as in the other. If the President, within State limits, can proceed to organize a military government to exercise all the powers of the State, surely Congress can proceed to organize a civil government within the same limits for the same purpose; nor can any pretension of State Rights be effective against Congress more than against the President. Indeed, the power belongs to Congress by a higher title than it belongs to the President: first, because a civil government is more in harmony with our institutions, and, wherever possible, is required; and, secondly, because there are provisions of the Constitution under which this power is clearly derived.

Assuming, then, that the pretension of State Rights is as valid against one form of government as against the other, and still further assuming, that, in the case of military governments, this pretension is practically overruled by the President at least, we are brought again to consider the efficacy of this pretension when advanced against Congressional governments.

It is argued that the Acts of Secession are all inoperative and void, and that therefore the States continue precisely as before, with their local constitutions, laws, and institutions in the hands of traitors, but totally unchanged, and ready to be quickened into life by returning loyalty. Such, I believe, is a candid statement of the pretension for State Rights against Congressional governments, which, it is argued, cannot be substituted for the State governments.

In order to prove that the Rebel States continue precisely as before, we are reminded that Andrew Johnson continued to occupy his seat in the Senate after Tennessee had adopted its Act of Secession, and embarked in rebellion, and that his presence testified to the fact that Rebel Tennessee was still a State of the Union. No such conclusion is authorized by the incident in question. There are two principles of Parliamentary law long ago fixed: first, that the power once conferred by an election to Parliament is *irrevocable*, so that it is not affected by any subsequent change in the constituency; and, secondly, that a member, when once chosen, is *a member for the whole kingdom*, becoming thereby, according to the words of an early author, not merely knight or burgess of the county or borough which elected him, but knight or burgess of England.^[18] If these two principles are not entirely inapplicable to our political system, then the seat of Andrew Johnson was not in any respect affected by the subsequent madness of his State, nor can the legality of his seat be any argument for his State.

We are also reminded that during the last session of Congress two Senators from Virginia represented that State in the Senate; and the argument is pressed, that no such representation would be valid, if the State government of Virginia was vacated. This is a mistake. Two things are established by the presence of these Senators in the National Senate: first, that the old State government of Virginia is extinct, and, secondly, that a new government has been set up in its place. It was my fortune to listen to one of these Senators while he earnestly denounced the idea that a State government might disappear. I could not but think that he strangely forgot the principle to which he owed his seat in the Senate,—as men sometimes forget a benefactor.

It is true, beyond question, that the Acts of Secession are all inoperative and void against the Constitution of the United States. Though matured in successive conventions, sanctioned in various forms, and maintained ever since by bloody war, these acts—no matter by what name they may be called—are all equally impotent to withdraw an acre of territory or a single inhabitant from the rightful jurisdiction of the United States. But while thus impotent against the United States, it does not follow that they were equally impotent in the work of self-destruction. Clearly, the Rebels, by utmost efforts, could not impair the National jurisdiction; but it remains to be seen

if their enmity did not act back with fatal rebound upon those very State Rights in behalf of which they commenced their treason.

STATE SUICIDE.

It is sometimes said that the States themselves committed *suicide*, so that as States they ceased to exist, leaving their whole jurisdiction open to the occupation of the United States under the Constitution. This assumption is founded on the fact, that, whatever may be the existing governments in these States, they are in no respect constitutional, and since the State itself is known by the government, with which its life is intertwined, it must cease to exist constitutionally when its government no longer exists constitutionally. Perhaps, however, it would be better to avoid the whole question of the life or death of the State, and to content ourselves with an inquiry into the condition of its government. It is not easy to say what constitutes that entity which we call a State; nor is the discussion much advanced by any theory with regard to it. To my mind it seems a topic fit for the old schoolmen or a modern debating society; and yet, considering the part it has already played in this discussion, I shall be pardoned for a brief allusion to it.

There are well-known words which ask and answer the question, "What constitutes *a State*?" But the scholarly poet was not thinking of a "State" of the American Union. Indeed, this term is various in its use. Sometimes it stands for civil society itself. Sometimes it is the general name for a political community, not unlike "nation" or "country,"—as where our fathers, in the Resolution of Independence, which preceded the Declaration, spoke of "the *State* of Great Britain." Sometimes it stands for the government,—as when Louis XIV., at the height of his power, exclaimed, "The *State*, it is I"; or when Sir Christopher Hatton, in the famous farce of "The Critic," ejaculates,—

"Oh, pardon me, if my conjecture's rash,
But I surmise—*the State*—
Some danger apprehends."

Among us the term is most known as the technical name for one of the political societies which compose our Union. Of course, when used in the

latter restricted sense, it must not be confounded with the same term when used in a different and broader sense. But it is obvious that some persons attribute to the one something of the qualities which can belong only to the other. Nobody has suggested, I presume, that any "State" of our Union has, through rebellion, ceased to exist as a *civil society*, or even as a *political community*. It is only as a *State of the Union*, armed with State rights, or at least as a *local government*, which annually renews itself, as the snake its skin, that it can be called in question. But it is vain to challenge for the technical "State," or for the annual government, that immortality which belongs to civil society. The one is an artificial body, the other is a natural body; and while the first, overwhelmed by insurrection or war, may change or die, the latter can change or die only with the extinction of the community itself, whatever may be its name or its form.

It is because of confusion in the use of this term that there has been so much confusion in the political controversies where it has been employed. But nowhere has this confusion led to greater absurdity than in the pretension which has been recently made in the name of State Rights,—as if it were reasonable to attribute to a technical "State" of the Union that immortality which belongs to civil society.

From approved authorities it appears that a "State," even in a broader signification, may lose its life. Mr. Phillimore, in his recent work on International Law, says:—"A State, like an individual, may die," and among the various ways, he says, "by its submission and the donation of itself to another country."^[19] But in the case of our Rebel States there has been a plain submission and donation of themselves,—*effective, at least, to break the continuity of government*, if not to destroy that immortality which has been claimed. Nor can it make any difference, in breaking this continuity, that the submission and donation, constituting a species of attornment, were to enemies at home rather than to enemies abroad,—to Jefferson Davis rather than to Louis Napoleon. The thread is snapped in one case as much as in the other.

But a *change of form* in the actual government may be equally effective. Cicero speaks of a change so complete as "to leave no image of a State behind." But this is precisely what has been done throughout the whole Rebel region: there is no image of a *constitutional* State left behind.

Another authority, Aristotle, whose words are always weighty, says, that, *the form of the State being changed, the State is no longer the same*, as the harmony is not the same when we modulate out of the Dorian mood into the Phrygian. But if ever an unlucky people modulated out of one mood into another, it was our Rebels, when they undertook to modulate out of the harmonies of the Constitution into their bloody discords.

Without stopping further for these diversions, I content myself with the testimony of Edmund Burke, who, in a striking passage, which seems to have been written for us, portrays the extinction of a political community; but I quote his eloquent words rather for suggestion than for authority:—

"In a state of *rude* Nature there is no such thing as a people. A number of men in themselves have no collective capacity. The idea of people is the idea of a corporation. It is wholly artificial, and made, like all other legal fictions, by common agreement. What the particular nature of that agreement was is collected from the form into which the particular society has been cast. Any other is not *their* covenant. *When men, therefore, break p the original compact or agreement which gives its corporate form and capacity to a State, they are no longer a people; they have no longer a corporate existence; they have no longer a legal coactive force to bind within, nor a claim to be recognized abroad. They are a number of vague, loose individuals, and nothing more. With them all is to begin again. Alas! they little know how many a weary step is to be taken before they can form themselves into a mass which has a true politic personality.*"^[20]

If that great master of eloquence could be heard, who can doubt that he would blast our Rebel States, as senseless communities who have sacrificed that corporate existence which makes them living, component members of our Union of States?

STATE FORFEITURE.

But again it is sometimes said, that the States, by their flagrant treason, have *forfeited* their rights as States, so as to be civilly dead. It is a patent and indisputable fact, that this gigantic treason was inaugurated with all the forms of law known to the States; that it was carried forward not only by individuals, but also by States, so far as States can perpetrate treason; that the States pretended to withdraw bodily in their corporate capacities;—that

the Rebellion, as it showed itself, was *by* States as well as *in* States; that it was by the governments of States as well as by the people of States; and that, to the common observer, the crime was consummated by the several corporations as well as by the individuals of whom they were composed. From this fact, obvious to all, it is argued, that, since, according to Blackstone, "a traitor hath abandoned his connection with society, and hath no longer any right to the advantages which before belonged to him purely as a member of the community," by the same principle the traitor State is no longer to be regarded as a member of the Union. But it is not necessary, on the present occasion, to insist on the application of any such principle to States.

STATE ABDICATION.

Again it is said, that the States by their treason and rebellion, levying war upon the National Government, have *abdicated* their places in the Union; and here the argument is upheld by the historic example of England, at the Revolution of 1688, when, on the flight of James II. and the abandonment of his kingly duties, the two Houses of Parliament voted, that the monarch, "having violated the fundamental laws, and having withdrawn himself out of the kingdom, *had abdicated the government*, and that the throne had thereby become vacant."^[21] But it is not necessary for us to rely on any allegation of abdication, applicable as it may be.

RIGHTFUL GOVERNMENT IN THE REBEL STATES VACATED.

It only remains that we should see things as they are, and not seek to substitute theory for fact. On this important question I discard all theory, whether it be of State suicide or State forfeiture or State abdication, on the one side, or of State rights, immortal and unimpeachable, on the other side. Such discussions are only endless mazes in which a whole senate may be lost. And in discarding all theory, I discard also the question of *de jure*,—whether, for instance, the Rebel States, while the Rebellion is flagrant, are *de jure* States of the Union, with all the rights of States. It is enough, that, for the time being, and *in the absence of a loyal government*, they can take no part and perform no function in the Union, *so that they cannot be recognized by the National Government*. The reason is plain. There are in these States no local functionaries bound by constitutional oaths, so that, in

fact, there are no constitutional functionaries; and since the State government is necessarily composed of such functionaries, there can be no State government. Thus, for instance, in South Carolina, Pickens and his associates may call themselves the governor and legislature, and in Virginia, Letcher and his associates may call themselves governor and legislature; but we cannot recognize them as such. Therefore to all pretensions in behalf of State governments in the Rebel States I oppose the simple FACT, that for the time being no such governments exist. The broad spaces once occupied by those governments are now abandoned and vacated.

That patriot Senator, Andrew Johnson,—faithful among the faithless, the Abdiel of the South,—began his attempt to reorganize Tennessee by an Address, as early as the 18th of March, 1862, in which he made use of these words:—

"I find most, if not all, of the offices, both State and Federal, *vacated, either by actual abandonment, or by the action of the incumbents in attempting to subordinate their functions* to a power in hostility to the fundamental law of the State and subversive of her national allegiance."

In employing the word "vacated," Mr. Johnson hit upon the very term which, in the famous resolution of 1688, was held to be most effective in dethroning King James. After declaring that he had abdicated the government, it was added, "that the throne had thereby become *vacant*" on which Macaulay happily remarks:—

"The word *abdication* conciliated politicians of a more timid school. To the real statesman the simple important clause was that *which declared the throne vacant*; and if that clause could be carried, he cared little by what preamble it might be introduced."^[22]

And the same simple principle is now in issue. It is enough that the Rebel States be declared *vacated*, as *in fact* they are, by all local government which we are bound to recognize, so that the way is open to the exercise of a rightful jurisdiction.

TRANSITION TO RIGHTFUL GOVERNMENT.

And here the question occurs, How shall this rightful jurisdiction be established in the vacated States? Some there are, so impassioned for State rights, and so anxious for forms even at the expense of substance, that they insist upon the instant restoration of the old State governments in all their parts, through the agency of loyal citizens, who meanwhile must be protected in this work of restoration. But, assuming that all this is practicable, as it clearly is not, it attributes to the loyal citizens of a Rebel State, however few in numbers,—it may be an insignificant minority,—a power clearly inconsistent with the received principle of popular government, that the majority must rule. The seven voters of Old Sarum were allowed to return two members of Parliament, because this place,—once a Roman fort, and afterwards a sheepwalk,—many generations before, at the early casting of the House of Commons, had been entitled to this representation; but the argument for State Rights assumes that all these rights may be lodged in voters as few in number as ever controlled a rotten borough of England.

Pray, admitting that an insignificant minority is to organize the new government, how shall it be done? and by whom shall it be set in motion? In putting these questions I open the difficulties. As the original government has ceased to exist, and there are none who can be its legal successors, so as to administer the requisite oaths, it is not easy to see how the new government can be set in motion without a resort to some revolutionary proceeding, instituted either by the citizens or by the military power,—unless Congress, in the exercise of its plenary powers, should undertake to organize the new jurisdiction.

But every revolutionary proceeding is to be avoided. It will be within the recollection of all familiar with our history, that our fathers, while regulating the separation of the Colonies from the parent country, were careful that all should be done according to the forms of law, so that the thread of *legality* should continue unbroken. To this end the Continental Congress interfered by a supervising direction. But the Tory argument in that day denied the power of Congress as earnestly as it denies this power now. Mr. Duane, of the Continental Congress, made himself the mouthpiece of this denial:—

"Congress ought not to determine a point, of this sort about instituting government. What is it to Congress how justice is administered? You have no right to pass the resolution, any more than Parliament has. How does it appear that no favorable answer is likely to be given to our petitions?"^[23]

In spite of this argument, the Congress of that day undertook, by formal resolutions, to indicate the process by which the new governments should be constituted.^[24]

If we seek, for our guidance, the principle which entered into this proceeding of the Continental Congress, we shall find it in the idea, that nothing must be left to illegal or informal action, but that all must be done according to rules of constitution and law previously ordained. Perhaps this principle has never been more distinctly or powerfully enunciated than by Mr. Webster, in his speech against the Dorr Constitution in Rhode Island. According to him, this principle is a fundamental part of what he calls our American system, requiring that the right of suffrage shall be prescribed by *previous law*, including its qualifications, the time and place of its exercise, and the manner of its exercise; and then again, that the results are to be certified to the central power by some certain rule, *by some known public officers*, in some clear and definite form, to the end that two things may be done: first, that every man entitled to vote may vote; secondly, that his vote may be sent forward and counted, and so he may exercise his part of sovereignty, in common with his fellow-citizens. Such, according to Mr. Webster, are the minute forms which must be followed, if we would impart to the result the crowning character of law. And here are other positive words from him on this important point:—

"We are not to take the will of the people from public meetings, nor from tumultuous assemblies, by which the timid are terrified, the prudent are alarmed, and by which society is disturbed. These are not American modes of signifying the will of the people, and they never were....

"Is it not obvious enough, that men cannot get together and count themselves, and say they are so many hundreds and so many thousands, and judge of their own qualifications, and call themselves the people, and set up a government? *Why, another set of men, forty miles off, on the same day,*

with the same propriety, with as good qualifications, and in as large numbers, may meet and set up another government....

"When, in the course of human events, it becomes necessary to ascertain the will of the people on a new exigency, or a new state of things, or of opinion, *the legislative power provides for that ascertainment by an ordinary act of legislation.*

"What do I contend for? I say that the will of the people must prevail, when it is ascertained; but there must be *some legal and authentic mode of ascertaining that will*; and then the people may make what government they please....

"All that is necessary here is, that the will of the people should be ascertained by some regular rule of proceeding, *prescribed by previous law....*

"But the law and the Constitution, the whole system of American institutions, do not contemplate a case in which a resort will be necessary to proceedings *aliunde*, or *outside of the law and the Constitution*, for the purpose of amending the frame of government."[\[25\]](#)

CONGRESS THE TRUE AGENT.

But, happily, we are not constrained to any such revolutionary proceeding. The new governments can all be organized by Congress, which is the natural guardian of people without any immediate government, and within the jurisdiction of the Constitution of the United States. Indeed, with the State governments already *vacated* by rebellion, the Constitution becomes, for the time, the supreme and only law, binding alike on President and Congress, so that neither can establish any law or institution incompatible with it. And the whole Rebel region, deprived of all local government, lapses under the exclusive jurisdiction of Congress, precisely as any other territory; or, in other words, the lifting of the local governments leaves the whole vast region without any other government than Congress, unless the President should undertake to govern it by military power. Startling as this proposition may seem, especially to all who believe that "there is a divinity that doth hedge" a State, hardly less than a king, it will appear, on careful consideration, to be as well founded in the Constitution as it is simple and

natural, while it affords an easy and constitutional solution to our present embarrassments.

I have no theory to maintain, but only the truth; and in presenting this argument for Congressional government, I simply follow teachings which I cannot control. The wisdom of Socrates, in the words of Plato, has aptly described these teachings, when he says:—

"These things are secured and bound, even if the expression be somewhat too rude, with iron and adamant; and unless you or some one more vigorous than you can break them, it is impossible for any one speaking otherwise than I now speak to speak well; since, for my part, I have always the same thing to say, that I know not how these things are, but that out of all with whom I have ever discoursed, as now, not one is able to say otherwise and to maintain himself."^[26]

Show me that I am wrong,—that this conclusion is not founded in the Constitution, and is not sustained by reason,—and I shall at once renounce it; for, in the present condition of affairs, there can be no pride of opinion which must not fall at once before the sacred demands of country. Not as a partisan, not as an advocate, do I make this appeal; but simply as a citizen, who seeks, in all sincerity, to offer his contribution to the establishment of that policy by which Union and Peace may be restored.

THREE SOURCES OF CONGRESSIONAL POWER.

If we look at the origin of this power in Congress, we shall find that it comes from three distinct fountains, any one of which is ample to supply it. Three fountains, generous and hospitable, will be found in the Constitution ready for this occasion.

First. From the necessity of the case, *ex necessitate rei*, Congress must have jurisdiction over every portion of the United States *where there is no other government*; and since in the present case there is no other government, the whole region falls within the jurisdiction of Congress. This jurisdiction is incident, if you please, to that guardianship and eminent domain which belong to the United States with regard to all its territory and the people thereof, and it comes into activity when the local government ceases to exist. It can be questioned only in the name of the local government; but

since this government has disappeared in the Rebel States, the jurisdiction of Congress is uninterrupted there. The whole broad Rebel region is *tabula rasa*, or "a clean slate," where Congress, under the Constitution of the United States, may write the laws. In adopting this principle, I follow the authority of the Supreme Court of the United States in determining the jurisdiction of Congress over the Territories. Here are the words of Chief-Justice Marshall:—

"Perhaps the power of governing a territory belonging to the United States, which has not, by becoming a State, acquired the means of self-government, *may result necessarily from the facts that it is not within the jurisdiction of any particular State* and is within the power and jurisdiction of the United States. The right to govern may be the natural consequence of the right to acquire territory."[\[27\]](#)

If the right to govern may be the natural consequence of the right to acquire territory, surely, and by much stronger reason, this right must be the natural consequence of the sovereignty of the United States wherever there is no local government.

Secondly. This jurisdiction may also be derived from the *Rights of War*, which surely are not less abundant for Congress than for the President. If the President, disregarding the pretension of State Rights, can appoint military governors within the Rebel States, to serve a temporary purpose, who can doubt that Congress can exercise a similar jurisdiction? That of the President is derived from the war-powers; but these are not sealed to Congress. If it be asked where in the Constitution such powers are bestowed upon Congress, I reply, that they will be found precisely where the President now finds his powers. But it is clear that the powers to "declare war," to "suppress insurrections," and to "support armies," are all ample for this purpose. It is Congress that conquers; and the same authority that conquers must govern. Nor is this authority derived from any strained construction; but it springs from the very heart of the Constitution. It is among those powers, latent in peace, which war and insurrection call into being, but which are as intrinsically constitutional as any other power.

Even if not conceded to the President, these powers must be conceded to Congress. Would you know their extent? They will be found in the

authoritative texts of Public Law,—in the works of Grotius, Vattel, and Wheaton. They are the powers conceded by civilized society to nations at war, known as the Rights of War, at once multitudinous and minute, vast and various. It would be strange, if Congress could organize armies and navies to conquer, and could not also organize governments to protect.

De Tocqueville, who saw our institutions with so keen an eye, remarked, that, since, in spite of all political fictions, the preponderating power resided in the State governments, and not in the National Government, a civil war here "would be nothing but a foreign war in disguise."^[28] Of course the natural consequence would be to give the National Government in such a civil war all the rights which it would have in a foreign war. And this conclusion from the observation of the ingenious publicist has been practically adopted by the Supreme Court of the United States in those recent cases where this tribunal, after the most learned argument, followed by the most careful consideration, adjudged, that, since the Act of Congress of July 13th, 1861, the National Government has been waging "a *territorial* civil war," in which all property afloat belonging to a resident of the *belligerent territory* is liable to capture and condemnation as lawful prize. But surely, if the National Government may stamp upon all residents in this *belligerent territory* the character of foreign enemies, so as to subject their ships and cargoes to the penalties of confiscation, it may perform the milder service of making all needful rules and regulations for the government of this territory under the Constitution, so long as may be requisite for the sake of peace and order; and since the object of war is "indemnity for the past and security for the future," it may do everything necessary to make these effectual. But it will not be enough to crush the Rebellion. Its terrible root must be exterminated, so that it may no more flaunt in blood.

Thirdly. But there is another source for this jurisdiction which is common alike to Congress and the President. It will be found in the constitutional provision, that "the United States shall guarantee to every State in this Union a republican form of government, and shall protect each of them against invasion." Here, be it observed, are words of guaranty and an obligation of protection. In the original concession to the United States of this twofold power there was an open recognition of the ultimate responsibility and duty of the National Government, *conferring jurisdiction above all pretended State rights*; and now the occasion has come for the

exercise of this twofold power thus solemnly conceded. The words of twofold power and corresponding obligation are plain and beyond question. If there be any ambiguity, it is only as to what constitutes a republican form of government. But for the present this question does not arise. It is enough that a wicked rebellion has undertaken to detach certain States from the Union, and to take them beyond the protection and sovereignty of the United States, with the menace of seeking foreign alliance and support, even at the cost of every distinctive institution. It is well known that *Mr. Madison anticipated this precise danger from Slavery, and upheld this precise grant of power in order to counteract this danger*. His words, which will be found in a yet unpublished document, produced by Mr. Collamer in the Senate, seem prophetic.

Among the defects which he remarked in the old Confederation was what he called "want of guaranty to the States of their constitutions and laws *against internal violence*." In showing why this guaranty was needed, he says, that, "according to republican theory, right and power, being both vested in the majority, are held to be synonymous; according to fact and experience, a minority may, in an appeal to force, be an overmatch for the majority"; and he then adds, in words of wonderful prescience, "*where Slavery exists the republican theory becomes still more fallacious*." This was written in April, 1787, before the meeting of the Convention that formed the National Constitution. But here we have the origin of the very clause in question. The danger which this statesman foresaw is now upon us. When a State fails to maintain a republican government *with officers sworn according to the requirements of the Constitution*, it ceases to be a constitutional State. The very case contemplated by the Constitution has arrived, and the National Government is invested with plenary powers, whether of peace or war. There is nothing in the storehouse of peace, and there is nothing in the arsenal of war, which it may not employ in the maintenance of this solemn guaranty, and in the extension of that protection against invasion to which it is pledged. But this extraordinary power carries with it a corresponding duty. Whatever shows itself dangerous to a republican form of government must be removed without delay or hesitation; and if the evil be Slavery, our action will be bolder when it is known that the danger was foreseen.

In reviewing these three sources of power, I know not which is most complete. Either would be ample alone; but the three together are three times ample. Thus, out of this triple fountain, or, if you please, by this triple cord, do I vindicate the power of Congress over the vacated Rebel States.

But there are yet other words of the Constitution which cannot be forgotten: "New States may be admitted by the Congress into this Union." Assuming that the Rebel States are no longer *de facto* States of this Union, but that the territory occupied by them is within the jurisdiction of Congress, then these words become completely applicable. It will be for Congress, in such way as it shall think best, to regulate the return of these States to the Union, whether in time or manner. No special form is prescribed. But the vital act must proceed from Congress. And here again is another testimony to that Congressional power which, under the Constitution, will restore the Republic.

UNANSWERABLE REASONS FOR CONGRESSIONAL GOVERNMENTS

Against this power I have heard no argument which can be called an argument. There are objections founded chiefly in the baneful pretension of State Rights; but these objections are animated by prejudice rather than reason. Assuming the impeccability of the States, and openly declaring that states, like kings, can do no wrong, while, like kings, they wear the "round and top of sovereignty," politicians treat them with most mistaken forbearance and tenderness, as if these Rebel corporations could be dandled into loyalty. At every suggestion of rigor State Rights are invoked, and we are vehemently told not to destroy the States, when all that Congress proposes is simply to recognize the actual condition of the States and to undertake their temporary government, by providing for the condition of political syncope into which they have fallen, and, during this interval, to substitute its own constitutional powers for the unconstitutional powers of the Rebellion. Of course, therefore, Congress will blot no star from the flag, nor will it obliterate any State liabilities. But it will seek, according to its duty, in the best way, to maintain the great and real sovereignty of the Union, by upholding the flag unsullied, and by enforcing everywhere within its jurisdiction the supreme law of the Constitution.

At the close of an argument already too long drawn out, I shall not stop to array the considerations of reason and expediency in behalf of this jurisdiction; nor shall I dwell on the inevitable influence that it must exercise over Slavery, which is the motive of the Rebellion. To my mind nothing can be clearer, as a proposition of constitutional law, than that everywhere within the exclusive jurisdiction of the National Government Slavery is impossible. The argument is as brief as it is unanswerable. Slavery is so odious that it can exist only by virtue of positive law, plain and unequivocal; but no such words can be found in the Constitution. Therefore Slavery is impossible within the exclusive jurisdiction of the National Government. For many years I have had this conviction, and have constantly maintained it. I am glad to believe that it is implied, if not expressed, in the Chicago Platform. Mr. Chase, among our public men, is known to accept it sincerely. Thus Slavery in the Territories is unconstitutional; but if the Rebel territory falls under the exclusive jurisdiction of the National Government, then Slavery will be impossible there. In a legal and constitutional sense, it will die at once. The air will be too pure for a slave. I cannot doubt that this great triumph has been already won. The moment that the States fell, Slavery fell also; so that, even without any Proclamation of the President, Slavery had ceased to have a legal and constitutional existence in every Rebel State.

But even if we hesitate to accept this important conclusion, which treats Slavery within Rebel States as already dead in law and Constitution, it cannot be doubted, that, by the extension of the Congressional jurisdiction over the Rebel States, many difficulties will be removed. Holding every acre of soil and every inhabitant of these states within its jurisdiction, Congress can easily do, by proper legislation, whatever may be needful within Rebel limits in order to assure freedom and to save society. The soil may be divided among patriot soldiers, poor-whites, and freedmen. But above all things, the inhabitants may be saved from harm. Those citizens in the Rebel States, who, throughout the darkness of the Rebellion, have kept there faith, will be protected, and the freedmen will be rescued from the hands that threaten to cast them back into Slavery.

But this jurisdiction, which is so completely practical, is grandly conservative also. Had it been early recognized that Slavery depends exclusively upon the local government, and that it falls with that

government, who can doubt that every Rebel movement would have been checked? Tennessee and Virginia would never have stirred; Maryland and Kentucky would never have thought of stirring. There would have been no talk of neutrality between the Constitution and the Rebellion, and every Border State would have been fixed in its loyalty. Let it be established in advance, as an inseparable incident to every Act of Secession, that it is not only impotent against the Constitution of the United States, but that, on its occurrence, both soil and inhabitants will lapse beneath the jurisdiction of Congress, and no State will ever again pretend to secede. The word "territory," according to an old and quaint etymology, is said to come from *terreo*, to terrify, because it was a bulwark against the enemy. A scholiast tells us, "*Territorium est quicquid hostis terrendi causâ constitutum*," "A territory is something constituted in order to terrify the enemy." But I know of no way in which our Rebel enemy would have been more terrified than by being told that his course would inevitably precipitate him into a territorial condition. Let this principle be adopted now, and it will contribute essentially to that consolidation of the Union which was so near the heart of Washington.

The necessity of this principle is apparent as a restraint upon the lawless vindictiveness and inhumanity of the Rebel States, whether against Union men or against freedmen. Union men in Virginia already tremble at the thought of being delivered over to a State government wielded by original Rebels pretending to be patriots. But the freedmen, who have only recently gained their birthright, are justified in a keener anxiety, lest it should be lost as soon as won. Mr. Saulsbury, a Senator from Delaware, with most instructive frankness, has announced, in public debate, what the restored State governments will do. Assuming that the local governments will be preserved, he predicts that in 1870 there will be more slaves in the United States than there were in 1860, and then unfolds the reason as follows,—all of which will be found in the "Congressional Globe"^[29]:—

"By your acts you attempt to free the slaves. You will not have them among you. You leave them where they are. Then what is to be the result?—I presume that local State governments will be preserved. If they are, if the people have a right to make their own laws, and to govern themselves, they will not only reënslave every person that you attempt to set free, but they will reënslave the whole race."

Nor has the horrid menace of reënslavement proceeded from the Senator from Delaware alone. It has been uttered even by Mr. Willey, the mild Senator from Virginia, speaking in the name of State Rights. Newspapers have taken up and repeated the revolting strain. That is to say, no matter what may be done for Emancipation, whether by Proclamation of the President, or by Congress even, the State, on resuming its place in the Union, will, in the exercise of its sovereign power, reënslave every colored person within its jurisdiction; and this is the menace from Delaware, and even from regenerated Western Virginia! I am obliged to Senators for their frankness. If I needed any additional motive for the urgency with which I assert the power of Congress, I should find it in the pretensions thus savagely proclaimed. In the name of Heaven, let us spare no effort to save the country from this shame, and an oppressed people from this additional outrage!

"Once free, always free." This is a rule of law, and an instinct of humanity. It is a self-evident axiom, which only tyrants and slave-traders have denied. The brutal pretension thus flamingly advanced, to reënslave those who have been set free, puts us all on our guard. There must be no chance or loophole for such an intolerable, Heaven-defying iniquity. Alas! there have been crimes in human history; but I know of none blacker than this. There have been acts of baseness; but I know of none more utterly vile. Against the possibility of such a sacrifice we must take a bond which cannot be set aside,—and this can be found only in the powers of Congress.

Congress has already done much. Besides its noble Act of Emancipation, it has provided that every person guilty of treason, or of inciting or assisting the Rebellion, "shall be disqualified to hold any office under the United States." And by another act, it has provided that every person elected or appointed to any office of honor or profit under the Government of the United States shall, before entering upon its duties, *take an oath* "that he has not voluntarily borne arms against the United States, or given aid, countenance, counsel, or encouragement to persons engaged in armed hostility thereto, or sought or accepted or attempted to exercise the functions of any office whatever under any authority, or pretended authority, in hostility to the United States."^[30] This oath will be a bar against the return to *National office* of any who have taken part with the Rebels. It shuts out in advance the whole criminal gang. But these same

persons, rejected by the National Government, are left free to hold office in the States. And here is another motive to further action by Congress. The oath, is well as far as it goes; more must be done in the same spirit.

But enough. The case is clear. Behold the Rebel States in arms against that paternal government to which, as the supreme condition of their constitutional existence, they owe duty and love; and behold all legitimate powers, executive, legislative, and judicial, in these States, abandoned and vacated. *It only remains that Congress should enter and assume the proper jurisdiction.* If we are not ready to exclaim with Burke, speaking of Revolutionary France, "It is but an empty space on the political map," we may at least adopt the response hurled back by Mirabeau, that this empty space is a volcano red with flames and overflowing with lava-floods. But whether we deal with it as "empty space" or as "volcano," the jurisdiction, civil and military, centres in Congress, to be employed for the happiness, welfare, and renown of the American people,—changing Slavery into Freedom, and present chaos into a Cosmos of perpetual beauty and power.

REVIEWS AND LITERARY NOTICES.

The Thoughts of the Emperor M. Aurelius Antoninus. Translated by GEORGE LONG. London: Bell & Daldy.

Dulness is usually reckoned the prescriptive right of kings; at least, they are supposed to be officially incapable of literary eminence. And yet it is a curious fact, that, of those idiomatic works which literature will not "let die," of those marked productions which survive by their individuality, three, at least, bear the impress of royal names.

Devotion has found, in the contributions of three thousand years, no utterance so fit as the lyrics of a Hebrew king; satiety has breathed no sigh so profound as "The Words of the Preacher, the Son of David, King of Jerusalem"^[31]; and the wisdom of the Stoics has no worthier exponent than the meditations of a sovereign who ruled the greatest empire known to history, and glorified it with his own imperial spirit,—the noblest that ever bore the burden of state.

Our third example, unlike the other two, has not been adopted by ecclesiastical authority, and is not incorporated in any Vulgate of sacred lore; but its place in the canon of philosophy has long been established, and is often confirmed by fresh recognition. A new translation of this celebrated work, of which several versions already existed, has just been given to the English public by Mr. George Long, a well-known scholar and critic, with the title above named. We should have preferred the old title, "Meditations," so long endeared; but we are none the less grateful to Mr. Long for this needful service, for which no ordinary qualifications were required, and which has never before been performed by such competent hands.

Gibbon has said, that, "if a man were called to fix the period in the history of the world during which the condition of the human race was most happy and prosperous, he would, without hesitation, name that which elapsed from the death of Domitian to the accession of Commodus." This period comprises, together with the four concluding years of the first century of the Christian era, four-fifths of the second. The last of these fifths, deducting

one year, (A.D. 161-180,) was occupied by the supreme rule of Annios Verus, better known by his assumed name of Marcus Ælius Aurelius Antoninus, fifteenth emperor of the Romans, nephew and successor of another Antoninus, whose virtues, and especially his grateful remembrance of his predecessor and benefactor, procured him the *agnomen* of "Pius." In a line of sovereigns which numbers a larger proportion of wise and good men than most dynasties, perhaps than any other, M. Antoninus ranks first, so far as those qualities are concerned. A man of singular and sublime virtue, whose imperial station, so trying to human character, but served to render more conspicuous his rare and transcendent excellence. With an empire such as never before or since the Augustan dynasty has fallen to the lot of an individual, lord of the civilized earth, he lived simply and abstemiously as the poorest citizen in his dominions, frugal with unlimited means, humble with unlimited sway. Not a Christian by profession, in piety toward God and charity toward man he was yet a better Christian in fact than any of the Christian emperors who succeeded him. He governed his life by the Stoic discipline, the most hardy, in its practical requirements, of ancient systems, so rigorous in its ethic that Josephus is proud to claim an affinity with it for the "straitest" of the Jewish sects, and so pure in its spirit that St. Jerome ranks its best-known writer as a Christian,—a philosophy which taught men to consider virtue as the only good, vice as the only evil, all external things as indifferent. "His life," says Gibbon, "was the noblest commentary on the precepts of Zeno. He was severe to himself, indulgent to the imperfections of others, just and beneficent to all mankind. He regretted that Avidius Cassius, who had excited a rebellion in Syria, had by a voluntary death deprived him of the pleasure of converting an enemy into a friend. War he detested as the disgrace and calamity of human nature; but when the necessity of a just defence called upon him to take up arms, he readily exposed his person to eight winter campaigns on the frozen banks of the Danube, the severity of which was at last fatal to the weakness of his constitution. His memory was revered by a grateful posterity, and above a century after his death there were many who preserved the image of Marcus Antoninus among their household gods."

The learned Casaubon, after placing him above Solomon, "as being lord and master of more great kingdoms than Solomon was of towns," speaks of him as a man "who, for goodness and wisdom, was had by all men during

his life in such honor and reputation as never man was either before him or after him." "There hath ever been store enough of men," he says, "that could speak well and give good instructions, but great want of them that could or so much as endeavored to do as they spake or taught others to do. Be it therefore spoken to the immortal praise and commendation of Antoninus, that as he did write so he did live. Never did writers so conspire to give all possible testimony of goodness, uprightness, innocence, as they have done to commend this one. They commend him, not as the best prince only, but absolutely as the best man and best philosopher that ever lived."

Merivale, who concludes with the reign of M. Antoninus his "History of the Romans under the Empire," adds his testimony to that of the cloud of witnesses who have trumpeted the great *Imperator's* praise. "Of all the Cæsars whose names are enshrined in the page of history, or whose features are preserved to us in the repositories of art, one alone seems still to haunt the Eternal City in the place and the posture most familiar to him in life. In the equestrian statue of Marcus Aurelius, which crowns the platform of the Campidoglio, Imperial Rome lives again.... In this figure we behold an emperor, of all the line the noblest and the dearest, such as he actually appeared; we realize in one august exemplar the character and image of the rulers of the world. We stand here face to face with a representative of the Scipios and Cæsars, the heroes of Tacitus and Livy. Our other Romans are effigies of the closet and the museum; this alone is a man of the streets, the forum, and the capitol. Such special prominence is well reserved, amid the wreck of ages, for him whom historians combine to honor as the worthiest of the Roman people."

Mr. Long, in his biographical introduction, examines at length the evidence for Marcus's alleged persecution of the Christians. Lardner, and other writers in the Christian ecclesiastical interest, assuming the fact, denounce it as a blot on the Emperor's fame. The translator devotes more space to the consideration of this matter than, perhaps, in the judgment of the historical critic at this day, it will seem to deserve. That Christians, in the time of M. Antoninus, in Asia Minor and in Gaul, suffered torture and death on account of their faith, admits of no reasonable doubt. That Marcus authorized these persecutions, in any sense implying the responsibility of an original decision, does not appear. The imperial power, it must be remembered, was not absolute, but constitutionally defined. The Augusti, for the most part,

were but the executors of existing laws. The punishment of Christians, who refused to sacrifice, and persisted in contravening the religion of the State, was one of those laws. In some places, especially at Lyons and Vienne, the Christians were the victims of popular riots; but where they suffered by legal authority, in the name of the imperial government, it was under the well-known law of Trajan, a law which had been sixty years in operation when Marcus came upon the throne. The only blame that can be imputed to him in this relation (if blame it be) is that of failing to discern and acknowledge the divine authority of the new religion which was silently undermining the old Roman world. But no one who puts himself in the Emperor's time and place will think the worse of him for not adopting a view of this subject which educated and serious minds were precisely the least likely to adopt. To such, Christianity presented itself simply as a novelty opposed to religion and threatening the State. The case of Justin may be cited as an instance of a thoughtful and philosophic mind embracing Christianity in spite of the strong presumption against it in minds of that class. But, not to speak of the very wide difference between the steady, conservative Roman and the volatile Greek, all the life-circumstances of Justin, a Palestinian by birth, favored his adoption of the Christian faith; everything in the life of Antoninus tended in the opposite direction. Justin embraced the religion first on its philosophic side, where Antoninus was especially fortified against it, having early come to an understanding with himself on the deepest questions of the soul. His decisions on these questions did not differ materially from those of the Gospel; they might, unknown to himself, have been modified by a subtile atmospheric influence derived from that source and acting on a nature so receptive of its spirit. But the very fact, that he had in a measure anticipated the teachings of the Gospel, precluded the chance of his being surprised into acquiescence with the new religion by its moral beauty, if brought fairly before him, which perhaps it never was; for it does not appear that he read the Christian apologies framed in his day. What was best in Christianity, as a system of doctrine,—its ethical precepts,—he had already embraced; its substance he possessed; its external form he knew only as opposition to institutions which he was bound by all the sanctities of his office, by all the dignity of a Roman patrician, and by all the currents of his life, to uphold. For the rest, the relation of a mind like his to polytheism could be nothing more than the

formal acceptance of its symbols in the interest of piety, implying no intellectual enslavement to its myths and traditions.

De Quincey calls attention to one merit of Antoninus, which, he says, has been "utterly unnoticed hitherto by historians, but which will hereafter obtain a conspicuous place in any perfect record of the steps by which civilization has advanced and human nature been exalted. It is this: Marcus Aurelius was the first great military leader who allowed rights indefeasible, rights uncanceled by misfortune in the field, to the prisoner of war. Others had been merciful and variously indulgent, upon their own discretion, and upon a random impulse, to some, or possibly to all of their prisoners; ... but Marcus Aurelius first resolutely maintained that certain indestructible rights adhered to every soldier simply as a man, which rights capture by the sword, or any other accident of war, could do nothing to shake or diminish.... Here is an immortal act of goodness built upon an immortal basis; for so long as armies congregate and the sword is the arbiter of international quarrels, so long will it deserve to be had in remembrance that the first man who set limits to the empire of wrong, and first translated within the jurisdiction of man's moral nature that state of war which had heretofore been consigned by principle no less than by practice to anarchy, animal violence, and brute force, was also the first philosopher who sat upon a throne. In this, and in his universal spirit of forgiveness, we cannot but acknowledge a Christian by anticipation.... And when we view him from this distant age, as heading that shining array, the Howards and the Wilberforces, who have since then, in a practical sense, hearkened to the sighs of 'all prisoners and captives,' we are ready to suppose him addressed by the great Founder of Christianity in the words of Scripture, 'Thou art not far from the kingdom of God.'"[\[32\]](#)

Born to be a thinker rather than an actor, by nature framed for the life of a recluse, by temperament inclined to private study and contemplation, this best of emperors and of men by Providential destiny was doomed to spend the greater part of his days in the tumult of affairs, and, like a true Roman, died at last a soldier's death in his camp on the banks of the Danube, where, in after years, another line of "Roman Emperors," the sovereigns of the "Holy Roman Empire of Germany," had their seat. For more than a century after his death, and so long as Rome retained a remnant of her old vitality, a grateful people adored him as a saint, and he who "had no bust, picture, or

statue of Marcus in his house was looked upon as a profane and irreligious man." To this day, beside the equestrian statue named by Merivale, in the heart of modern Rome, a few steps from her principal thronged thoroughfare, a column which time has spared still commemorates the last of the Romans. The Emperor's statue which once surmounted it was destroyed, and centuries after the statue of St. Paul exalted to the vacant place, as if to show that the "height of Rome" is not quite the perfection of all humanity, and that even the purest of ancient philosophies is incomplete without the supplement of a more humane and universal wisdom.

Mr. Long's preliminary dissertation on "The Philosophy of Antoninus" is thorough and satisfactory, so far as that specific subject is concerned, but presents a very inadequate view of the Stoic philosophy in general, and strikes us as unjust in its incidental disparaging notice (in a footnote) of Seneca, who, after all, will ever be regarded as the greatest literary product of that school.

The book itself to which this essay introduces us is one of the few monuments that remain to us, and by far the best monument that remains to us, of the interior spiritual life of the better class of that Græco-Roman world of whose exterior life we know so much. Not to have read it is not to know the deepest mind of the ancients. Two things in it are prevaillingly prominent: first, a noble nature; secondly, an extreme civilization, already faltering, turned to decline, expecting its fall. On every page lies the shadow of impending doom; on every page shines forth the great, heroic soul equal to every fate. The work—if work it can be called—is entirely aphoristic, with no apparent plan; in fact, a note-book or diary of thoughts and fancies, set down as they occurred from time to time, and as leisure favored the record. In its structure, or rather want of structure, and in some of its suggestions, it reminds one of the Book of Ecclesiastes. Yet the difference between them is immense. The prevailing tone of Ecclesiastes is skepticism, that of the "Thoughts" is faith. The one is morbid, the other sane; the one relaxes, the other braces; the one is steeped in despondency and gloom, the other is redolent of manly courage and cheerful trust. The Emperor, like the Preacher, has much to say about death; but he views the subject from a higher plane, and envisages the final event with a better hope. He does not think that a living dog is better than a dead lion.

"What, then, is that which is able to conduct a man? One thing, and only one, philosophy.^[33] But this consists in keeping the dæmon within a man free from violence and unharmed, superior to pains and pleasures, doing nothing without a purpose, nor yet falsely and with hypocrisy,... and besides accepting all that happens, and all that is allotted, as coming from thence, wherever it is, from whence he himself came, and finally waiting for death with a cheerful mind, as being nothing else than a dissolution of the elements of which every living being is compounded. But if there is no harm to the elements themselves, in each continually changing into the other, why should a man have any apprehension about the change and dissolution of all the elements? For it is according to Nature, and nothing is evil which is according to Nature."^[34]

"Thou hast embarked, thou hast made the voyage, thou art come to shore; get out. If, indeed, to another life, there is no want of gods, not even there. But if to a state without sensation, thou wilt cease to be held by pains and pleasures, and to be a slave to the vessel which is as much inferior as that which serves it is superior; for the one is intelligence and deity, the other is earth and corruption."^[35]

"Man, thou hast been a citizen in this great state [the world]; what difference does it make to thee whether for five years or three? for that which is conformable to the laws is just for all. Where is the hardship, then, if no tyrant or unjust judge sends thee away from the state, but Nature who brought thee into it? The same as if a prætor who has employed an actor dismisses him from the stage. 'But I have not finished the five acts,—only three of them.' Thou sayest well; but in life the three acts are the whole drama; for what shall be a complete drama is determined by him who was once the cause of its composition, and now of its dissolution; but thou art the cause of neither. Depart, then, satisfied, for he who dismisses thee is satisfied."^[36]

The book is one which scarcely admits of analysis, and of which it is impossible to convey an idea by any discussion of its contents. In characterizing the man we have characterized the "Thoughts" as the commentary of personal experience on the virtues of fortitude, patience, piety, love, and trust. They have a history, and have been the chosen companion of many and very different men of note. Our own native Stoic,

the latest, and, since Fichte, the best representative of that school, fed his youth at this fountain, and shows, in his earlier writings especially, the influence of his imperial predecessor. Mr. Long reminds us that this was one of the two books which Captain John Smith, the hero of young Virginia, selected for his daily use. Unlike the generality of John Smiths and of modern Virginians, the brave soldier found here a kindred spirit.

The Christian world possesses in its Bible a record of Semitic piety whose genuine utterances will never be surpassed; but when the Vulgate of the Aryan races shall be published, these confessions of a noble soul will claim a prominent place among its scriptures.

Levana; or, The Doctrine of Education. Translated from the German of JEAN PAUL FRIEDRICH RICHTER. Boston: Ticknor & Fields.

We call to mind certain phrases wherein the critic may honestly express satisfaction that a portion of the world's plastic stock of useful knowledge has been skilfully manipulated into a volume. Truly, none of them will do for this sweetest household blossom of a commanding intellect. We have poetry too discursively brilliant for the trammels of verse, eloquence which has drawn its materials from the purest sources, and instructiveness running into sparkling effusions or soaring in aërial fancies. It is hard to speak adequately of this delicious, accidental "Levana." It is no schoolmaster's manual, no elaborated system set to snap like a spring-trap upon the heads of incautious meddlers,—it is only the very aroma of the married life of a wise and tender poet.

Those early years which held Richter in the grasp of their miseries and perplexities had passed away. Bravely had he struggled through temptations which at all times and in all places beset young men, added to such as are peculiar to one of the highest inspirations steeped to the lips in poverty. Through all perils he had borne the purity of his youth, the freedom and simplicity of his deep soul. And so he is privileged to bring to marriage and the delicate nurture of children the fine insights of a man of genius who has been wholly true to the costly gift he possessed. Of the domestic fragrance of a well-ordered family no savor eludes him. The wife and children, the vigorous and rich life which they offer to a good man,—those are touched with keenest analysis and in festal spirit. Most thoroughly does the author

possess that rare combination of mind which seeks speculative truth no less than ideal beauty; with him emotion is nothing, unless it leads to principle.

"Levana," as we have said, is no iron system for the education of children; it is rather a most readable text-book for the education of parents. It sustains a relation of spiritual fatherhood to common fathers, and offers choicest counsel to those who would assume the office of family-teacher honestly and in the fear of God. And it seems to us that of these subtle influences of home-culture, whose gospel Richter here declares, our American parents have been too neglectful. The world knows that we are proud, and justly so, of our public educational apparatus. But that our legislation in this direction produces nothing but good, no observing man can admit. This elaborate reading-and-writing machine of which the State turns the handle, while it induces a certain average sharpness in the children, leaves rusting some of the noblest privileges as well as the highest duties of the parent. Yet citizens will cry that they feel their responsibilities for educating, and, to their better fulfilment, work daily for dollars. This is well; but let us not throw our dollars in a parabolic curve over the house, on the chance of their making a happy descent in some distant school-room. The bringing-up of children is something very different from pickling cucumbers or salting fish,—it cannot be done by contract and in the gross. But, ah, there is no time for anything else! Then reduce your way of living to anything above the food-and-shelter point, and so make time. Richter was always poor, always a man of great labor and great performance, and here is what he says:—"I deny myself my evening meal in my eagerness to work; but the interruptions by my children I cannot deny myself."

"Levana" is peculiarly adapted to cause those who have to do with children to feel all the emancipating and renovating power of their trust. It cannot leave us satisfied with any conventional arrangement which brings to plausible maturity a limited per cent. There are, indeed, minds strong enough to pass through the bitter years of unlearning what has been taught amiss, and then, bating no jot of heart or courage, to begin education for themselves in middle life. But often it is far otherwise. Too often, owing to the indolence or immaturity of those who assume the responsibility of parents, the child is cast into a terrible moral perplexity, which is at last moral corruption. Our duties toward different children are as eclectic and irregular as Nature herself. There is a need to study and respect the

individual character, which claims from parents the daily use of their mental powers,—and this without a compelling external stimulus. Now it is easy and not unpleasant to work in a routine. Schiller used to say that he found the great happiness of life to consist in the discharge of some mechanical duty. He was in the right. Nevertheless, for the worth and blessedness of life we must look to the discharge of duties which are not mechanical. Of mechanical teaching the highest result proposed is the multiplication of photographs from the teacher's negative, or, in the words of Richter, "to fill our streets with perpetual stiff, feeble copies of the same pedagogue type." But the parent's office demands courage,—courage not so much to originate as to accept the wisdom of thinking men, some of whom have spoken more than a hundred years ago. The folly of cramming a child with words representing no ideas, instead of giving him ideas to find themselves words, is no new discovery. Milton, in his letter to Master Hartlib, assails that "scholastic grossness of barbarous ages" from which we nineteenth-century citizens have by no means escaped. "We do amiss," exclaims the eloquent scholar, "to spend seven or eight years in scraping together so much miserable Latin and Greek as might otherwise be learned easily and pleasantly in one year." He denounces this "mispending our prime youth at schools and universities as we do, either in learning mere words, or such things chiefly as were better unlearned." We quote the words of Milton rather than those of other eminent men to the same effect, because the poet cannot be accused of objecting to Latin and Greek taught at the right time and in the right way. A man whose mighty English was always fast anchored to classic bottoms had surely no sentimental preference for modern sciences. Indeed, in this very essay he seems to demand what at present we must consider as a too early initiation into the ancient languages, no longer the exclusive keys to knowledge. But Milton realized that there was a natural development to the imitative and perceptive powers of man, and he knew that a mere tasking of the verbal memory blighted the diviner faculties of comparison and judgment. We hold that the ideal system of education, to which through coming centuries men can only approximate, must present to the child the precise step in knowledge which he waits for, and upon which he is able to raise himself with that glow of pleasurable activity which God gives to exertion directed to a comprehensible end. The feeblest mind is capable of assimilating knowledge with a satisfaction the same in kind as that which rewarded the maturest labors of Humboldt or

Newton. There are sequences of facts every one of which, imparted in its natural order, brings an immediate interest. It is no nebulous scheme of combining instruction with amusement which is to be sought. One might as well look after the Philosopher's Stone or the Elixir of Life. Good things are to be had upon no easier terms than privation and work. But there is a wide difference between a man toiling to gain material comforts for those who are dear to him, or laboring to enlighten and reform his own spirit that he may give good gifts to his generation, and a beast whipped round a treadmill to the din of its own everlasting clatter. It is only work whose end shall, in some faint degree, be intelligible, which is demanded for the child; and with this sort of work we believe that it is very possible to furnish him. But our philanthropies in this direction may not be wrought by deputy; they must be aimed at the few, and not at once at the many.

The reader of "Levana" will find much incidental commendation of those true relations of intellectual sympathy and confidence between parents and children which in this country are far rarer than they should be. Seldom do we hear the average American citizen speak of either parent in that tone of tender and respectful companionship with which the average Frenchman pronounces "*ma mère*" or "*mon père*." Seldom do we see that relation between an eminent man and his mother which, in the Old World, has been exemplified from Augustine to Buckle. Some of the causes of this have been admirably set forth in a recent essay in these pages. The article by Gail Hamilton in the April number of the "Atlantic" contains much *uncommon* sense, which our lady-readers cannot ponder too often. All honor to those mothers who, meeting extreme and unexpected poverty, turn themselves into drudges that their children may be decently clothed and wholesomely fed! But dishonor to those women who stunt their own intellectual powers, which should educate and accompany the immortal souls of their sons and daughters through this world and perhaps another,—and this, in order that their bodies may be fed luxuriously, or dressed in lace and ruffles to vie with the children of richer neighbors! There can be no tolerance for the *indolence*—we emphasize the word—which elects a mechanical routine instead of those harder mental efforts through which a mother's highest duties may be comprehended and performed. And what shall be said for the despicable vanity which would barter opportunities of forming and directing a human character for the sake of trimmings and fancy buttons?

We cannot possess the confidence and friendship of our children without taking pains to deserve them. If the father chooses to be "the governor" of his family, then the *ex-governor*, and nothing more, can he be to his grown-up children,—an official once set over them by some Know-Nothing or other fatality, at length happily shelved with the rubbish of the nursery. Nowhere are the external sanctities of domestic life more respected than in our Northern States, and here should its fairest promises be bountifully fulfilled. Above all things, it is to be remembered that whatever moral power a man would have his children possess, that must he especially demand and exercise in himself. The Law of the household must afford the luxury of a Conscience; for if ever the maxim "*Summum jus, summa injuria*" be worthy of remembrance, it is in the management of children. Well for those who realize that education is no merely lineal advancement, but a spreading and flowering in many directions! well for those who cultivate all the capabilities of love and trust in their children! "When I think," says Jean Paul, "that I never saw in my father a trace of selfishness, I thank God!" There comes the time when young men go forth to battle in the world, and the father prays bitterly for the power to endow them with the results of his own experience. But only to him who has borne himself truthfully and honorably before his family can that good gift be given.

Upon the subject of religious education "Levana" is finely suggestive. All cobweb-makeshifts which obscure the beautiful substance of a holy life are swept aside. To the young, not what others say, but what they do, is right. Children, like their elders, will resist all mere reasoning upon the disadvantages, whether temporal or spiritual, of actions to which they are tempted. But they are ever ready to absorb the faith of the household, and to be nourished by it. "For those who wish to give anything," exclaims our author, "the first rule is, that they shall have it to give; no one can teach religion who does not himself possess it; hypocrisy and mouth-religion will bring forth only their like." The hardly noticeable habits of unrestrained intercourse, the indulgence of petty selfishness not acknowledged to ourselves,—these are seeds of evil quick to germinate in a virgin soil. No iteration of pedagogical maxims can annul the influence of some little mean or graceless act. Let every parent take heed lest, through his own weakness and folly, he lose the divine privilege of obedience through confidence. In the world, obedience through discipline must indeed come; but let it be

unknown in the family as long as it may. And of "mouth-religion" what fatal abundance! To a child, it is no more than the creaking and rattling of a vehicle, which is of a certain worth, doubtless, to the weary, sinful adult,—but to one who feels his life in every limb, incomprehensible, and an offence. Of the vulgar superstition which would confuse the nursery with creeds and vain prayer-repetitions of the heathen there is far too much. We have known parents, reputed pious and church-going, who delighted to pour crushing enigmas into infant ears, and then to make a sorry household jest of the feeble one's grotesque attempts to extend or limit the Unspeakable. As the highest concerns of man can be known only by the spirit, so they can be taught only by the spirit. It is not the words we repeat, but the temper in which we daily live, that moulds the family to honor or dishonor. It is the spirit of the father and mother which produces results mistaken for intuitions by the superficial. And, truly, youth, thus warmly rooted in generosity and nobility, will, in its own good time, stretch tender leaves up to the Higher Light. And when Nature is ready for worship, mark how wisely Richter directs it:—"The sublime is a step to the temple of religion, as the stars are to that of infinity. Let the name of God be heard by the child in connection with all that is great in Nature,—the storm, the thunder, the starry heavens, and death,—a great misfortune,—a great piece of good-fortune,—a great crime,—a greatly noble action: these are the sites on which to build the wandering church of childhood."

In conclusion, we can only repeat, that the greatest charm of "Levana" is its suggestion of a possible household, from what the reader feels was once an actual household. The cheap sentimentalism of parental relations has often been a favorite property with men of imaginative genius. Rousseau and Byron knew how to use it as a fictitious background before which they might posture with effect. But, until the world's literature shall mercifully forget them, the "Enfants Trouvés" and the Venetian bagnio strip these writers of their fine words, and hold them before the generations in scandal and disgrace. No reader of "Levana" can miss the refutation of that poisonous lie, that men of genius, because of their mental endowments, have a natural inaptitude for domestic relations, or are unhappy therein from any other cause than their own foolishness or guilt. We hear the tender strains of a deep poet, privileged by acquired worthiness to return to those divine instincts which were vivid in the simplest condition of the family. To

all who can bring the writings of Richter within their range we commend this book. Those who have learned to enjoy his strong-darting language, his complex constructions, his kindly humor, will find these working together with noblest aim. In these times of our country's peril, there is some sanative virtue outside of treatises upon strategy or Union pamphlets. It is well to print and circulate the literature of war. But it is also a sweet and a timely mission to impart a new inspiration into that life of the family to-day which shall become the life of the nation to-morrow.

FOOTNOTES:

[1] See Atlantic Monthly, May Number.

[2] "Clearly a fictitious appellation; for, if we admit the latter of these names to be in a manner English, what is *Leigh*? Christian nomenclature knows no such."

[3] "It is clearly of transatlantic origin."

[4]

"Imperfectus adhuc infans genetricis ab alvo
Eripitur, patrioque tener (si credere dignum)
Insuitur femori ...
Tutaque bis geniti sunt incunabula Bacchi.'

Metamorph. Lib. 3."

[5] It was Philip II. who gave to the Havana a coat of arms, in which was a golden key, to signify that it was the key of the Indies. The house being lost, the key has, oddly enough, become more valuable than ever to Spain.

[6] The "Annual Register" states that but 2,500 of the conquerors were fit for duty when the Havana surrendered. The Boston "Gazette" says 3,000, and that the arrival of reinforcements was critical. Even disease could not break down armies in those days. The Spaniards had 6,000 sick.

[7] The writer is known to the publishers of the "Atlantic Monthly": he is one whose word is not and cannot be called in question; and he pledges his word that the above is exact and *proven* fact. Horace Mann, years ago, made public some similar cases.

[8] *Constitutional History of England*, Vol. II. p. 340.

[9] Carlyle's *Life of Cromwell*, Part IX. Vol. II. p. 168.

[10] Ludlow's *Memoirs*, p. 559.

[11] *Ibid.* p. 580.

[12] *Ibid.* p. 582.

[13] Kent's *Commentaries*, Vol. I. p. 292, note b.

[14] Elliott's *Debates*, Vol. III, p. 22.

[15] Elliott's *Debates*, Vol. III. p. 44.

[16] *Ibid.* p. 29.

[17] Rushworth's *Historical Collections*, Vol. I. p. 609.

[18] See Cushing, *Parliamentary Law*, p. 284.

- [19] Phillimore's *International Law*, Vol. I. p. 147.
- [20] Burke's *Appeal from the New to the Old Whigs*.
- [21] Macaulay's *History of England*, Vol. II. p. 623.
- [22] Macaulay's *History of England*, Vol. II. p. 624.
- [23] John Adams's *Works*, Vol. II. p. 490.
- [24] *Ibid.* Vol. III. pp. 17, 19, 45, 46.
- [25] Webster's *Works*, Vol. VI. pp. 225, 226, 227, 228, 231.
- [26] The *Gorgias* of Plato.
- [27] *American Insurance Company v. Carter*, 1 Peters, p. 542.
- [28] *Democracy in America*, Vol. II. ch. 25, p. 343.
- [29] Thirty-Seventh Congress, Second Session, 2d May, 1862, Part III. p. 1923.
- [30] Act of Congress, July 2, 1862, ch. 123.
- [31] Jewish tradition, in spite of German criticism, still ascribes the Book of Ecclesiastes to Solomon.
- [32] *The Cæsars*, p. 170, Boston edition.
- [33] This word, as Marcus uses it, is equivalent to religion.
- [34] p. 25.
- [35] p. 29.
- [36] p. 217.

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